

OPEN-BOOK EXAM PREPARATION

Utah CPA Laws and Rules Examination

Complete Study Guide & Official Source Documents

EXAM AT A GLANCE	
Questions	35 multiple choice
Time limit	1 hour
Passing score	26 correct — the handbook states 75%; the rule requires at least 75%
Format	Open book — the four reference documents in Part 2 are permitted
Weighting	21 questions — CPA Licensing Act & Rules (60%) 14 questions — DOPL Act & General Rules (40%)
Administered by	Prov (ProvExam) for the Utah Division of Professional Licensing

What this document is. Part 1 is a distilled study guide organized to match the exam's two content areas, with quick-reference tables, memorization aids, common traps, and 50 practice questions with cited answers. Part 2 reproduces, verbatim and in full, the four official documents the exam is written from and that you are permitted to use during the exam. Every substantive statement in Part 1 carries a citation in the form [58-26a-304(1)] — use those to jump straight to the governing text in Part 2 while the exam is open.

Compiled August 2026 from official Utah sources. Utah Code current through the 2026 General Session; R156-26a effective July 8, 2026; R156-1 effective December 24, 2024. This is a study aid, not legal advice — the official texts in Part 2 control.

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PART 2 — OFFICIAL SOURCE DOCUMENTS (VERBATIM)

A · Utah Code Title 58, Chapter 26a — Certified Public Accountant Licensing Act

B · Utah Admin. Code R156-26a — Certified Public Accountant Licensing Act Rule

C · Utah Code Title 58, Chapter 1 — Division of Professional Licensing Act

D · Utah Admin. Code R156-1 — General Rule of the Division of Professional Licensing

How to Use This Guide

The four documents the exam is written from

Prov's official candidate handbook for the Utah CPA examination lists exactly four permitted references. Nothing else is tested, and nothing else is allowed in the exam:

Document	What it covers	Where in Part 2
Utah Code 58-26a	Certified Public Accountant Licensing Act — the CPA-specific statute	Tab A
Utah Admin. Code R156-26a	CPA Licensing Act Rule — DOPL's implementing rule for CPAs	Tab B
Utah Code 58-1	Division of Professional Licensing Act — applies to <i>all</i> Title 58 professions	Tab C
Utah Admin. Code R156-1	General Rule of the Division — general implementing rule	Tab D

Understand the architecture before you memorize anything

Utah's licensing law is built in two layers, and roughly a third of the exam turns on knowing which layer a rule lives in.

- **The general layer** — Title 58, Chapter 1 and Rule R156-1 — governs every occupation DOPL licenses, from CPAs to cosmetologists. It supplies the default rules on applications, renewal, reinstatement, discipline, citations, and appeals.
- **The profession-specific layer** — Chapter 26a and Rule R156-26a — adds and modifies rules for CPAs. R156-26a-101(3) expressly says the rule's relationship to R156-1 is as described in R156-1-101 [R156-26a-101(3)], and R156-1-101(3)(d) says profession-specific rules "may supplement or alter Rule R156-1 unless expressly provided otherwise" [R156-1-101(3)(d)].

The practical consequence: when a CPA-specific provision exists, it governs; when it does not, the general provision fills the gap. Chapter 26a's definition section opens with "In addition to the definitions in Section 58-1-102" [58-26a-102], and R156-26a-102 opens the same way. That layering is itself a favorite exam subject.

OPEN-BOOK STRATEGY

With 35 questions in 60 minutes you have roughly 100 seconds per question — enough to look up perhaps eight to twelve of them, not all 35. Read Part 1 until you can answer most questions from memory, and reserve lookups for the numeric details (hours, days, dollar amounts) where guessing is costly. When you do look something up, go to the **rule** first for operational detail and the **statute** first for authority and definitions.

1 • The Regulatory Framework

The Division

The Division of Professional Licensing (DOPL) is created within the Department of Commerce to administer and enforce Title 58 [58-1-103]. The **director** of the Division is appointed by the executive director of the Department of Commerce **with the approval of the governor**, and holds office at the governor's pleasure [58-1-104(1)]. The Division's duties — issuing licenses, investigating complaints, adopting rules, administering examinations — are listed in 58-1-106, which is also the Division's general rulemaking authority; both R156-1 and R156-26a are adopted under 58-1-106(1)(a) [R156-1-101(2); R156-26a-101(2)].

The Utah Board of Accountancy

The Board is created by 58-26a-201 and consists of **five members: four licensed CPAs and one member of the general public** [58-26a-201(1)]. That composition matches the Title 58 default of four practitioners plus one public member [58-1-201(1)(b)].

Feature	Rule	Citation
Who appoints	The executive director of the Department of Commerce, giving consideration to recommendations from the profession; each name goes to the governor for confirmation or rejection	58-1-201(1)
Term	Four years, staggered so about half the board turns over every two years	58-1-201(2)(a)-(b)
Holdover	A member serves until a successor is appointed, but no more than six months past term expiration	58-1-201(2)(a)(ii)
Term limit	No more than two consecutive terms; a former member may not serve again on that board until two years have passed	58-1-201(2)(c)
Vacancy	Replacement appointed for the unexpired term; may then be appointed to only one additional full term	58-1-201(2)(d)
Removal	The director, with the executive director's approval, may remove a member for failing to fulfill duties (including attendance), for unlawful or unprofessional conduct, or for failing to keep an active license in good standing	58-1-201(2)(e)
Quorum	A majority of board members	58-1-201(3)(a)
Chair	Designated annually by the board from among its members, for a one-year period	58-1-201(5)
Pay	No compensation or benefits; per diem and travel expenses only	58-1-201(4)
Conflict bar	A member may not be faculty of, or hold a financial interest in, a school that provides statutorily or rule-required continuing education to licensees	58-1-201(6)

What the Board does — and does not do

The Board is advisory and adjudicative; it is not the licensing authority. Its duties are to recommend rules and statutory changes, recommend policy and budget matters, **approve and establish a passing score** for applicant examinations, screen applicants and recommend licensing actions to the director in writing, help set supervision standards, and act as presiding officer in adjudicative hearings when designated by the director [58-1-202(1)].

A separate list — things the Division does *with the collaboration and assistance* of the board — appears in 58-1-203: defining which schools are reputable, prescribing license qualifications, prescribing application rules, providing a fair and impartial method of examining applicants, **defining unprofessional conduct by rule**, establishing advisory peer committees, and establishing conditions for reinstatement and renewal [58-1-203(1)].

Chapter 26a adds one duty specific to accountancy: the Board must designate one of its members, on a permanent or rotating basis, to help the Division review complaints of unlawful or unprofessional conduct and to advise on investigations. A member who does so **may be disqualified** from sitting with the board when the board serves as presiding officer in that same matter [58-26a-201(3)(b), (4)].

The two advisory committees

R156-26a-201 creates two advisory peer committees to the Board under 58-1-203(1)(f):

Committee	Composition	Duties
Education Advisory Committee	One full-time faculty member from each Utah college or university with a nationally or regionally accredited program, except that a majority of the committee must be licensed CPAs	Advises on whether an institution is acceptable (accreditation, acceptance by other boards, faculty qualifications, resources); assists in determining whether an applicant may sit for the Uniform CPA Exam; advises on proposed rule changes
Advisory Peer Review Program Committee	Up to ten licensed CPAs	Reviews peer review results; may require corrective action beyond what the administering organization requires; evaluates CPE program compliance; performs random CPE audits; reviews complaints and recommends whether conduct violates professional ethics; provides technical assistance; serves as expert witnesses at administrative hearings

[R156-26a-201(1)–(2); committee appointment and terms under R156-1-205]

2 · Definitions the Exam Actually Tests

Definitions are disproportionately represented on this exam because they are easy to write questions about. The ones below repay memorization; the rest can be looked up.

From the CPA Licensing Act [58-26a-102]

Term	Definition (condensed)
Accounting experience	Applying accounting and auditing skills and principles taught as part of the professional education qualifying a person for licensure and generally accepted by the profession, under the supervision of a licensed CPA.
Professional experience	Experience lawfully obtained while licensed as a CPA in another state , recognized by rule, in the practice of public accountancy performed for a client, which includes expression of assurance or opinion.
Experience	Accounting experience <i>or</i> professional experience.
Year of experience	2,000 hours of experience generally accepted by the profession and under the supervision of a licensed CPA.
Attest / attestation engagement	An audit or engagement under SAS; a review under SSARS; an examination of prospective financial information under SSAE; an examination, review, or agreed-upon procedures engagement under SSAE; or an engagement under PCAOB standards.
Compilation	A SSARS service presenting, in the form of financial statements, information that is the representation of management or owners, without undertaking to express any assurance.
Review of financial statements	A SSARS service in which the accountant obtains limited assurance as a basis for reporting whether they are aware of material modifications needed, primarily through inquiry and analytical procedures.
Practice of public accounting	While holding oneself out as a CPA , offering or performing services involving auditing or accounting skills — including reports or opinions on financial statements, attestation, advisory or consulting services, preparing tax returns, or furnishing tax advice for a client.
Client	The person who retains a licensee for a service within the practice of public accountancy. Does not include a CPA's employer when the licensee works in a salaried or hourly position.
Certified Public Accountant	An individual currently licensed by Utah <i>or any other state, district, or territory</i> to practice public accountancy, or granted a CPA license under prior law or this chapter.
CPA firm	A qualified business entity holding a valid registration as a CPA firm under this chapter.
Qualified business entity	A sole proprietorship, corporation, limited liability company, or partnership engaged in the practice of public accountancy.
Licensee	The holder of a current valid license issued under Chapter 26a.
Peer review	A board-approved study, appraisal, or review of one or more aspects of the attest and compilation services rendered by a licensee, performed by a licensee holding an active license in this or another state who is not affiliated with the licensee being reviewed.
Principal place of business	The office location designated by the licensee for purposes of licensure by endorsement.
Qualified continuing professional education	A formal program of education that contributes directly to the professional competence of a CPA.

Qualifying examinations	(a) the AICPA Uniform CPA Examination; (b) the AICPA Examination of Professional Ethics for CPAs; (c) the Utah Laws and Rules Examination ; and (d) any other exam the board approves and the division adopts by rule.
Report	An opinion, report, or language stating or implying assurance as to reliability, or implying special knowledge or competence in accounting or auditing — specifically including compilations and reviews — and any disclaimer conventionally understood to imply positive assurance.
Uniform Accountancy Act	The model public accountancy legislation developed by national accounting and regulatory associations, as recognized by the division in collaboration with the board.

TRAP — THE "REPORT" SAFE HARBOR

A financial statement prepared by an **unlicensed** person is *not* a "report" — and therefore not unlawful — only if **both** conditions are met: (1) the cover page carries essentially the prescribed disclaimer language ("I (we) have prepared the accompanying financial statements ... have not audited or reviewed ... do not express an opinion or any other form of assurance"), **and** (2) the cover page and related footnotes do not use the terms "compilation," "review," "audit," "generally accepted auditing standards," "generally accepted accounting principles," or similar terms.

[58-26a-102(20)(b)]

Acronyms [58-26a-102; R156-26a-102]

Acronym	Stands for	Note
AICPA	American Institute of Certified Public Accountants (statute) / Association of International Certified Professional Accountants (rule)	The statute and the rule define this differently — 58-26a-102(2) vs. R156-26a-102(4)
NASBA	National Association of State Boards of Accountancy	Administers the CPE Audit Service
PCAOB	Public Company Accounting Oversight Board	Its standards are within the attest definition
CPAES	CPA Examination Services of NASBA	Designated by the Board to determine exam eligibility
PRP	Peer review program — the AICPA's quality control program	R156-26a-102(18)
CPE	Qualified continuing professional education under 58-26a-304	R156-26a-102(10)

From the DOPL General Rule [R156-1-102]

Active and in good standing	A status allowing full privileges to practice within the license classification. A license on probation is not active and in good standing.
Aggravating circumstances	Factors justifying an <i>increase</i> in severity — prior discipline, dishonest or selfish motive, pattern of misconduct, multiple offenses, obstruction of the disciplinary process, false evidence, refusal to acknowledge wrongfulness, vulnerability of the victim, lack of good faith to make restitution, illegal conduct, or intimidation/threats regarding client records.
Mitigating circumstances	Factors justifying a <i>decrease</i> in severity.
Cancel / cancellation	Nondisciplinary action rescinding a license issued in error (dishonored payment, unresolved background check, wrong classification), or where the licensee fails to maintain ongoing qualifications and that failure is not defined as unlawful or unprofessional conduct.
Cheating	Any means used by or for a candidate to alter exam results so they inaccurately represent competency — including communicating about the exam inside or outside the exam room, copying answers or allowing copying, using unauthorized items or devices, tampering with exam materials, taking an exam for another person, or obtaining/disclosing/selling any part of a Division exam without written authorization.

Education terms in the CPA rule [R156-26a-102]

Academic Unit	A semester or quarter credit hour from a nationally or regionally accredited program. Upper-division work: 1 hour = 1 Academic Unit. Post-graduate work: 1 hour = 1.6 Academic Units.
Accounting Coursework Requirements	24 semester (or 36 quarter) Academic Units of upper-division or graduate accounting, including at least one course in each of: financial accounting; auditing; taxation; managerial or cost accounting; and accounting information systems or data analytics. An internship may satisfy up to 6 semester (9 quarter) units.
Business Coursework Requirements	12 semester (or 18 quarter) Academic Units of business-related coursework, earnable at lower-division, upper-division, or post-graduate level, that cannot double-count toward the accounting requirement.
Certified transcript	An official transcript delivered directly from the institution to the Division (mail, electronic, or otherwise), <i>or</i> delivered to the Division in an envelope sealed by the institution .
Nationally accredited	Accredited by AACSB or ACBSP.
Regionally accredited	Accredited by NWCCU, NCA, MSCHE, NECHE, SACSCOC, or WASC.
Home jurisdiction	The jurisdiction where a CPA or CPA firm is licensed and the principal place of business is located.
Mobility / individual mobility	A practice privilege letting a qualifying out-of-state CPA practice in Utah without a Utah license or registration — and without notice, fee, or other submission.
Year of review	The calendar year during which a peer review is to be conducted.

3 · Becoming Licensed: Education, Experience, Examinations

The license requirement

An **individual** needs a license to engage in the practice of public accounting; a **qualified business entity** needs a **registration**. Both are subject to the exemptions in 58-26a-305 and 58-1-307 [58-26a-301(1)]. The Division issues two classifications: **Certified Public Accountant** (to individuals) and **Certified Public Accountant Firm** (to qualified business entities) [58-26a-301(2)].

The six statutory requirements for an initial CPA license

Under 58-26a-302(1), each applicant must:

1. submit an application in a division-approved form;
2. pay the fee the department sets under 63J-1-504;
3. submit a **certified transcript** showing a bachelor's or master's degree in accounting, or at least a bachelor's degree with a concentration in accounting and business as defined by rule, plus any other education requirements set by rule;
4. submit evidence of **accounting experience**;
5. submit evidence of having completed the **qualifying examinations** under 58-26a-306; and
6. **submit to an interview** as the board may request to examine competence and qualifications.

Education, in operation [R156-26a-302a]

The rule turns the statute into two pathways:

- **Pathway 1 — accounting or taxation major.** An applicant who completed a bachelor's or master's program with a major in accounting or taxation is **deemed** to have met the education requirement [R156-26a-302a(1)(a)].
- **Pathway 2 — any other major.** An applicant with a bachelor's, master's, or other equivalent degree in any other field qualifies if the transcript shows completion of **both** the Accounting Coursework Requirements (24 semester units, five required subjects) **and** the Business Coursework Requirements (12 semester units) [R156-26a-302a(1)(b)]. Those units may be earned **as part of, or in addition to**, the degree [R156-26a-302a(1)(c)].

Non-accredited or foreign credentials: an applicant may ask the Division, working with the Board or the Education Advisory Committee, to review a degree from a non-accredited program for equivalency [R156-26a-302a(2)]. The Division may also accept education from an applicant who is or was licensed as a CPA in the United States, or who holds equivalent foreign licensure and submits NASBA verification of compliance with a current **Mutual Recognition Agreement** with NASBA's International Qualifications Appraisal Board [R156-26a-302a(3)]. The Division, with the Board or Committee, may make a written finding for cause that a particular institution or program is **not** acceptable [R156-26a-302a(4)].

READING NOTE FOR THE OPEN BOOK

R156-26a-302a(1)(b) and R156-26a-302c(3)(b)(ii) both cite "R156-26a-102(4)" for the Business Coursework Requirements, but that definition actually sits at **R156-26a-102(7)** — R156-26a-102(4) is the definition of "AICPA." This is a cross-reference defect in the official rule text, not an error here. (Similarly, R156-1-401(2)(b) cites R156-1-102(17) for "mitigating circumstances," which is at R156-1-102(18).) If a question sends you to a subsection that does not match, check the neighboring numbers.

Experience [R156-26a-302b]**CORE RULE**

Two years of accounting experience — and because a "year of experience" is 2,000 hours supervised by a licensed CPA, that is **4,000 supervised hours**. A **post-graduate degree may be substituted for one year** of that experience. [R156-26a-302b(1)-(2); 58-26a-102(9), (25)]

An applicant by endorsement instead submits evidence of U.S. CPA licensure, or of equivalent foreign licensure plus NASBA verification under a current Mutual Recognition Agreement [R156-26a-302b(3)].

The three qualifying examinations

Examination	Minimum score	Notes
AICPA Uniform CPA Examination	Set by the AICPA; the candidate must meet the AICPA's conditioning requirements	58-26a-306(2)
AICPA Examination of Professional Ethics for CPAs	90%	R156-26a-302c(5)(a)
Utah (CPA) Laws and Rules Examination	75%	R156-26a-302c(5)(b)

Before you may sit

Before taking the qualifying examinations, an applicant must submit an application in a division-approved form, pay the fee, demonstrate completion of at least a bachelor's degree or the equivalent, and be approved by the board or an organization the board designates [58-26a-306(1)]. The rule fills in the mechanics: the application form is the one **CPAES** requires, the fee is the CPAES fee and **no additional fee is owed to the Division**, and the Board designates **CPAES** as the organization that determines education eligibility. If an applicant disputes CPAES's determination, **the Board makes the final determination** [R156-26a-302c(1)-(4)].

Authority for the Laws and Rules Exam itself

58-1-309 is the general authority: "In addition to qualifications for licensure or renewal of licensure enumerated in specific practice acts under this title, the division may by rule require an applicant to pass an examination of the laws and rules relevant to the occupation or profession to ensure familiarity with these laws and rules" [58-1-309]. Note also that **the Board approves and establishes the passing score** for applicant examinations [58-1-202(1)(c)].

Licensure by endorsement [58-26a-302(2)]

The Division may license an individual holding a CPA license from another state if the applicant applies on the approved form, pays the fee, submits to a board interview if requested, and satisfies **one** of the following:

- shows evidence of having passed the qualifying examinations **and** met the requirements that applied in Utah at the time the original license was issued; **or**
- shows evidence of having passed the qualifying examinations **and** had **four years of professional experience** after passing the Uniform CPA Examination on which the original license was based, **within the 10 years immediately preceding** the endorsement application; **or**
- shows that education, examination record, and experience are **substantially equivalent** to Utah's initial-licensure requirements, as the division requires by rule.

Endorsement applies only to someone seeking an actual Utah license — it does not apply to a CPA practicing in Utah under the mobility exemption of 58-26a-305(1) [58-26a-302(2)(b)].

Two general-rule points also apply: an endorsement applicant with the required experience **need not have a currently active** license in the other jurisdiction, and the Division may consider how much time has elapsed since the applicant's licensed practice [R156-1-302(2)-(3)]. The Division may also require an endorsement applicant to pass one or more exams — such as a jurisprudence or laws-and-rules exam — unless a statute or rule expressly says otherwise [R156-1-302(4)].

Other license types under the general act

Type	Key points	Citation
Temporary license	May be issued to someone who met all requirements except passing an exam (must take the next available exam; the temporary license automatically expires when official results are released if the applicant fails); to someone licensed elsewhere who is in Utah temporarily to teach or assist a Utah licensee; or to an out-of-state licensee where an emergency, a service shortage, or a need to observe the applicant justifies it. Not more than three consecutive times in the three years after the first temporary license. Never issued merely to cure a competitive advantage or disadvantage.	58-1-303
Restricted / probationary license	May be issued where the applicant appears qualified but has engaged in conduct bearing on qualifications and the Division needs to observe or attach conditions. Issuance is considered a partial denial and is subject to agency review.	58-1-304
Inactive license	Permitted only for the classifications listed in rule. "Certified public accountant emeritus" is on that list; "certified public accountant" is not. May remain inactive indefinitely unless otherwise provided. An inactive licensee has no right to practice. The renewal fee is waived for a licensee on full-time active military service.	58-1-305; R156-1-305(1)(e)
Surrender of license	The Division may accept a voluntary surrender by written agreement. Unless the agreement says otherwise: surrender does not foreclose further discipline; it terminates all rights and privileges; rights may be regained only by reapplying; the documentation is a public record ; and if surrender occurs while proceedings are pending, the Division may report it to state and federal agencies and licensing data banks.	58-1-306

Application mechanics under the general rule

- **Filing date** = the postmark date or the date the Division receives and date-stamps the application, **whichever is earlier** [R156-1-301(1)].
- The requirements that govern are those **in effect on the filing date** [R156-1-301(2)].
- The **issuance date** is the date approval is input into the Division's electronic licensure database [R156-1-301(3)].
- Notification to the Division by email is complete on transmission if sent during normal business hours (8 a.m.–5 p.m., excluding weekends and state and federal holidays); otherwise the next business day [R156-1-301.7(1)].

4 · Firms, Registration, and Firm Names

Firm registration requirements [58-26a-302(3)]

An applicant for registration as a CPA firm must submit the approved application, pay the fee, and satisfy the ownership test:

THE OWNERSHIP TEST

A **simple majority of the ownership** of the firm — measured in **both financial interests and voting rights** of all partners, officers, shareholders, members, or managers — must be held by individuals who are CPAs licensed in Utah or another U.S. state. In addition, any partner, officer, shareholder, member, or manager **whose principal place of business is in Utah and who performs professional services in Utah** must hold a valid Utah license. [58-26a-302(3)(a)(iii)]

Each separate location of a qualified business entity within Utah must register separately [58-26a-302(3)(b)].

Non-CPA owners are permitted, provided that (1) the firm **designates a Utah licensee** responsible for the firm's proper registration and identifies that person to the Division, and (2) **all non-licensed owners are active individual participants** in the firm [58-26a-302(3)(c)].

Firm names

It is **unprofessional conduct** for a CPA firm to use the name of an individual who is not a licensed CPA as part of the firm name — **except** that a firm may continue to use the name of a **former owner who was a CPA** but who has retired or is no longer active in the firm [R156-26a-502(4)].

Separately, it is **unlawful conduct** for a firm to use "certified public accountant," "CPA," or any similar designation implying the firm is composed of CPAs unless **each office of the firm in Utah** is registered with the Division and meets the ownership and other requirements of 58-26a-302(3)(a)(iii)–(iv) [58-26a-501(1)(b)].

And under the general rule, practicing through a business structure or name that has not been properly registered with the Division of Corporations and Commercial Code, or not properly licensed with DOPL, is unprofessional conduct [R156-1-501(2)].

Firm renewal and peer review

CPA firm registrations follow the same two-year cycle and the same **December 31 of even-numbered years** renewal date as individual CPA licenses [R156-1-308a Table 1]. A license or registration automatically expires on the date shown unless renewed [58-26a-303(3); 58-1-308(2)]. A license also automatically expires before the printed date upon the death of a natural-person licensee or the **dissolution** of an entity licensee [58-1-308(2)(c)].

5 · Renewal, CPE, and Peer Review

The renewal cycle

Licenses and registrations are issued on a **two-year renewal cycle** established by rule, and the Division may extend or shorten a cycle by as much as one year to stagger cycles [58-26a-303(1); 58-1-308(1)]. For CPAs and CPA firms the renewal date is **December 31 of each even-numbered year** [R156-1-308a; R156-26a-303b(5)(a)].

At renewal a licensee must show satisfactory evidence of **two** things: completion of qualified continuing education under 58-26a-304, and successful completion of a **peer review** meeting the requirements set by rule [58-26a-303(2)].

Procedural details from the general rule: the Division sends a renewal notice at least **60 days** before expiration, by email to the most recent address on file (mail is permitted), and a notice sent to the most recent address on file **constitutes legal notice** [R156-1-308c(2)-(4)]. A licensee first licensed during the **last 12 months of a renewal cycle** is licensed for a full cycle plus the remaining time and need not immediately renew [R156-1-308c(6)]. Expiration of a license is **not** an adjudicative proceeding [58-1-308(2)(e)].

Continuing professional education

THE CPE CORE

80 hours per two-year cycle ending December 31 of each even-numbered year, and **no CPE hours are required at the first renewal after initial licensure**. Within the 80 hours: **at least 1 hour** covering Title 58 Chapter 26a and Rule R156-26a, and **at least 3 hours of ethics**.

[58-26a-304(1); R156-26a-303b(1)-(2)]

The three ethics hours must cover at least one of: the AICPA Code of Professional Conduct; case-based instruction focusing on real-life situational learning; ethical dilemmas faced by accounting professionals; or business ethics [R156-26a-303b(2)(b)].

Topic	Rule	Citation
Course standards	Courses must meet the Statement on Standards for Continuing Professional Education (CPE) Programs, revised January 2024 , published by AICPA and NASBA, incorporated by reference	R156-26a-303b(4)
Reporting	Except as otherwise authorized, a licensee enters each earned hour into the NASBA CPE Audit Service ; the licensee must provide evidence of compliance to the Division at renewal	R156-26a-303b(5)(b)-(c)
Carry forward	Up to 40 hours of excess CPE may carry to the next reporting period. Carried-forward hours (and current-period hours) qualify as general hours only — they cannot satisfy the ethics or laws-and-rules subject requirements of the new period	R156-26a-303b(6)
Competence duty	A CPA must maintain current knowledge, skills, and abilities in each area of service and may be required to exceed 80 hours to do so	R156-26a-303b(3)
Shortfall	A licensee who fails to complete the minimum hours by the deadline may not renew until the hours are completed and reported	R156-26a-303b(7)(a)
Statutory waiver	A licensee may request a waiver for a period not exceeding three years by application, showing activities or circumstances preventing compliance; the waiver shall be granted upon a showing of good cause	58-26a-304(4)(a)-(b)
Post-waiver catch-up	A licensee granted a waiver must complete 30 hours within the six months immediately following the waiver's expiration, including at least 16 hours focused on auditing and accounting	58-26a-304(4)(c)
Medical waiver	Requires written confirmation from a qualified health care provider stating the beginning and ending dates, the extent of the condition, and the effect on the ability to practice. Even if hours are waived, the licensee must still provide services competently and with current knowledge — and must refrain from providing services they cannot competently provide	R156-26a-303b(7)(b)
Proportional adjustment	If a renewal cycle is extended or shortened, required CPE hours increase or decrease proportionally	58-26a-304(3)

CPE for a CPA practicing under out-of-state licensure

A person practicing in Utah under 58-26a-302(2) who seeks Utah renewal is deemed to meet the CPE requirement by meeting the CPE requirements of the state where their **principal place of business** is located and signing a statement to that effect on the Utah renewal application. If that state has no CPE requirement, they must meet Utah's full requirement. In either case they must still complete at least **one hour** covering Chapter 26a and R156-26a and at least **three hours of ethics** [58-26a-304(2)].

General-rule CE waivers and volunteer credit

R156-1-308d supplies broader waiver grounds for any Title 58 licensee: a medical or related condition, humanitarian or ecclesiastical service, extended presence where CE is unavailable, or other reasonable cause. The request must be submitted **no later than the deadline** for completing the requirement (absent good cause), and the licensee bears the burden of proof [R156-1-308d(1)]. Volunteering as an exam subject-matter expert earns CE credit on a **1:1 ratio**, and the licensee may count the whole or part of it toward law or ethics CE requirements [R156-1-308d(2)].

Peer review

Element	Requirement	Citation
Who	A firm engaged in the practice of public accounting	R156-26a-303a(2)
Frequency	At least once every three years	R156-26a-303a(2)(c)
Cost	Performed at the firm's own expense ; firm-on-firm review costs are negotiated between firm and reviewer and paid directly to the reviewer	R156-26a-303a(2)(a), (14)(a)
Scope	Commensurate in scope with the firm's practice	R156-26a-303a(2)(b)
Standards	Standards for Performing and Reporting on Peer Reviews promulgated by the AICPA, effective June 1, 2023 , incorporated by reference. This does not require the firm or licensee to join the AICPA	R156-26a-303a(7)(a)
Reviewer qualifications	Accepted as a peer reviewer by the AICPA or meeting AICPA qualifications, and licensed or permitted to practice as a CPA in Utah or another U.S. jurisdiction. The peer reviewer must not be affiliated with the licensee being reviewed	R156-26a-303a(6); 58-26a-102(14)
Initial review timing	Within 18 months after the administering organization issues its initial report, the organization assigns a deadline to start the initial peer review	R156-26a-303a(4)(a)
Exemption	A firm not performing services within the minimum-standards scope is exempt and must notify the Division of the exemption at the time of registration renewal . If it later begins such services, it must begin a peer review within 18 months of issuing its initial report	R156-26a-303a(10)
Extension	Up to 180 days from the originally scheduled date, on a showing of unreasonable hardship. The request must be in writing , submitted to the Division with a copy to the administering organization, at least 30 days before the scheduled review date or it will not be considered	R156-26a-303a(12)
Multi-state firms	The Division may accept an out-of-state peer review if it meets equivalency conditions, including that personnel from an office outside Utah inspect the Utah office at least once every three years . Application to the administering organization is due by February 1 of the year of review	R156-26a-303a(9)
Mergers and divisions		R156-26a-303a(11)

	Merged or combined firms retain the year of review of the largest firm. A divided firm's parts each retain the original year of review, unless that year falls less than 12 months after the division, in which case a new year is assigned	
Records retention	The administering organization retains peer review documentation — working papers, the report, comment letters and correspondence, and proposed remedial actions — for the longer of 120 days or its own retention schedule	R156-26a-303a(13)
Access to confidential documents	On request of the Peer Review Program Committee or the technical reviewer, a CPA or firm shall allow access to confidential documents including financial statements and working papers	R156-26a-303a(15)
Non-compliance	An administering organization reviewing a licensee who is unwilling or unable to comply with, or who intentionally disregards, professional standards shall refer the matter to the Division . Findings of non-compliance emphasize education and may include other remedial action	R156-26a-303a(1)(b), (3)(b)

6 · Emeritus, Inactive, Expiration, Reinstatement

CPA emeritus status [58-26a-307]

A currently licensed CPA may, **on any renewal date**, apply to transfer the license to CPA emeritus registration if **all** of the following are true:

- the licensee is **at least 60 years of age** as of the renewal date, *or* has a disability, *or* the board finds other good cause to believe the licensee will not return to practice;
- the licensee applies for transfer and pays the registration fee;
- the licensee **certifies they will not engage in the practice of public accountancy** while in emeritus status; and
- the licensee is **in good standing** and not subject to any order of revocation, suspension, or probation.

Emeritus registrations run on a two-year cycle. Emeritus registrants **may not practice** public accountancy and are **not required** to meet the CPE or peer review provisions of the chapter. To reinstate the CPA license, an emeritus registrant submits an application, pays the fee, and shows completion of the CPE requirement established by rule [58-26a-307(2)-(6)].

TRAP — EMERITUS VS. INACTIVE

These are different statuses. **Emeritus** is a CPA-specific registration under 58-26a-307. **Inactive** is a general-rule status under 58-1-305, available only to the classifications listed in R156-1-305(1) — and that list includes "**certified public accountant emeritus**," not "certified public accountant." A plain CPA license cannot be placed on inactive status.

Reinstatement — the CPA-specific rule [R156-26a-307]

An individual whose Utah license expired for failure to renew or nonpayment, or who is applying for reinstatement from emeritus status, may be relicensed on completing:

- an application on Division-approved forms **explaining why the license was allowed to lapse**; and
- **80 hours of qualified CPE completed within the 12 months preceding** submission of the reinstatement application, including **at least 16 hours in accounting or auditing or both** and successful completion of the **AICPA Professional Ethics Examination** at the current minimum score required for initial licensure — which itself **counts as 8 hours** toward the 80.

Two waivers of the CPE requirement are available:

1. The applicant has not practiced in Utah since expiration, has been continuously licensed and practicing in another state, and demonstrates having met the CPE requirements that would have applied in Utah [R156-26a-307(2)].
2. The failure to renew was an **inadvertent** failure to pay fees, sign documents, or meet similar technical requirements; the reinstatement application is filed **within 24 months** after expiration; and the applicant shows they attended acceptable CPE courses and complied with CPE requirements at all times [R156-26a-307(3)].

Hours used to reinstate **may not also satisfy** CPE required for a subsequent renewal [R156-26a-307(4)].

Reinstatement — the general timeline [58-1-308(5)-(6); R156-1-308g]

When the reinstatement application is filed	What is required
Expiration date through 30 days after	Completed renewal form showing compliance with renewal requirements + renewal fee and a late fee
31 days after expiration through 2 years	Completed renewal form showing compliance + renewal fee and reinstatement fee
More than 2 years after expiration	Generally a new application meeting current qualifications and payment of the new-applicant fee — <i>unless</i> the applicant has been continuously active in the profession in full-time U.S. government employ or under another state's license, in which case renewal + reinstatement fees, documentation of renewal qualifications, and an application filed within six months after reestablishing Utah domicile or ending full-time government service

TWO DATES WORTH MEMORIZING

A license reinstated **no later than 120 days** after expiration is **retroactively reinstated to the date it expired** [58-1-308(5)(c)]. And by rule the Division may extend the ordinary two-year reinstatement window to as long as **five years** [58-1-308(5)(a)(ii)(B)].

Related general-rule provisions

- **Conditional licensure.** If an applicant for initial licensure, renewal, or reinstatement is selected for audit, is under investigation, or is pending inspection, the Division may conditionally issue, renew, or reinstate the license. The expiration date shown is the undetermined completion of the audit or investigation, and conditional action **is not an adverse licensure action** [R156-1-308f].
- **Discipline-related reinstatement.** A petition to reinstate a restricted, suspended, or probationary license *during* the term of discipline is treated as a request to modify the disciplinary order, not as a license application [R156-1-308h(3)].
- **Minimum suspension.** A license may not be reinstated within **90 days** after action taken under 58-1-401, unless the Division, in collaboration with the board, imposes other conditions [58-1-403].
- **Entity dissolution.** If a dissolved entity is reinstated before the expiration date shown on its license, the Division shall reinstate the license on written application unless the applicant no longer meets the qualifications [58-1-308(2)(d); R156-1-308e].

7 • Exemptions from Licensure and Mobility

CPA-specific exemptions [58-26a-305(1)]

In addition to the general exemptions of 58-1-307, the following may perform acts within the practice of public accountancy without a Utah license:

1. **An out-of-state CPA under mobility** — an individual holding a valid license or permit in good standing as a CPA or equivalent from another state, if at the time of licensure the individual showed evidence of completing the equivalent of that state's qualifying examinations, and who consents to four conditions (below).
2. **An officer, member, partner, or employee** of an entity who signs a statement or report about the entity's own financial affairs **with a designation of their position** in the entity.
3. **A public official or employee** performing official duties.
4. **An individual using accounting or auditing skills** — including preparing tax returns, management advisory services, and preparing financial statements — **without issuing reports**.
5. **An employee of a registered CPA firm or assistant to a licensee**, working under a licensee's supervision, if neither the individual nor the employer represents that the individual is a CPA and no accounting or financial statements are issued in the unlicensed individual's name.

The four mobility consents [58-26a-305(1)(a)(ii)]

As a condition of the practice privilege, the out-of-state CPA consents to:

- **personal and subject matter jurisdiction and disciplinary authority of the Division;**
- **compliance** with Chapter 26a and its rules;
- **ceasing** to offer or render professional services in Utah, individually and on behalf of the firm, if the home-state license becomes invalid; and
- **appointment of the home state board as agent** for service of process in any action brought by the Division.

THE HEADLINE MOBILITY RULE

A qualifying individual has **all the privileges of a Utah licensee** and may practice in person or by mail, telephone, or electronic means — and **no notice, fee, or other submission** is required. The Division may nevertheless revoke, suspend, or restrict the exemption, or impose probation or a public or private reprimand, for the reasons in 58-1-401(2). [58-26a-305(2)]

Mobility conditions in the rule [R156-26a-305]

- The CPA's **home jurisdiction license must be active, unrestricted, and in good standing**.
- The CPA may **only perform the same level of services** — attest or non-attest — in Utah as they are permitted to perform in the home jurisdiction.
- A **CPA firm** not licensed in Utah may practice through mobility if its principal place of business is not in Utah, it holds an active, unrestricted firm license in good standing in its home jurisdiction, and it meets the **ownership and peer review** requirements of 58-26a-302(3)(a)(iii) and R156-26a-303a.

General Title 58 exemptions [58-1-307(1)]

Selected exemptions that apply across professions: individuals serving in the armed forces, U.S. Public Health Service, or VA while engaged in federal employment activities if licensed in another recognized jurisdiction; students in an approved school under qualified supervision as a defined part of the training program; individuals in an approved internship, residency, preceptorship, fellowship, apprenticeship, or on-the-job training program under supervision; an out-of-state licensee called in for a **consultation** by a Utah licensee, limited to that consultation; an individual invited by an approved school, association, or society to conduct a **lecture, clinic, or demonstration**, so long as they do not establish a place of business or regularly practice in Utah; and an individual licensed under Utah law **outside Title 58** while lawfully practicing that other occupation.

8 · Unlawful Conduct, Unprofessional Conduct, Independence

Chapter 26a defines both terms by cross-reference: "unlawful conduct" means the same as in 58-1-501 **and** 58-26a-501; "unprofessional conduct" means the same as in 58-1-501 **and** 58-26a-502 **and as may be further defined by rule** [58-26a-102(23)-(24)]. So four lists are in play. Know which conduct sits on which list — this is one of the most heavily tested distinctions on the exam.

Unlawful conduct — general [58-1-501(1)]

- practicing, representing oneself as practicing, or attempting to practice a licensed profession while **not licensed or exempt**, or while **restricted by a suspended, revoked, restricted, temporary, probationary, or inactive license**;
- **impersonating** another licensee or practicing under a false or assumed name; and, for a licensee reinstated after discipline, practicing under a different name than before the discipline without notice to and approval by the Division;
- **knowingly employing** an unlicensed person to practice a licensed profession;
- **knowingly permitting** one's authority to practice to be used by another;
- obtaining a passing exam score, applying for or obtaining a license, or otherwise dealing with the Division or a board **through fraud, forgery, or intentional deception, misrepresentation, misstatement, or omission**;
- issuing certain prescriptions without authority (not applicable to CPAs); and
- **aiding or abetting** any other person to violate a statute, rule, or order regulating a Title 58 profession.

Unlawful conduct — CPA-specific [58-26a-501(1)]

1. Using "certified public accountant," "public accountant," "CPA," or any other title, designation, words, letters, abbreviation, sign, card, or device tending to indicate the individual is a CPA, unless the individual holds a current Utah CPA license **or** is exempt under 58-26a-305(1)(a) (mobility).
2. A **firm** using "certified public accountant," "CPA," or similar unless **each office of the firm in Utah** is registered with the Division and meets the ownership requirements.
3. Signing or affixing one's name or trade name to an accounting or financial statement with wording indicating one is an **auditor** or has **expert knowledge in accounting or auditing**, unless licensed and all Utah offices are maintained and registered.
4. Unless exempt under 58-26a-305, if not licensed: **issuing a report on the financial statements** of another person, firm, organization, or governmental unit; or issuing a report using language substantially similar to conventional language for a **review** or a **compilation** of financial statements.

Unprofessional conduct — general [58-1-501(2)(a)]

Selected items most likely to appear: violating any statute, rule, or order regulating a Title 58 profession; violating or aiding another to violate **any generally accepted professional or ethical standard**; conduct resulting in a criminal conviction (or plea of guilty or nolo

contendere, including one held in abeyance) for a crime that **bears a substantial relationship** to the ability to safely or competently practice; conduct resulting in **discipline by another licensing authority**; using intoxicants, drugs, or similar chemicals to the extent it impairs the ability to practice safely; practicing while **physically or mentally unfit**; practicing through **gross incompetence, gross negligence, or a pattern** of incompetency or negligence; practicing by any **false, misleading, deceptive, or fraudulent** action or communication; practicing **beyond the scope of competency, abilities, or education**; practicing **beyond the scope of the license**; acting to prohibit or inhibit a client from complaining to a licensing authority, **including through a contract provision**; verbal, physical, mental, or sexual abuse or exploitation connected with practice; and acting as a supervisor without meeting the qualification requirements.

Unprofessional conduct — CPA-specific [58-26a-502(1)]

1. Undertaking an engagement when the licensee **knows or should know** they could not reasonably expect to complete it with professional competence.
2. Making **unauthorized disclosures of confidential information** obtained in the practice of public accountancy.
3. Engaging in a business or activity creating a **conflict of interest** with the licensee's practice when the licensee knows or should know it is a conflict and **does not fully disclose it in writing** to all affected parties.
4. **Failing to meet CPE or peer review requirements.**
5. Issuing a report on a client's financial statements — other than one in which the **lack of independence is disclosed** — or performing an attest engagement subject to AICPA attestation standards **when not independent, in fact and appearance.**

Commissions [58-26a-502(2)]

A licensee may not, for a commission, recommend or refer a product or service to a client, or recommend or refer a product or service to be supplied by a client, or receive a commission, when the licensee **also performs for that client**:

- an **audit or review** of a financial statement;
- a **compilation** of a financial statement where the licensee expects, or reasonably might expect, that a third party will use it **and** the compilation report does not disclose a lack of independence; or
- an **examination of prospective financial information.**

The prohibition runs during the engagement period **and** the period covered by any historical financial statements involved [58-26a-502(2)(b)]. A licensee who is *not* prohibited and who is paid or expects a commission **must disclose that fact** to the person to whom the recommendation or referral is made [58-26a-502(2)(c)]. A licensee who accepts a referral fee for referring a licensee's service, or pays a referral fee to obtain a client, **must disclose the acceptance or payment to the client** [58-26a-502(2)(d)].

Contingent fees [58-26a-502(3)]

A licensee may not perform a professional service for, or receive, a contingent fee from a client for whom the licensee or the firm performs an audit or review; a compilation where third-party use is expected and independence is not disclosed as lacking; or an examination of prospective

financial information. A licensee also may not **prepare an original or amended tax return or claim for a tax refund for a contingent fee.**

A contingent fee is one where **no fee is charged unless a specified finding or result is attained**, or where the amount depends on the finding or result. Two carve-outs: fees are **not** contingent if fixed by **courts or other public authorities**, or, in tax matters, if **determined based on the results of judicial proceedings or the findings of a governmental agency**. And a fee may properly **vary with the complexity** of the service [58-26a-502(3)(c)-(e)].

Unprofessional conduct added by rule

CPA rule [R156-26a-502]. Unprofessional conduct also includes: (1) **willfully** failing to comply with CPE requirements; (2) **fraudulently reporting CPE**; (3) failing to conform to the accepted and recognized standards and ethics of the profession, including those in the **AICPA Code of Professional Conduct, effective December 15, 2014, updated through December 2025**, incorporated by reference; and (4) a CPA firm **using the name of a non-CPA** in the firm name, except a former owner who was a CPA and has retired or is no longer active.

General rule [R156-1-501]. Unprofessional conduct also includes: **surrendering a license** to another regulator while an investigation is in progress or after a charging document has been filed; practicing through a **business structure or name not properly registered** with the Division of Corporations and Commercial Code or not properly licensed with DOPL; conduct resulting in **discipline by another authority** where it bears a substantial relationship to safe and competent practice or would be grounds for discipline in Utah; **inhibiting a client from complaining** to a regulator, including by contract; **cheating or otherwise violating R156-1-309** regarding Division exams; failing to comply with an **investigative subpoena** or a related order; and, as an exam candidate, proctor, grader, or administrator, failing to comply with the **DOPL Exam Policies and Procedures dated December 29, 2023**, incorporated by reference.

Division exam integrity [R156-1-309]

Because the Laws and Rules Exam is itself a Division exam, R156-1-309 governs your own testing session. Key points:

- If cheating is detected **before** the exam, the Division may deny the candidate the privilege of taking it, or notify the candidate and proceed. If detected **during** the exam, the administrator may end the exam and remove the candidate, or may allow it to continue and notify the candidate afterward.
- The Division may deny the privilege of taking or retaking the exam for a period, refuse to issue or act on a license under 58-1-401, or set conditions such as meeting with the board.
- An exam session may be ended or results invalidated if the candidate appears to be cheating, **reports late, fails to present required identification**, creates a disturbance, fails to comply with the administrator's directions, or reports **under the influence** of alcohol, drugs, or other intoxicants.
- The Division may invalidate results whenever there is a basis to question validity — for example unusual answer patterns, score increases, or equipment failure — **even absent any evidence the candidate personally cheated**.
- Exam subject-matter experts and administrators must be Utah residents, at least 18, appropriately licensed or experienced, must agree in writing **not to participate in exam**

coaching or preparation for five years, and may not be affiliated with an entity that could profit from knowledge of exam content.

9 · Discipline, Citations, Fines, and Appeals

Grounds and sanctions [58-1-401]

The Division **shall** refuse to issue, refuse to renew, or act against the license of anyone who **does not meet the qualifications** for licensure [58-1-401(1)]. The Division **may** refuse to issue or renew, or may revoke, suspend, restrict, place on probation, or publicly reprimand, for: unprofessional conduct; unlawful conduct; a court determination of **mental incompetence**; or inability to practice with reasonable skill and safety because of a mental or physical illness or condition, or the impairing behaviors in 58-1-501(2)(a)(v), where the condition demonstrates a threat or potential threat to the public [58-1-401(2)].

Chapter 26a adds nothing new here — 58-26a-401 simply says grounds for denial and discipline for CPAs **shall be in accordance with 58-1-401** [58-26a-401].

The Division may also issue **cease and desist orders** to a licensee or applicant subject to discipline, to a person practicing or representing that they practice a regulated profession, and to any person otherwise violating Title 58 or its rules [58-1-401(4)].

THE TWO LIMITATION PERIODS

Four years: the Division may not take disciplinary action unless it enters a stipulated agreement or initiates an adjudicative proceeding **within four years after the conduct is reported** to the Division. **Ten years:** the Division may not act more than **ten years after the conduct occurred**, unless the proceeding responds to a civil or criminal judgment or settlement and is initiated **within one year** after that judgment or settlement. The Division may still **refuse to issue** a license based on conduct older than ten years. [58-1-401(6)]

Criminal convictions require individualized consideration

When deciding whether to refuse a license **based solely on a criminal conviction**, the Division must give individualized consideration, determine whether the conviction **bears a substantial relationship** to safe or competent practice, and consider current circumstances — age at the offense, time elapsed, whether the sentence is complete, participation in rehabilitative treatment, testimonials and probation or parole reports, other evidence of rehabilitation, education and training, employment history, and other relevant information [58-1-401(7)].

An individual with a criminal record may also apply to the Division **at any time** for an advance determination of whether their record would disqualify them. The Division must respond in writing **within 90 days** of receiving a completed application, and may include information on additional steps the individual could take to qualify [58-1-310]. **Agency review is not available** for such a determination [R156-1-310(5)].

Citations and fines

Two parallel citation schemes exist — one general, one CPA-specific — and they are nearly identical.

Element	General 58-1-502	CPA-specific 58-26a-501
Time to contest	20 calendar days from service, in writing	20 calendar days from receipt, in writing
If not contested	The citation becomes the final order of the Division, not subject to further agency review	Same
Deadline to issue	Not more than one year after the violation is reported to the Division	Same
First offense	Fine up to \$1,000	Fine up to \$1,000
Second offense	Fine up to \$2,000	Fine up to \$2,000
Subsequent offense	Up to \$2,000 per day of continued offense	Up to \$2,000 per day of continued offense
Non-compliance	The Division may refuse to issue or renew, suspend, revoke, or place on probation the license of a licensee who fails to comply with a final citation; failure to comply is grounds for denial of an applicant's license	Same
Collection	Referral to a collection agency or a court action in the district court where the person resides or where the director's office is located; the county attorney or attorney general assists; a court may award reasonable attorney fees and costs to the prevailing party	Referral to a collection agency or an action in a court with jurisdiction; the county attorney or attorney general assists; a court shall award reasonable attorney fees and costs to the prevailing party 58-26a-501(4)(c)

A citation must be **in writing**, describe the violation **with particularity** including a reference to the statute or rule violated, state the 20-day contest requirement, and explain the consequences of failing to contest or pay. The Division **may issue a notice instead of a citation** [58-1-502(2)(d)-(e); 58-26a-501(2)(b)-(c)]. Except for a cease and desist order, the Division **may not impose the licensure sanctions of 58-1-401 through a citation** [58-1-502(2)(c)].

The CPA fine schedule [R156-26a-501]

The rule sets a table of ranges for citations issued to CPAs. For every listed violation — the 58-1-501(1) unlawful conduct items and each of the 58-26a-501(1) items, plus "other unlawful conduct" — the range is the same:

Offense	Fine range
First offense	\$500 - \$1,000
Second offense	\$1,000 - \$2,000
Subsequent offense	Up to \$2,000 for each day of the continued offense

Under the general rule, the Division issues a **notice of agency action instead of a citation for a third or subsequent offense**, absent extraordinary circumstances approved by the bureau

manager or chief investigator. Multiple offenses may be cited on one citation if each offense and its allocated fine are clearly indicated. The bureau manager, investigative team leader, or chief investigator may authorize a deviation from the fine based on aggravating or mitigating circumstances, and the presiding officer for a contested citation may **increase or decrease** the fine [R156-1-502].

Criminal and civil penalties

- Unless otherwise specified, a person who violates the **unlawful conduct** provisions of Title 58 is guilty of a **class A misdemeanor** [58-1-502(1)(a)].
- Unless a specific amount is set elsewhere, the director or designee may assess an **administrative fine of up to \$1,000 for each instance** of unprofessional or unlawful conduct [58-1-502(1)(b)].
- Violating a written order, injunction, or temporary restraining order relating to Title 58 may draw a **civil penalty of up to \$2,000 for each day** of violation, if the person had notice; penalties go to the **General Fund** [58-1-503].

Agency review and special appeals boards [58-1-402]

An applicant denied a license on the basis of credentials, character, a criminal record, or failure to pass a required exam — or refused renewal or reinstatement for not meeting qualifications for continued licensure — may request agency review by the executive director **within 30 days** after notification. The executive director decides whether to convene a special appeals board, and **that decision is not subject to agency review**.

SPECIAL APPEALS BOARD COMPOSITION — THREE MEMBERS

(1) one member **from the profession in question who is not on that profession's board**; (2) one member **from the general public** who is neither an attorney nor a practitioner in a DOPL-regulated profession; and (3) one member who is a **resident lawyer currently licensed in Utah, who serves as chair**. The board's order states whether a legal basis exists for the denial and is **not subject to further agency review**; either side may seek **judicial review**. Members receive no compensation, only per diem and travel. If no special appeals board is given, the applicant receives ordinary agency review. [58-1-402(2)-(6)]

Factors in licensing decisions after past conduct [R156-1-401]

Where an applicant or licensee is not automatically disqualified but has past unlawful or unprofessional conduct, or may be unable to practice safely due to a condition, the relevant factors include: aggravating and mitigating circumstances; degree of risk to the public; degree of risk the conduct will be repeated or the condition will continue; magnitude of the conduct relative to harm; time since the last occurrence; current criminal probation or parole status; current administrative status in any regulated profession; results of prior applications and of actions by any licensing, criminal, or administrative agency, employer, monitoring group, or association; evidence that restricting or monitoring practice can protect the public; psychological evaluations; and any other information the Division and board reasonably believe helpful.

Finally, the Division **may report disciplinary action** to other state or federal entities, state and federal data banks, the media, or anyone entitled to it under GRAMA [R156-1-503].

10 · Records, Working Papers, and Privity

Ownership of working papers [58-26a-601]

All statements, records, schedules, working papers, and memoranda made by a licensee **incident to or in the course of professional service to a client are the property of the licensee**, absent an express agreement to the contrary.

A licensee **may not sell, trade, or bequeath** those materials **without the client's consent** (or that of the client's personal representative or assignee) to anyone other than: another licensee; one or more surviving partners or shareholders; new partners or shareholders of the licensee; any combined or merged CPA firm; or successors-in-interest to the CPA firm.

Privity [58-26a-602]

A licensee, a registered CPA firm, and any employee, partner, member, officer, or shareholder are **not liable to persons with whom they are not in privity of contract** for civil damages arising from professional services — **except**:

1. acts, omissions, decisions, or conduct constituting **fraud or intentional misrepresentation**; or
2. other conduct, if the person performing the services **both** (a) **knew** that a primary intent of the client was for the services to benefit or influence the particular person seeking to establish liability, **and** (b) **identified in writing to the client** that the services were intended to be relied upon by that particular person.

TRAP — THE PRIVACY EXCEPTION IS CONJUNCTIVE

The second exception requires **both** knowledge of the client's primary intent **and** written identification to the client. Knowledge alone is not enough; a writing alone is not enough.

11 • The Numbers Sheet

If you memorize nothing else, memorize this. Numeric questions are the ones you cannot reason your way to, and they are the easiest for the exam to write.

Scores and hours

Figure	What it is	Citation
75%	Passing score, Utah Laws and Rules Examination	R156-26a-302c(5)(b)
90%	Minimum score, AICPA Examination of Professional Ethics for CPAs	R156-26a-302c(5)(a)
2,000 hours	One "year of experience"	58-26a-102(25)
2 years	Accounting experience required for licensure (4,000 supervised hours)	R156-26a-302b(1)
1 year	Experience a post-graduate degree may replace	R156-26a-302b(2)
24 semester / 36 quarter	Accounting Coursework Requirements (five required subjects)	R156-26a-102(2)
12 semester / 18 quarter	Business Coursework Requirements	R156-26a-102(7)
6 semester / 9 quarter	Maximum accounting units satisfiable by an internship	R156-26a-102(2)(b)
1.0 / 1.6	Academic Units per hour: upper-division / post-graduate	R156-26a-102(1)
80 hours	CPE per two-year cycle	58-26a-304(1); R156-26a-303b(1)
3 hours	Ethics CPE within the 80	R156-26a-303b(2)(b)
1 hour	Utah CPA Act and Rule CPE within the 80	R156-26a-303b(2)(a)
40 hours	Maximum CPE carry-forward to the next period (general hours only)	R156-26a-303b(6)
0 hours	CPE required at the first renewal after initial licensure	R156-26a-303b(1)
30 hours / 16 hours	Post-waiver catch-up within six months; of which auditing and accounting	58-26a-304(4)(c)
80 / 16 / 8 hours	Reinstatement: total CPE in preceding 12 months / accounting or auditing / credit for the AICPA ethics exam	R156-26a-307(1)(b)
15%	Maximum CE a health care professional may earn via volunteer service (1 hour per 4 volunteer hours)	R156-1-308d(3)

Deadlines and periods

Figure	What it is	Citation
2 years	Standard license and registration renewal cycle	58-1-308(1); 58-26a-303(1)
1 year	Maximum a renewal cycle may be extended or shortened	58-1-308(1)(b)
Dec. 31, even years	Renewal date for CPA and CPA Firm; also the CPE reporting deadline	R156-1-308a; R156-26a-303b(5)(a)
60 days	Minimum advance notice of renewal the Division sends	R156-1-308c(2)
3 years	Peer review frequency; also the maximum CPE waiver period	R156-26a-303a(2)(c); 58-26a-304(4)(a)
18 months	Window in which the administering organization assigns the initial peer review deadline after the initial report	R156-26a-303a(4)(a), (10)(b)
180 days / 30 days	Maximum peer review extension / minimum advance notice for the extension request	R156-26a-303a(12)
February 1	Multi-state firm application deadline to the administering organization, in the year of review	R156-26a-303a(9)(b)
120 days	Minimum peer review documentation retention (or the organization's schedule, if longer)	R156-26a-303a(13)(b)
June 1, 2023	Effective date of the incorporated AICPA peer review standards	R156-26a-303a(7)(a)
January 2024	Revision date of the incorporated Statement on Standards for CPE Programs	R156-26a-303b(4)
60 years	Age qualifying a licensee for CPA emeritus status	58-26a-307(1)(a)(i)
120 days	Reinstatement window for retroactive reinstatement to the expiration date	58-1-308(5)(c)
30 days / 2 years / 5 years	Reinstatement tiers: renewal + late fee / renewal + reinstatement fee / outer limit the Division may set by rule	R156-1-308g; 58-1-308(5)(a)(ii)
24 months	Filing window for the "inadvertent failure to renew" CPE waiver on reinstatement	R156-26a-307(3)(b)
6 months	Window after reestablishing Utah domicile or ending federal service to reinstate without examination; also the maximum board-member holdover	58-1-308(6)(b); 58-1-201(2)(a)(ii)
90 days		58-1-403; 58-1-310(4)

	Minimum period before reinstatement after 58-1-401 action; also the Division's deadline to answer a criminal-record determination request	
20 calendar days	Time to notify the Division in writing that you contest a citation	58-1-502(2)(d)(iii); 58-26a-501(2)(b)(iii)
1 year	Deadline for the Division to issue a citation after the violation is reported	58-1-502(2)(i); 58-26a-501(2)(i)
4 years / 10 years / 1 year	Discipline limitation periods: after the conduct is reported / after the conduct occurred / after a civil or criminal judgment or settlement	58-1-401(6)
30 days	Time to request agency review of a license denial or refusal to renew or reinstate	58-1-402(1)(a)
4 years / 2 terms / 2 years	Board term / consecutive term limit / waiting period before serving again	58-1-201(2)
10 years / 4 years	Endorsement alternative: professional experience must fall within the 10 years preceding application, and must total 4 years	58-26a-302(2)(a)(iv)(A)(II)(Bb)
3 times / 3 years	Maximum consecutive temporary licenses for a failed-exam applicant, within three years of the first	58-1-303(2)
12 months	Period at the end of a cycle during which a new or reactivated licensee gets a full cycle plus the remainder	R156-1-308c(6); R156-1-305(5)
5 years	Period an exam subject-matter expert or administrator must abstain from exam coaching or preparation	R156-1-309(7)(e)

Money

Amount	What it is	Citation
Up to \$1,000	Statutory citation fine, first offense; also the general administrative fine per instance of unprofessional or unlawful conduct	58-1-502(1)(b), (2)(j)(i); 58-26a-501(3)(a)(i)
Up to \$2,000	Statutory citation fine, second offense	58-1-502(2)(j)(ii); 58-26a-501(3)(a)(ii)
Up to \$2,000 per day	Subsequent offense, for each day of continued offense; also the civil penalty for violating a court order or injunction	58-26a-501(3)(a)(iii); 58-1-503(1)
\$500 - \$1,000	CPA rule fine schedule, first offense	R156-26a-501 Table 1
\$1,000 - \$2,000	CPA rule fine schedule, second offense	R156-26a-501 Table 1
Class A misdemeanor	Criminal classification for unlawful conduct under Title 58, unless otherwise specified	58-1-502(1)(a)

12 · Twenty Traps That Catch Candidates

1. **License vs. registration.** Individuals are **licensed**; firms are **registered**. The classifications are "Certified Public Accountant" and "Certified Public Accountant Firm." [58-26a-301]
2. **"Practice of public accounting" requires holding out.** The definition begins "while holding oneself out as a certified public accountant." Using accounting skills *without* issuing reports is an express exemption. [58-26a-102(13); 58-26a-305(1)(d)]
3. **A client is not an employer.** "Client" excludes a CPA's employer when the licensee works in a salaried or hourly position. [58-26a-102(7)(b)]
4. **Compilations and reviews are "reports."** The definition of "report" specifically includes them — which is why an unlicensed person issuing compilation-style language commits unlawful conduct. [58-26a-102(20)(a)(i)(B); 58-26a-501(1)(d)(ii)]
5. **Emeritus ≠ inactive.** Only "certified public accountant emeritus" appears on the inactive-eligible list; a plain CPA license cannot go inactive. [R156-1-305(1)(e)]
6. **Emeritus requires only one of three triggers.** Age 60 *or* disability *or* a board finding of good cause — but **all three** of the other conditions (application and fee, certification of non-practice, good standing) must be met. [58-26a-307(1)]
7. **No CPE at the first renewal.** A newly licensed CPA owes zero hours at the first renewal after initial licensure. [R156-26a-303b(1)]
8. **Carry-forward hours are general hours only.** Forty carried hours cannot fill next period's ethics or laws-and-rules requirement. [R156-26a-303b(6)(b)]
9. **Peer review is a firm obligation on a three-year clock, but a renewal condition every two years.** Renewal requires evidence of successful completion of peer review; the review itself happens at least once every three years. [58-26a-303(2)(b); R156-26a-303a(2)(c)]
10. **The peer review extension request has two numbers.** Up to **180 days** of extension, requested at least **30 days** before the scheduled review — and in writing, with a copy to the administering organization. [R156-26a-303a(12)]
11. **Mobility requires no filing at all.** "No notice, fee, or other submission shall be provided by that person." But the CPA still consents to Utah's disciplinary jurisdiction. [58-26a-305(2)(a)]
12. **Mobility caps your service level.** You may perform only the same level of services — attest or non-attest — that your home jurisdiction permits. [R156-26a-305(2)]
13. **Endorsement and mobility are different doors.** 58-26a-302(2) applies only to someone seeking an actual Utah license and expressly does not apply to a CPA practicing under the mobility exemption. [58-26a-302(2)(b)]
14. **Firm ownership is measured two ways at once.** A simple majority in **financial interests** *and* in **voting rights**. And every Utah-based owner performing services in Utah must be licensed here. [58-26a-302(3)(a)(iii)]
15. **Each office registers separately.** One firm with three Utah locations files three registrations. [58-26a-302(3)(b)]
16. **A commission is not automatically forbidden.** It is forbidden only when the licensee also performs one of the three listed services for that client. Otherwise it is permitted *with disclosure*. [58-26a-502(2)]
17. **Court-fixed and agency-determined fees are not contingent fees** — but preparing an original or amended tax return or refund claim for a contingent fee is always prohibited. [58-26a-502(3)(a)(ii), (3)(d)]

18. **The independence rule has a disclosure escape.** Issuing a report while not independent is unprofessional conduct *unless* the report discloses the lack of independence — but there is no such escape for an attest engagement under AICPA attestation standards. [58-26a-502(1)(e)]
19. **Two fine schedules, two ranges.** The *statute* says "up to \$1,000" for a first offense; the *rule* narrows it to "\$500 – \$1,000." Read the question carefully to see which is being asked about. [58-26a-501(3)(a); R156-26a-501]
20. **Expiration is not discipline.** Expiration of a license is not an adjudicative proceeding, and a conditional issuance or renewal is not an adverse licensure action. [58-1-308(2)(e); R156-1-308f(3)]

13 · Fifty Practice Questions

Answers, with citations to the source text in Part 2, begin in Chapter 14. Aim to answer at least 38 of 50 correctly before you sit for the exam.

1. What is the minimum passing score on the Utah Laws and Rules Examination?

- A. 70%
- B. 75%
- C. 80%
- D. 90%

2. An applicant must pass the AICPA Examination of Professional Ethics for CPAs with a score of at least:

- A. 75%
- B. 80%
- C. 90%
- D. 95%

3. The Utah Board of Accountancy consists of:

- A. Five licensed CPAs
- B. Four licensed CPAs and one member of the general public
- C. Three licensed CPAs and two members of the general public
- D. Seven members appointed by the governor

4. Which of the following is a duty of the Board rather than of the Division?

- A. Issuing cease and desist orders
- B. Collecting unpaid fines
- C. Approving and establishing a passing score for applicant examinations
- D. Issuing citations

5. How long is a board member's term, and how many consecutive terms may a member serve?

- A. Two years; three consecutive terms
- B. Four years; two consecutive terms
- C. Four years; unlimited terms
- D. Five years; two consecutive terms

6. "Year of experience" is defined as how many hours?

- A. 1,000
- B. 1,800
- C. 2,000
- D. 2,080

7. How much accounting experience must an applicant for initial CPA licensure document?

- A. One year
- B. Two years
- C. Three years
- D. Four years

8. A post-graduate degree may be substituted for:

- A. The entire experience requirement
- B. One year of the experience requirement
- C. The Utah Laws and Rules Examination
- D. The business coursework requirement

9. An applicant whose degree is in a field other than accounting must show how many semester Academic Units of accounting coursework?

- A. 12
- B. 18
- C. 24
- D. 30

10. Which subject is NOT among the required accounting course subjects?

- A. Auditing
- B. Business law
- C. Taxation
- D. Accounting information systems or data analytics

11. One semester hour of post-graduate academic work is credited as how many Academic Units?

- A. 1.0
- B. 1.5
- C. 1.6
- D. 2.0

12. An accounting internship may satisfy at most how many semester Academic Units?

- A. Three
- B. Six
- C. Nine
- D. Twelve

13. Which organization does the Board designate to determine whether an applicant has met the education requirements to sit for the Uniform CPA Examination?

- A. The AICPA
- B. CPAES (CPA Examination Services of NASBA)
- C. The Education Advisory Committee
- D. Prov

14. If an applicant disputes that organization's determination, who makes the final determination?

- A. The Division director
- B. The Board
- C. NASBA
- D. The executive director of the Department of Commerce

15. A "certified transcript" is one that is:

- A. Notarized by the applicant
- B. Delivered directly from the institution to the Division, or delivered in an envelope sealed by the institution
- C. Uploaded by the applicant as a scanned PDF
- D. Certified by a licensed CPA who reviewed it

16. How many hours of CPE must a CPA complete during each two-year licensure cycle?

- A. 40
- B. 60
- C. 80
- D. 120

17. Within those hours, the CPA must complete at least:

- A. 1 hour of ethics and 3 hours on the Utah Act and Rule
- B. 3 hours of ethics and 1 hour on the Utah Act and Rule
- C. 4 hours of ethics and 4 hours on the Utah Act and Rule
- D. 2 hours of ethics only

18. How many CPE hours are required at the first renewal after initial licensure?

- A. None
- B. Twenty
- C. Forty
- D. Eighty

19. The maximum number of excess CPE hours a licensee may carry forward to the next reporting period is:

- A. Twenty
- B. Forty
- C. Sixty
- D. There is no limit

20. Carried-forward CPE hours may be used to satisfy:

- A. Any subject requirement, including ethics
- B. The ethics requirement only
- C. General CPE hours only
- D. The laws and rules requirement only

21. The CPA and CPA Firm renewal date is:

- A. June 30 of each odd-numbered year
- B. September 30 of each even-numbered year
- C. December 31 of each even-numbered year
- D. December 31 of each odd-numbered year

22. A licensee may request a waiver of the CPE requirement for a period not exceeding:

- A. One year
- B. Two years
- C. Three years
- D. Five years

23. A licensee granted a CPE waiver must, within the six months immediately following its expiration, complete:

- A. 30 hours, including at least 16 in auditing and accounting
- B. 40 hours, including at least 8 in ethics
- C. 80 hours, including at least 16 in auditing and accounting
- D. 16 hours, including at least 3 in ethics

24. A firm engaged in the practice of public accounting must undergo a peer review at least once every:

- A. Year
- B. Two years
- C. Three years
- D. Five years

25. A firm seeking to extend the time for its peer review must submit the request:

- A. Orally, at any time before the review
- B. In writing, at least 30 days before the scheduled review date
- C. In writing, at least 90 days before the scheduled review date
- D. By February 1 of the year of review

26. The maximum peer review extension the Division may approve is:

- A. 30 days
- B. 90 days
- C. 180 days
- D. One year

27. When two firms merge, the new firm:

- A. Is assigned a new year of review
- B. Retains the year of review of the largest of the merged firms
- C. Retains the year of review of the smallest of the merged firms
- D. Is exempt from peer review for three years

28. A firm exempt from peer review because it does not perform services within the minimum-standards scope must:

- A. File a written exemption request every year
- B. Notify the Division of the exemption at the time of renewal of its registration
- C. Obtain Board approval in advance
- D. Do nothing; the exemption is automatic and requires no notice

29. To qualify for CPA emeritus status on an age basis, a licensee must be at least:

- A. 55
- B. 60
- C. 65
- D. 70

30. A CPA emeritus registrant:

- A. May practice public accountancy on a limited basis
- B. Must complete 40 hours of CPE per cycle
- C. May not practice public accountancy and is not required to meet CPE or peer review requirements
- D. Must undergo peer review but not CPE

31. Which status appears on the list of licenses that may be placed on inactive status?

- A. Certified public accountant
- B. Certified public accountant emeritus
- C. Certified public accountant firm
- D. None of the above

32. An individual reinstating an expired CPA license must generally complete how many hours of qualified CPE within the 12 months preceding the application?

- A. 40
- B. 60
- C. 80
- D. 120

33. Within those reinstatement hours, at least how many must be in accounting or auditing?

- A. 8
- B. 16
- C. 24
- D. 40

34. Successful completion of the AICPA Professional Ethics Examination counts as how many CPE hours toward the reinstatement requirement?

- A. Four
- B. Six
- C. Eight
- D. Sixteen

35. A license reinstated no later than how many days after expiration is retroactively reinstated to the date it expired?

- A. 30
- B. 60
- C. 90
- D. 120

36. An application for reinstatement filed 45 days after expiration requires:

- A. The renewal fee and a late fee
- B. The renewal fee and a reinstatement fee
- C. A complete new application for licensure
- D. No fee, only proof of CPE

37. Following action under Section 58-1-401, a license may not be reinstated within how many days unless the Division, in collaboration with the board, imposes other conditions?

- A. 30
- B. 60
- C. 90
- D. 180

38. The Division may not take disciplinary action for unprofessional or unlawful conduct unless it acts within how long after the conduct is reported?

- A. One year
- B. Two years
- C. Four years
- D. Ten years

39. A recipient who wishes to contest a citation must notify the Division in writing within:

- A. 10 calendar days
- B. 20 calendar days
- C. 30 calendar days
- D. 60 calendar days

40. Under the CPA rule's fine schedule, the range for a first offense is:

- A. \$100 – \$500
- B. \$250 – \$1,000
- C. \$500 – \$1,000
- D. \$1,000 – \$2,000

41. Unless otherwise specified in Title 58, a person who violates the unlawful conduct provisions is guilty of:

- A. An infraction
- B. A class B misdemeanor
- C. A class A misdemeanor
- D. A third degree felony

42. An applicant denied a license may request agency review by the executive director within how many days of notification?

- A. 15
- B. 20
- C. 30
- D. 60

43. A special appeals board consists of three members. Who serves as chair?

- A. The public member
- B. The member from the profession in question
- C. A resident lawyer currently licensed to practice law in Utah
- D. The Division director

44. For a CPA firm registration, a simple majority of ownership must be held by licensed CPAs, measured in:

- A. Financial interests only
- B. Voting rights only
- C. Both financial interests and voting rights
- D. Number of owners, regardless of interest

45. A CPA firm with four offices in Utah must:

- A. File one registration covering all locations
- B. Register each separate location separately
- C. Register only the principal office
- D. Register only offices that perform attest services

46. A CPA firm may use the name of a non-CPA individual in its firm name:

- A. Never, under any circumstance
- B. Only if that individual is an active participant in the firm
- C. Only if the individual is a former owner who was a CPA and has retired or is no longer active
- D. Whenever a majority of owners are CPAs

47. A licensee performs an audit for a client. Which is true about commissions?

- A. The licensee may receive a commission if it is disclosed in writing
- B. The licensee may not receive a commission for recommending a product or service to that client
- C. Commissions are permitted during the engagement but not afterward
- D. Commissions are permitted if the client consents

48. Which fee arrangement is expressly permitted?

- A. A contingent fee for preparing an amended tax return
- B. A contingent fee for a compilation a third party is expected to use, with no disclosure of lack of independence
- C. A fee that varies depending on the complexity of the service rendered
- D. A contingent fee for an examination of prospective financial information

49. A CPA licensed and practicing in Nevada wishes to serve a Utah client under mobility. What must the CPA file with the Division?

- A. A notice of intent and a fee
- B. An application for a temporary license
- C. Nothing — no notice, fee, or other submission is required
- D. A registration as an out-of-state firm

50. Statements, records, schedules, working papers, and memoranda made by a licensee in the course of professional service to a client are, absent an express agreement to the contrary:

- A. The property of the client
- B. The property of the licensee
- C. Jointly owned by licensee and client
- D. The property of the Division upon request

14 • Answer Key

#	Answer	Authority and explanation
1	B — 75%	R156-26a-302c(5)(b). Prov's handbook reports the cut score as 26 correct.
2	C — 90%	R156-26a-302c(5)(a). Note the two exams have different cut scores.
3	B	58-26a-201(1). Four licensed CPAs plus one public member — the Title 58 default.
4	C	58-1-202(1)(c). Citations, cease and desist orders, and collection are Division functions.
5	B	58-1-201(2)(a), (c). Four-year staggered terms; no more than two consecutive, then a two-year wait.
6	C — 2,000	58-26a-102(25). Supervised by a licensed CPA and generally accepted by the profession.
7	B — two years	R156-26a-302b(1). Two years × 2,000 hours = 4,000 supervised hours.
8	B	R156-26a-302b(2). It replaces one year, not the whole requirement.
9	C — 24	R156-26a-102(2). Or 36 quarter units, upper-division or graduate level.
10	B	R156-26a-102(2)(a). The five are financial accounting, auditing, taxation, managerial or cost accounting, and AIS or data analytics. Business law counts toward the <i>business</i> requirement.
11	C — 1.6	R156-26a-102(1)(b). Upper-division work is credited 1:1.
12	B — six	R156-26a-102(2)(b). Or nine quarter Academic Units.
13	B — CPAES	R156-26a-302a(5); R156-26a-302c(4).
14	B — the Board	R156-26a-302c(4). "If an applicant disputes CPAES's determination, the Board shall make the final determination."
15	B	R156-26a-102(8). Direct delivery from the institution, or an institution-sealed envelope.
16	C — 80	58-26a-304(1); R156-26a-303b(1).
17	B	R156-26a-303b(2). Three ethics hours; one hour on Chapter 26a and R156-26a. Reversing them is the classic distractor.
18	A — none	R156-26a-303b(1). "Except that no CPE hours are required at the first renewal after initial licensure."
19	B — forty	R156-26a-303b(6)(a).
20	C	R156-26a-303b(6)(b). Carried and current hours qualify as general hours only for the current period.
21	C	R156-1-308a Table 1; R156-26a-303b(5)(a). The same date is the CPE reporting deadline.
22	C — three years	58-26a-304(4)(a). Granted upon a showing of good cause.
23	A	

		58-26a-304(4)(c). 30 hours within six months, at least 16 focused on auditing and accounting.
24	C — three years	R156-26a-303a(2)(c). At the firm's own expense and commensurate with its practice.
25	B	R156-26a-303a(12)(b)-(c). In writing, to the Division with a copy to the administering organization, at least 30 days ahead — or it is not considered.
26	C — 180 days	R156-26a-303a(12)(a). Measured from the originally scheduled date.
27	B	R156-26a-303a(11)(a). The largest firm's year of review controls.
28	B	R156-26a-303a(10)(a). And if it later begins such services, peer review must begin within 18 months of its initial report.
29	B — 60	58-26a-307(1)(a)(i). Disability or a board finding of good cause are alternative triggers.
30	C	58-26a-307(3)-(4). No practice, no CPE, no peer review.
31	B	R156-1-305(1)(e). Only the emeritus registration is listed — a plain CPA license cannot go inactive.
32	C — 80	R156-26a-307(1)(b). Completed within the 12 months preceding the application.
33	B — 16	R156-26a-307(1)(b)(i). In accounting or auditing or both.
34	C — eight	R156-26a-307(1)(b)(ii)(B).
35	D — 120	58-1-308(5)(c). "Except as otherwise provided by rule."
36	B	R156-1-308g(2). Days 31 through two years: renewal fee plus reinstatement fee. Within 30 days it would be renewal fee plus late fee.
37	C — 90	58-1-403.
38	C — four years	58-1-401(6)(a). The separate outer limit is ten years after the conduct occurred.
39	B — 20 calendar days	58-26a-501(2)(b)(iii); 58-1-502(2)(d)(iii). Otherwise the citation becomes a final order.
40	C	R156-26a-501 Table 1. The statute says "up to \$1,000"; the rule narrows the range to \$500-\$1,000.
41	C	58-1-502(1)(a). A class A misdemeanor.
42	C — 30	58-1-402(1)(a).
43	C	58-1-402(2)(c). The lawyer member chairs; the professional member may not be on that profession's board.
44	C	58-26a-302(3)(a)(iii). Both financial interests and voting rights.
45	B	58-26a-302(3)(b). Each separate Utah location registers separately.
46	C	R156-26a-502(4). Retired or inactive former CPA owners are the only exception.
47	B	58-26a-502(2)(a)(i). An audit triggers the flat prohibition — disclosure does not cure it.

48	C	58-26a-502(3)(e). A fee may vary with complexity; the other three are prohibited contingent-fee arrangements.
49	C	58-26a-305(2)(a). But the CPA consents to Utah's jurisdiction and discipline, and the home license must be active, unrestricted, and in good standing.
50	B	58-26a-601(1). They are the licensee's property — and may not be sold, traded, or bequeathed outside the listed successors without client consent.

PART TWO

Official Source Documents

The four documents that follow are reproduced in full, exactly as published by the State of Utah. These are the references the Utah Laws and Rules Examination is written from and the only references permitted during the exam.

A Utah Code 58-26a · **B** R156-26a · **C** Utah Code 58-1 · **D**
R156-1



Utah Code Title 58, Chapter 26a

Certified Public Accountant Licensing Act

The CPA-specific statute. Current through the 2026 General Session.

Source: Utah State Legislature, le.utah.gov

21 of the 35 exam questions (60%) come from this chapter and Tab B.

Chapter 26a

Certified Public Accountant Licensing Act

Part 1

General Provisions

58-26a-101 Title.

This chapter is known as the "Certified Public Accountant Licensing Act."

Enacted by Chapter 261, 2000 General Session

58-26a-102 Definitions.

In addition to the definitions in Section 58-1-102, as used in this chapter:

- (1) "Accounting experience" means applying accounting and auditing skills and principles that are taught as a part of the professional education qualifying a person for licensure under this chapter and generally accepted by the profession, under the supervision of a licensed certified public accountant.
- (2) "AICPA" means the American Institute of Certified Public Accountants.
- (3)
 - (a) "Attest and attestation engagement" means providing any or all of the following services:
 - (i) an audit or other engagement to be performed in accordance with the Statements on Auditing Standards (SAS);
 - (ii) a review of a financial statement to be performed in accordance with the Statements on Standards for Accounting and Review Services (SSARS);
 - (iii) an examination of prospective financial information to be performed in accordance with the Statements on Standards for Attestation Engagements (SSAE);
 - (iv) an examination, review, or agreed upon procedures engagement to be performed in accordance with the Statements on Standards for Attestation Engagements (SSAE), other than an examination described in Subsection (3)(a)(iii); or
 - (v) an engagement to be performed in accordance with the standards of the PCAOB.
 - (b) The division shall adopt the standards specified in this definition:
 - (i) that are developed for general application by recognized national accountancy organizations such as the AICPA and the PCAOB; and
 - (ii) by reference under the division's rulemaking authority in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (4) "Board" means the Utah Board of Accountancy created in Section 58-26a-201.
- (5) "Certified Public Accountant" or "CPA" means an individual currently licensed by this state or any other state, district, or territory of the United States of America to practice public accountancy or who has been granted a license as a certified public accountant under prior law or this chapter.
- (6) "Certified Public Accountant firm" or "CPA firm" means a qualified business entity holding a valid registration as a Certified Public Accountant firm under this chapter.
- (7)
 - (a) "Client" means the person who retains a licensee for the performance of one or more of the services included in the definition of the practice of public accountancy.
 - (b) "Client" does not include a CPA's employer when the licensee works in a salaried or hourly rate position.

- (8) "Compilation" means providing a service to be performed in accordance with Statements on Standards for Accounting and Review Services (SSARS) that is presenting, in the form of financial statements, information that is the representation of management or owners, without undertaking to express any assurance on the statements.
- (9) "Experience" means:
 - (a) accounting experience; or
 - (b) professional experience.
- (10) "Licensee" means the holder of a current valid license issued under this chapter.
- (11) "NASBA" means the National Association of State Boards of Accountancy.
- (12) "PCAOB" means the Public Company Accounting Oversight Board.
- (13) "Practice of public accounting" means, while holding oneself out as a certified public accountant, offering to perform or performing one or more kinds of services involving the use of auditing or accounting skills, including issuing reports or opinions on financial statements, performing attestation engagements, performing one or more kinds of advisory or consulting services, preparing tax returns, or furnishing advice on tax matters for a client.
- (14) "Peer review" means a board approved study, appraisal, or review of one or more aspects of the attest and compilation services rendered by a licensee in the practice of public accounting, performed by a licensee holding an active license in this or another state who is not affiliated with the licensee being reviewed.
- (15) "Principal place of business" means the office location designated by the licensee for purposes of licensure by endorsement.
- (16) "Professional experience" means experience lawfully obtained while licensed as a certified public accountant in another state, recognized by rule, in the practice of public accountancy performed for a client, which includes expression of assurance or opinion.
- (17) "Qualified business entity" means a sole proprietorship, corporation, limited liability company, or partnership engaged in the practice of public accountancy.
- (18) "Qualified continuing professional education" means a formal program of education that contributes directly to the professional competence of a certified public accountant.
- (19) "Qualifying examinations" means:
 - (a) the AICPA Uniform CPA Examination;
 - (b) the AICPA Examination of Professional Ethics for CPAs;
 - (c) the Utah Laws and Rules Examination; and
 - (d) any other examination approved by the board and adopted by the division by rule in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (20)
 - (a) "Report," when used with reference to financial statements, means:
 - (i) an opinion, report, or other form of language that:
 - (A) states or implies assurance as to the reliability of the attested information or compiled financial statements; or
 - (B) implies that the individual or firm issuing the report has special knowledge or competence in accounting or auditing and specifically includes compilations and reviews; such an implication of special knowledge or competence may arise from use by the issuer of the report of names or titles indicating that the person or firm is a public accountant or auditor, or from the language of the report itself; or
 - (ii) any disclaimer of opinion:
 - (A) that is conventionally understood to imply any positive assurance as to the reliability of the attested information or compiled financial statements referred to or language suggesting special competence on the part of the individual or firm issuing such language; and

- (B) the report includes any other form of language that is conventionally understood to imply such assurance or such special knowledge or competence.
- (b) "Report" does not include a financial statement prepared by an unlicensed person if:
- (i) that financial statement has a cover page that includes essentially the following language: "I (we) have prepared the accompanying financial statements of (name of entity) as of (time period) for the (period) then ended. This presentation is limited to preparing, in the form of financial statements, information that is the representation of management (owners). I (we) have not audited or reviewed the accompanying financial statements and accordingly do not express an opinion or any other form of assurance on them."; and
 - (ii) the cover page and any related footnotes do not use the terms "compilation," "review," "audit," "generally accepted auditing standards," "generally accepted accounting principles," or other similar terms.
- (21) "Review of financial statements" means providing a service in accordance with the Statements on Standards for Accounting and Review Services in which the accountant obtains limited assurance as a basis for reporting whether the accountant is aware of any material modifications that should be made to the financial statements for the financial statements to be in accordance with the applicable financial reporting framework, primarily through the performance of inquiry and analytical procedures.
- (22) "Uniform Accountancy Act" means the model public accountancy legislation developed and promulgated by national accounting and regulatory associations that contains standardized definitions and regulations for the practice of public accounting as recognized by the division in collaboration with the board.
- (23) "Unlawful conduct" means the same as that term is defined in Sections 58-1-501 and 58-26a-501.
- (24) "Unprofessional conduct" means the same as that term is defined in Sections 58-1-501 and 58-26a-502 and as may be further defined by rule.
- (25) "Year of experience" means 2,000 hours of experience:
- (a) generally accepted by the profession; and
 - (b) under the supervision of a licensed certified public accountant.

Amended by Chapter 283, 2025 General Session

Part 2

Board

58-26a-201 Board.

- (1) There is created the Utah Board of Accountancy consisting of four licensed certified public accountants and one member of the general public.
- (2) The board shall be appointed and shall serve in accordance with Section 58-1-201.
- (3)
 - (a) The board shall perform the duties and responsibilities described in Sections 58-1-202 and 58-1-203.
 - (b) The board shall designate one of the board's members on a permanent or rotating basis to:
 - (i) assist the division in reviewing complaints concerning the unlawful or unprofessional conduct of a licensee; and
 - (ii) advise the division in the division's investigation of these complaints.

- (4) A board member who has, under Subsection (3), reviewed a complaint or advised in the investigation of the complaint may be disqualified from participating with the board when the board serves as a presiding officer of an administrative proceeding concerning the complaint.

Amended by Chapter 283, 2025 General Session

Part 3 Licensing

58-26a-301 Licensure or registration required -- License and registration classifications.

- (1)
- (a) A license is required for an individual to engage in the practice of public accounting, except as specifically provided in Section 58-26a-305 or 58-1-307.
 - (b) Registration with the division is required for a qualified business entity to engage in the practice of public accounting, except as specifically provided in Section 58-26a-305 or 58-1-307.
- (2)
- (a) The division shall issue to an individual who qualifies under this chapter a license in the classification of Certified Public Accountant.
 - (b) The division shall issue to a qualified business entity which qualifies under this chapter a registration in the classification of Certified Public Accountant Firm.

Enacted by Chapter 261, 2000 General Session

58-26a-302 Qualifications for licensure and registration -- Licensure by endorsement.

- (1) Each applicant for licensure under this chapter as a certified public accountant shall:
- (a) submit an application in a form the division approves by rule;
 - (b) pay a fee the department determines in accordance with Section 63J-1-504;
 - (c) submit a certified transcript of credits from an accredited institution acceptable to the board showing:
 - (i) successful completion of:
 - (A) a bachelor's degree or a master's degree in accounting at a college or university approved by the board; or
 - (B) at least a bachelor's degree with a concentration in accounting and business as the division defines by rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, at a college or university the board approves; and
 - (ii) compliance with any other education requirements the division makes by rule made in collaboration with the board in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (d) submit evidence of accounting experience in a form the division approves by rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (e) submit evidence of having successfully completed the qualifying examinations in accordance with Section 58-26a-306; and
 - (f) submit to an interview as the board may request for the purpose of examining the applicant's competence and qualifications for licensure.
- (2)

- (a) The division may issue a license under this chapter to an individual who holds a license as a certified public accountant issued by another state if the applicant for licensure by endorsement:
 - (i) submits an application in a form the division approves by rule;
 - (ii) pays a fee the department determines in accordance with Section 63J-1-504;
 - (iii) submits to an interview as the board may request for the purpose of examining the applicant's competence and qualifications for licensure; and
 - (iv)
 - (A)
 - (I) shows evidence of having passed the qualifying examinations; and
 - (II)
 - (Aa) meets the requirements for licensure that were applicable in this state at the time of the issuance of the applicant's license by the state from which the original licensure by satisfactorily passing the AICPA Uniform CPA Examination was issued; or
 - (Bb) had four years of professional experience after passing the AICPA Uniform CPA Examination upon which the original license was based, within the 10 years immediately preceding the application for licensure by endorsement; or
 - (B) shows evidence that the applicant's education, examination record, and experience are substantially equivalent to the requirements of Subsection (1), as the division requires by rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (b) This Subsection (2) applies only to an individual seeking to obtain a license issued by this state and does not apply to an individual practicing as a certified public accountant in the state under Subsection 58-26a-305(1).
- (3)
 - (a) Each applicant for registration as a certified public accountant firm shall:
 - (i) submit an application in a form the division approves by rule;
 - (ii) pay a fee the department determines in accordance with Section 63J-1-504;
 - (iii) have, notwithstanding any other provision of law, a simple majority of the ownership of the certified public accountant firm, in terms of financial interests and voting rights of all partners, officers, shareholders, members, or managers, held by individuals who are certified public accountants, licensed under this chapter or another state of the United States of America, and the partners, officers, shareholders, members, or managers, whose principal place of business is in this state, and who perform professional services in this state hold a valid license issued under Subsection 58-26a-301(2) or the corresponding provisions of prior law; and
 - (iv) meet any other requirements the division makes in collaboration with the board, and in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
 - (b) Each separate location of a qualified business entity within the state seeking registration as a certified public accountant firm shall register separately.
 - (c) A certified public accountant firm may include owners who are not licensed under this chapter as outlined in Subsection (3)(a)(iii), provided that:
 - (i) the firm designates a licensee of this state who is responsible for the proper registration of the certified public accountant firm and identifies that individual to the division; and
 - (ii) all nonlicensed owners are active individual participants in the certified public accounting firm.

Amended by Chapter 64, 2026 General Session

58-26a-303 Term of license and registration -- Expiration -- Renewal.

- (1) The division shall issue each license and registration under this chapter in accordance with a two-year renewal cycle established by rule. The division may by rule extend or shorten a renewal cycle by as much as one year to stagger the renewal cycles it administers.
- (2) At the time of renewal a licensee shall show satisfactory evidence of each of the following renewal requirements:
 - (a) completion of qualified continuing education as required under Section 58-26a-304; and
 - (b) successful completion of a peer review meeting the requirements established by rule by the division in collaboration with the board.
- (3) Each license or registration automatically expires on the date shown on the license or registration unless it is renewed in accordance with Section 58-1-308.

Enacted by Chapter 261, 2000 General Session

58-26a-304 Continuing education.

- (1) Except as provided in Subsections (2) through (4), as a condition precedent for a license renewal, each licensee shall, during each two-year licensure cycle or other cycle defined by rule, complete 80 hours of qualified continuing professional education in accordance with standards defined by rule.
- (2) A person practicing as a certified public accountant in the state under Subsection 58-26a-302(2) and who is seeking a license renewal in this state shall be determined to have met the continuing professional education requirement of this section by:
 - (a) meeting the continuing professional education requirements for license renewal in the state in which the licensee's principal place of business is located;
 - (b) demonstrating compliance with the requirements of Subsection (2)(a) by signing a statement to that effect on the renewal application of this state;
 - (c) complying with all continuing professional education requirements described in Subsection (1) if the state where the person's principal place of business is located has no continuing professional education requirements for license renewal;
 - (d) completing at least one hour of continuing professional education that covers:
 - (i) this chapter; and
 - (ii) Utah Administrative Code, R156-26a, Utah Certified Public Accountant Licensing Act Rule; and
 - (e) completing at least three hours of ethics education that cover one or more of the following areas:
 - (i) the AICPA Code of Professional Conduct;
 - (ii) case-based instruction focusing on real-life situational learning;
 - (iii) ethical dilemmas faced by accounting professionals; or
 - (iv) business ethics.
- (3) If a renewal cycle is extended or shortened under Section 58-26a-303, the continuing education hours required for license renewal under this section shall be increased or decreased proportionally.
- (4)
 - (a) A licensee may request a waiver of the requirements of Subsection (1) for a period not exceeding three years by:
 - (i) submitting an application for waiver in a form approved by the division; and

- (ii) demonstrating that the licensee will be engaged in activities or be subject to circumstances which prevent the licensee from meeting the requirements of Subsection (1) during the period of the waiver.
- (b) An application for waiver shall be granted upon a showing of good cause.
- (c) A licensee who is granted a waiver under this section shall complete 30 hours of continuing professional education within the six months immediately following the expiration of the waiver that includes at least 16 hours of continuing professional education focusing on auditing and accounting.

Amended by Chapter 229, 2017 General Session

58-26a-305 Exemptions from licensure.

- (1) In addition to the exemptions from licensure in Section 58-1-307, the following may engage in acts included within the definition of the practice of public accountancy, subject to the stated circumstances and limitations, without being licensed under this chapter:
 - (a) an individual that:
 - (i) holds a valid license or permit in good standing as a certified public accountant or equivalent issued by another state, if at the time the individual was licensed, the individual showed evidence of having successfully completed the equivalent of qualifying examinations required for that state; and
 - (ii) consents, as a condition of the grant of the privilege described in Subsection (1)(a)(i):
 - (A) to personal and subject matter jurisdiction and disciplinary authority of the division;
 - (B) to comply with this chapter and the rules made under this chapter;
 - (C) that in the event the license from the state of the individual's principal place of business becomes invalid, the individual shall cease offering or rendering professional services in this state both individually and on behalf of the firm; and
 - (D) to the appointment of the state board which issued the individual's license as the individual's agent upon whom process may be served in an action or proceeding brought by the division against the individual;
 - (b) an officer, member, partner, or employee of any entity or organization who signs any statement or report in reference to the financial affairs of the entity or organization with a designation of that individual's position within the entity or organization;
 - (c) a public official or employee while performing the public official's or employee's official duties;
 - (d) an individual using accounting or auditing skills, including the preparation of tax returns, management advisory services, and the preparation of financial statements without the issuance of reports; or
 - (e) an employee of a CPA firm registered under this chapter or an assistant to a person licensed under this chapter, working under the supervision of a licensee, if:
 - (i) neither the employee or assistant nor the licensed employer or registered CPA firm represents that the unlicensed individual is a certified public accountant; and
 - (ii) no accounting or financial statements are issued in the unlicensed individual's name.
- (2)
 - (a) Notwithstanding any other provision of law, an individual who qualifies under Subsection (1)
 - (a) has all the privileges of a licensee of this state and may engage in acts included within the definition of the practice of public accountancy, whether in person or by mail, telephone, or electronic means, based on a practice privilege in this state, and no notice, fee, or other submission shall be provided by that person.

- (b) The division may revoke, suspend, or restrict an exemption granted under Subsection (1) (a), or place on probation or issue a public or private reprimand to a person exempted under those subsections for the reasons set forth in Subsection 58-1-401(2).

Amended by Chapter 283, 2025 General Session

58-26a-306 Examination requirements.

- (1) Before taking the qualifying examinations, an applicant shall:
 - (a) submit an application in a form approved by the division;
 - (b) pay a fee determined by the department under Section 63J-1-504;
 - (c) demonstrate completion of at least a bachelor's degree or the equivalent as described in Subsection 58-26a-302(1)(c); and
 - (d) be approved by the board, or an organization designated by the board, to take the qualifying examinations.
- (2) An individual shall sit for and meet the conditioning requirements of the AICPA Uniform CPA Examination as established by the AICPA.

Amended by Chapter 283, 2025 General Session

58-26a-307 CPA emeritus status -- Renewal of license.

- (1) A person currently licensed as a certified public accountant may, on any renewal date of that license, apply for and obtain a transfer of that license to a status of CPA emeritus registration if:
 - (a)
 - (i) the licensee is at least 60 years of age as of the date of renewal;
 - (ii) the licensee has a disability; or
 - (iii) the board finds other good cause for believing that the licensee will not return to the practice of public accountancy;
 - (b) the licensee makes an application for transfer of status and registration and pays a registration fee determined by the department under Section 63J-1-504;
 - (c) the licensee, on application for transfer, certifies that the licensee will not engage in the practice of public accountancy while in the status of CPA emeritus registration; and
 - (d) the licensee is in good standing as a CPA and not subject to any order of revocation, suspension, or probation.
- (2) Each CPA emeritus registration shall be issued in accordance with a two-year renewal cycle established by rule.
- (3) CPA emeritus registrants may not engage in the practice of public accountancy.
- (4) CPA emeritus registrants are not required to fulfill the continuing professional education or peer review provisions of this chapter.
- (5) Each CPA emeritus registrant is responsible for renewing the registration, according to procedures that the division establishes by rule in collaboration with the board in accordance with Section 58-1-308.
- (6) A CPA emeritus registrant may reinstate the CPA license by:
 - (a) submitting an application in a form prescribed by the division;
 - (b) paying a fee determined by the department under Section 63J-1-504; and
 - (c) showing evidence of having completed the continuing professional education requirement established by rule.

Amended by Chapter 366, 2011 General Session

Part 4

License Denial and Discipline

58-26a-401 Grounds for denial of license -- Disciplinary proceedings.

Grounds for refusing to issue a license to an applicant, for refusing to renew the license of a licensee, for revoking, suspending, restricting, or placing on probation the license of a licensee, for issuing a public or private reprimand to a licensee, and for issuing a cease and desist order shall be in accordance with Section 58-1-401.

Enacted by Chapter 261, 2000 General Session

Part 5

Unlawful and Unprofessional Conduct

58-26a-501 Unlawful conduct.

(1) "Unlawful conduct" includes:

- (a) using "certified public accountant," "public accountant," "CPA," or any other title, designation, words, letters, abbreviation, sign, card, or device tending to indicate that the individual is a certified public accountant, unless that individual:
 - (i) has a current license as a certified public accountant issued under this chapter; or
 - (ii) is exempt from licensure under Subsection 58-26a-305(1)(a);
- (b) a firm assuming or using "certified public accountant," "CPA," or any other title, designation, words, letters, abbreviation, sign, card, or device tending to indicate that the firm is composed of certified public accountants unless each office of the firm in this state:
 - (i) is registered with the division; and
 - (ii) meets the requirements of Subsections 58-26a-302(3)(a)(iii) and (iv);
- (c) signing or affixing to any accounting or financial statement the person's name or any trade or assumed name used in that person's profession or business, with any wording indicating that the person is an auditor, or with any wording indicating that the person has expert knowledge in accounting or auditing, unless that person is licensed under this chapter and all of the person's offices in this state for the practice of public accountancy are maintained and registered as provided in this chapter; and
- (d) except as provided in Section 58-26a-305, engaging in the following conduct if not licensed under this chapter to practice public accountancy:
 - (i) issuing a report on financial statements of any other person, firm, organization, or governmental unit; or
 - (ii) issuing a report using any form of language substantially similar to conventional language used by licensees respecting:
 - (A) a review of financial statements; or
 - (B) a compilation of financial statements.

(2)

- (a) Except as provided in Subsection (2)(c), if, upon inspection or investigation, the division concludes that a person has engaged in unlawful conduct and that disciplinary action is

appropriate, the division shall promptly issue a citation to the person in accordance with this chapter and any pertinent division rules.

(b) A citation issued under Subsection (2)(a) shall:

- (i) be in writing;
- (ii) describe with particularity the nature of the violation, including a reference to the statute or rule alleged to have been violated;
- (iii) state that the recipient must notify the division in writing within 20 calendar days from the day on which the recipient receives the citation if the recipient intends to contest the citation at a hearing conducted under Title 63G, Chapter 4, Administrative Procedures Act; and
- (iv) explain the consequences of failure to timely contest the citation or make payment of any fine assessed by citation within the time specified by the citation.

(c) The division may issue a notice instead of a citation.

(d) A citation issued as described in Subsection (2)(a) may be served:

- (i)
 - (A) upon a person upon whom a summons may be served in accordance with the Utah Rules of Civil Procedure; and
 - (B) may be made personally or upon the person's agent by a division investigator or by any person designated by the director; or
- (ii) by mail.

(e) If, within 20 calendar days from the date of the service of the citation described in Subsection (2)(a), the recipient of the citation fails to request a hearing to contest the citation, the citation becomes the final order of the division and is not subject to further agency review.

(f) The division may extend the time period described in Subsection (2)(e) for cause.

(g) The division may refuse to issue or renew, suspend, revoke, or place on probation the license of a licensee who fails to comply with a citation after the citation becomes final.

(h) The failure of an applicant for licensure to comply with a citation after the citation becomes final is grounds for denial of a license.

(i) The division may not issue a citation more than one year after the day on which the violation that is the subject of the citation is reported to the division.

(3)

(a) The division shall assess a fine under Subsection (2) according to the following:

- (i) for a first offense, a fine of up to \$1,000;
- (ii) for a second offense, a fine of up to \$2,000; and
- (iii) for any subsequent offense, a fine of up to \$2,000 for each day of continued offense.

(b) An action the division initiates for a first or second offense that has not resulted in a final order of the division may not preclude the initiation of any subsequent action for a second or subsequent offense during the pendency of the preceding action.

(4)

(a) The division may collect a fine that is not paid by:

- (i) referring the matter to a collection agency; or
- (ii) bringing an action in a court with jurisdiction.

(b) A county attorney or the attorney general shall provide legal assistance and advice to the director in an action to collect a fine.

(c) A court shall award reasonable attorney fees and costs to the prevailing party in an action brought by the division to collect a fine.

Amended by Chapter 283, 2025 General Session

58-26a-502 Unprofessional conduct.

(1) "Unprofessional conduct" includes:

- (a) undertaking an engagement when the licensee knows or should know that the licensee could not reasonably expect to complete it with professional competence;
- (b) making unauthorized disclosures of confidential information obtained in the practice of public accountancy;
- (c) engaging in any business or activity that creates a conflict of interest with a licensee's practice in the profession when the licensee knows or should know that it is a conflict of interest and the licensee does not fully disclose the conflict of interest in writing to all affected parties;
- (d) failing to meet the requirements for continuing professional education or peer review required under this chapter; or
- (e) issuing a report on financial statements of a client, other than a report in which a lack of independence is disclosed, or performing an attest engagement subject to the attestation standards of the American Institute of Certified Public Accountants when the licensee is not independent, in fact and appearance, to the client.

(2)

- (a) A licensee may not, for a commission, recommend or refer to a client a product or service, or for a commission recommend or refer a product or service to be supplied by a client, or receive a commission, when the licensee also performs for that client:
 - (i) an audit or review of a financial statement;
 - (ii) a compilation of a financial statement when the licensee expects, or reasonably might expect, that a third party will use the financial statement and the licensee's compilation report does not disclose a lack of independence; or
 - (iii) an examination of prospective financial information.
- (b) The prohibition under Subsection (2)(a) applies during:
 - (i) the period in which the licensee is engaged to perform any of the services listed in Subsection (2)(a); and
 - (ii) the period covered by any historical financial statements involved in any such listed services.
- (c) A licensee who is not prohibited under Subsection (2)(a) from performing services or receiving a commission and who is paid or expects to be paid a commission shall disclose that fact to any person or entity to whom the licensee recommends or refers a product or service to which the commission relates.
- (d) A licensee who accepts a referral fee for recommending or referring a service of a licensee to a person or entity or who pays a referral fee to obtain a client shall disclose the acceptance or payment to the client.

(3)

- (a) A licensee may not:
 - (i) perform for a contingent fee a professional service for, or receive a contingent fee from a client for whom the licensee or the licensee's firm performs:
 - (A) an audit or review of a financial statement;
 - (B) a compilation of a financial statement when the licensee expects, or reasonably might expect, that a third party will use the financial statement and the licensee's compilation report does not disclose a lack of independence; or
 - (C) an examination of prospective financial information; or
 - (ii) prepare an original or amended tax return or claim for a tax refund for a contingent fee for a client.
- (b) The prohibition in Subsection (3)(a) applies during:

- (i) the period in which the licensee is engaged to perform any of the services listed in Subsection (3)(a); and
- (ii) the period covered by any historical financial statements involved in the listed services.
- (c) Except as stated in Subsections (3)(d) and (e), a contingent fee is a fee established for the performance of a service pursuant to an arrangement in which no fee will be charged unless a specified finding or result is attained, or in which the amount of the fee is otherwise dependent upon the finding or result of the service.
- (d) Solely for the purposes of this Subsection (3), fees are not regarded as being contingent if fixed by courts or other public authorities, or in tax matters, if determined based on the results of judicial proceedings or the findings of a governmental agency.
- (e) A licensee's fee may vary depending, for example, on the complexity of service rendered.

Amended by Chapter 265, 2008 General Session

Part 6

Regulatory and Operating Standards

58-26a-601 Ownership of statements, records, schedules, working papers, and memoranda made by licensee.

- (1) All statements, records, schedules, working papers, and memoranda made by a licensee under this chapter, incident to or in the course of professional service to a client, are the property of the licensee, in the absence of any express agreement between the licensee and the client to the contrary.
- (2) A licensee may not sell, trade, or bequeath statements, records, schedules, working papers, or memoranda without the consent of the client or the client's personal representative or assignee to anyone other than another licensee or one or more surviving partners or shareholders or new partners or shareholders of the licensee or any combined or merged CPA firm or successors-in-interest to the CPA firm.

Enacted by Chapter 261, 2000 General Session

58-26a-602 Privity.

A licensee, a CPA firm registered under this chapter, and any employee, partner, member, officer, or shareholder of a licensee or CPA firm are not liable to persons with whom they are not in privity of contract for civil damages resulting from acts, omissions, decisions, or other conduct in connection with professional services performed by that person, except for:

- (1) acts, omissions, decisions, or conduct that constitute fraud or intentional misrepresentations; or
- (2) other acts, omissions, decisions, or conduct, if the person performing the professional services:
 - (a) knew that a primary intent of the client was for the professional services to benefit or influence the particular person seeking to establish liability; and
 - (b) identified in writing to the client that the professional services performed on behalf of the client were intended to be relied upon by the particular person seeking to establish liability.

Enacted by Chapter 261, 2000 General Session

B

Utah Administrative Code R156-26a

Certified Public Accountant Licensing Act Rule

DOPL's implementing rule for CPAs. Date of last change: July 8, 2026.

Source: Utah Office of Administrative Rules, adminrules.utah.gov

Read this alongside Tab A — the rule supplies the operational detail the statute delegates.

R156. Commerce, Professional Licensing.

R156-26a. Certified Public Accountant Licensing Act Rule.

R156-26a-101. Title - Authority - Organization.

- (1) This rule is known as the "Certified Public Accountant Licensing Act Rule."
- (2) This rule is adopted by the Division under the authority of Subsection 58-1-106(1)(a) to enable the Division to administer Title 58, Chapter 26a, Certified Public Accountant Licensing Act.
- (3) The organization of this rule and its relationship to Rule R156-1 is as described in Section R156-1-101.

R156-26a-102. Definitions.

Terms used in this rule are defined in Title 58, Chapter 1, Division of Professional Licensing Act, and Title 58, Chapter 26a, Certified Public Accountant Licensing Act. In addition:

- (1) "Academic Unit" means the number of semester or quarter credit hours awarded by a nationally or regionally accredited academic program.
 - (a) One semester or quarter hour awarded for upper division academic work shall be credited as one Academic Unit.
 - (b) One semester or quarter hour awarded for post graduate academic work shall be credited as 1.6 Academic Units.
- (2) "Accounting Coursework Requirements" as used in Subsection R156-26a-302a(1)(b) means:
 - (a) 24 semester Academic Units or 36 quarter Academic Units in upper division or graduate-level accounting courses that includes at least one course in each of the following subjects:
 - (i) financial accounting;
 - (ii) auditing;
 - (iii) taxation;
 - (iv) managerial or cost accounting; and
 - (v) accounting information systems or data analytics.
 - (b) An accounting internship may satisfy up to six semester Academic Units or nine quarter Academic Units under Subsection R156-26a-102(2)(a).
- (3) "Administering organization" means an organization approved by the Division and the Board to administer peer reviews in the peer review program.
- (4) "AICPA" means the Association of International Certified Professional Accountants.
- (5) "AICPA Uniform CPA Examination" means the Uniform CPA Examination approved and administered by the AICPA and NASBA.
- (6) "AICPA Examination of Professional Ethics for CPAs" means the professional ethics examination for CPA's approved and administered by the AICPA and NASBA.
- (7) "Business Coursework Requirements" as used in Subsection R156-26a-302a(1)(b) means 12 semester or 18 quarter Academic Units in business-related coursework that:
 - (a) may be earned through lower division, upper division, or post graduate-level coursework;
 - (b) cannot be used to satisfy the Accounting Coursework Requirements under Subsection R156-26a-102(2); and
 - (c) focuses on business-related concepts, regardless of course name, including coursework in:
 - (i) accounting, subject to Subsection R156-26a-102(3)(b);
 - (ii) business administration;
 - (iii) business communications;
 - (iv) business ethics;
 - (v) business law;
 - (vi) business logistics and supply chain management;
 - (vii) business leadership and management;
 - (viii) business project management;
 - (ix) business information systems;
 - (x) economics;
 - (xi) finance;
 - (xii) human resources;
 - (xiii) introduction to financial or managerial accounting;
 - (xiv) marketing;
 - (xv) statistics and quantitative methods; or
 - (xvi) taxation.
- (8) "Certified transcript" under Subsection 58-26a-302(1)(c) shall mean an applicant's official academic transcript which has been:
 - (a) Directly mailed, electronically sent, or otherwise delivered directly from the academic institution to the Division; or
 - (b) Delivered to the Division in an envelope sealed by the academic institution.
- (9) (CPAES) means the CPA Examination Services of the NASBA.
- (10) "CPE" means qualified continuing professional education as under Section 58-26a-304.
- (11) "CPE Audit Service" means the online continuing professional education reporting system administered by NASBA.

(12) "Home jurisdiction" means the jurisdiction where a CPA or CPA firm is licensed and their principal place of business is located.

(13) "Individual mobility" means an individual CPA licensee:

- (a) meets the requirements of Subsection 58-26a-305(1)(a) to perform services through mobility in Utah; and
- (b) does not need to obtain a Utah CPA license or otherwise register with the Division.

(14) "Mobility" means a practice privilege included under Subsections 58-26a-305(1)(a) and (2) that generally permits a CPA who meets the requirements of Subsection 58-26a-305(1)(a)(i) to:

- (a) practice as a CPA in Utah under Section 58-26a-305 without obtaining a Utah CPA license; and
- (b) be subject to the conditions of Subsections 58-26a-305(1)(a)(ii) and (2) including Division discipline based on the mobility CPA's performance of services in Utah whether provided physically, electronically, or otherwise.

(15) "Mobility tool" as used in Subsection R156-26a-305(6) means the online tool developed by the AICPA and NASBA to help CPAs and CPA firms understand mobility and determine their eligibility for mobility and is available at <https://cpamobility.nasba.org>.

(16) "Nationally accredited" means an education program accredited by:

- (a) the Association to Advance Collegiate Schools of Business (AACSB); or
- (b) the Accreditation Council for Business Schools and Programs (ACBSP).

(17) NASBA means the National Association of State Boards of Accountancy.

(18) "Peer review program" or "PRP" means the AICPA's quality control program through which a CPA firm is periodically audited or tested by an external peer organization using professional standards to:

- (a) ensure the highest ethical and professional standards are being used to produce quality services;
- (b) provide accountability and transparency; and
- (c) protect the public.

(19) "Qualified continuing professional education (CPE)" means continuing education that meets the standards in Section R156-26a-303b.

(20) "Regionally accredited" means an education program accredited by:

- (a) the Northwest Commission on Colleges and Universities (NWCCU);
- (b) the North Central Association of Colleges and Schools (NCA);
- (c) the Middle States Commission on Higher Education (MSCHE);
- (d) the New England Commission on Higher Education (NECHE);
- (e) the Southern Association of Colleges and Schools Commission on Colleges (SACSCOC); or
- (f) the Western Association of Schools and Colleges (WASC).

(21) "Unprofessional conduct" is further defined, under Subsection 58-1-203(1)(e), in Section R156-26a-501.

(22) "Year of review" means the calendar year during which a peer review is to be conducted.

R156-26a-201. Advisory Peer Committees Created - Membership - Duties.

- (1) There is created under Subsection 58-1-203(1)(f) the Education Advisory Committee to the Board that shall:
- (a) consist of one full time faculty member from each college or university in Utah that has a nationally accredited or regionally accredited program, except the majority of these committee members shall be licensed CPAs;
 - (b) be appointed and serve under Section R156-1-205; and
 - (c) have the duty and responsibility to assist the Division in the Division's duties, functions, and responsibilities including:
 - (i) advising the Board on the acceptability of an educational institution including the institution's:
 - (A) accreditation;
 - (B) the acceptability by other state licensing boards;
 - (C) the faculty qualifications; and
 - (D) other educational resources;
 - (ii) assisting the Board to determine under Section R156-26a-306 if an applicant is qualified to sit for the AICPA Uniform CPA Examination; and
 - (iii) advising the Board regarding proposed rule changes.
- (2) There is created under Subsection 58-1-203(1)(f) the Advisory Peer Review Program Committee to the Board that shall:
- (a) consist of up to ten licensed CPAs;
 - (b) be appointed and serve under Section R156-1-205; and
 - (c) have the duty and responsibility to advise the Board on peer review matters including:
 - (i) reviewing the results of peer reviews by administering organizations; and
 - (ii) as the Advisory Peer Review Program Committee determines necessary, requiring corrective action of a firm that:
 - (A) has significant deficiencies noted in the peer review under Subsection R156-26a-201(2)(c)(i); and
 - (B) is in addition to any corrective actions required by the administering organization;
 - (iii) evaluating compliance of CPE programs;
 - (iv) performing random audits to determine compliance with the CPE requirements and the standards for CPE programs;

- (v) reviewing complaints made to the Division and recommending whether certain acts, practices, or omissions violate the ethical standards of the profession;
- (vi) providing technical assistance to the Division; and
- (vii) serving as expert witnesses at administrative hearings.

R156-26a-302a. Qualifications for CPA Licensure - Education Requirements.

- (1) Under Subsection 58-26a-302(1)(c), an applicant shall submit certified transcripts from a nationally accredited or regionally accredited institution showing completion of the educational requirements under Subsection 58-26a-302(1)(c)(i).
 - (a) An applicant who has completed a bachelors or masters program with a major in accounting or taxation shall be deemed to have met the education requirements of Subsection 58-26a-302(1)(c)(i).
 - (b) An applicant who has completed a bachelors, masters or other equivalent program with a major in any area of study other than accounting shall be deemed to have met the education requirements of Subsection 58-26a-302(1)(c)(i) if the submitted transcript shows successful completion of all Accounting Coursework Requirements under Subsection R156-26a-102(2) and Business Coursework Requirements under Subsection R156-26a-102(4).
 - (c) An applicant may complete the Accounting Coursework Requirements and Business Coursework Requirements as part of the bachelors, masters or other equivalent degree described or in addition to applicant's bachelors masters or other equivalent degree.
- (2) An applicant may request that the Division in collaboration with the Board or the Education Advisory Committee review the applicant's degree from an education program that is not nationally accredited or regionally accredited to determine the degree's equivalency to the educational requirement of Subsection R156-26a-302a(1).
- (3) The Division, in collaboration with the Board or the Education Advisory Committee may accept an applicant's education if the applicant:
 - (a) is licensed or was licensed as a certified public accountant in the United States under Subsection 58-26a-302(2)(a);
 or
 - (b) obtained:
 - (i) licensure equivalent to Subsection 58-26a-302(2)(a) in a jurisdiction outside of the United States; and
 - (ii) submits a verification from NASBA showing compliance with the terms of a current Mutual Recognition Agreement between the jurisdiction described in Subsection 302(3)(b)(i) and the International Qualifications Appraisal Board of NASBA.
- (4) The Division in collaboration with the Board or the Education Advisory Committee may make a written finding for cause that a particular nationally accredited, regionally accredited, or non-accredited institution or program is not acceptable.
- (5) Under Subsection 58-26a-306(1)(c), the Board designates CPAES as the organization that shall determine if an applicant has met the education requirements and is approved to sit for the AICPA Uniform CPA Examination. If an applicant disputes CPAES's determination, the Board shall make the final determination.

R156-26a-302b. Qualifications for CPA Licensure - Experience Requirements.

- (1) An applicant under Subsection 58-26a-302(1)(d) shall submit evidence of two years of accounting experience meeting the requirements of Subsection 58-26a-102(9).
- (2) A post graduate degree may be substituted for one year of experience under Subsection R156-26a-302b(1).
- (3) An applicant by endorsement under Subsection 58-26a-302(2) shall submit evidence that the applicant:
 - (a) is licensed as a certified public accountant in the United States; or
 - (b) has obtained:
 - (i) licensure equivalent to Subsection R156-26a-302b(1) in a jurisdiction outside of the United States; and
 - (ii) a verification from NASBA showing compliance with the terms of a current Mutual Recognition Agreement between the jurisdiction in Subsection R156-26a-302b(2)(a) and the International Qualifications Appraisal Board of NASBA.

R156-26a-302c. Qualifications for Licensure - Examinations.

This section describes the qualifications required by an applicant before taking the qualifying examination under Subsection 58-26-302(1)(e).

- (1) Under Subsection 58-26a-306(1)(a), the form of application approved by the Division is the application that CPAES requires to sit for the AICPA Uniform CPA Examination.
- (2) Under Subsection 58-26a-306(1)(b), the fee is the fee charged by CPAES. No additional fee is due to the Division.
- (3) Under 306(1)(c), an applicant shall submit a certified transcript showing:
 - (a) completion of a bachelors, masters, or higher degree with a major in accounting or taxation; or
 - (b) completion of:
 - (i) the Accounting Coursework Requirements described in Subsection R156-26a-102(2); and
 - (ii) the Business Coursework Requirements described in Subsection R156-26a-102(4).
 - (c) an applicant may fulfill any Accounting Coursework Requirements or Business Coursework Requirements as:
 - (i) part of a degree program;
 - (ii) separate from a degree program through a nationally accredited or regionally accredited institution; or
 - (iii) through an institution deemed equivalent to a nationally or regionally accredited institution under Subsection R156-26a-302a(2).

(4) Under Subsections 58-26a-306(1)(c) and (d), the Board designates CPAES as the organization that shall determine if an applicant has met the education requirements and is approved to sit for the AICPA Uniform CPA Examination. If an applicant disputes CPAES's determination, the Board shall make the final determination.

(5) An applicant for licensure as a certified public accountant shall also pass:

(a) the AICPA Examination of Professional Ethics for CPAs with a score of at least 90%; and

(b) the Utah (CPA) Laws and Rules Examination with a score of at least 75%.

(6) The Division in collaboration with the Board may accept testing of a person who holds a license as a certified public accountant or equivalent designation in a foreign country, if the applicant has obtained from NASBA verification of compliance with the terms of a current Mutual Recognition Agreement between the foreign country and the International Qualifications Appraisal Board of NASBA.

R156-26a-303a. Renewal Requirements - Peer Review Program.

(1)(a) Under Subsections 58-1-308(3)(b) and 58-26a-303(2)(b), a licensee shall meet the peer review program requirement as a condition for the renewal of a license issued under Title 58, Chapter 26a, Certified Public Accountant Licensing Act.

(b) If an administering organization performing a peer review of a licensee who is unwilling or unable to comply with or intentionally disregards professional standards, the administering organization shall refer the matter to the Division to determine the appropriate action.

(2) A firm engaged in the practice of public accounting shall undergo a peer review as defined in Subsection 58-26a-102(14) that is:

(a) performed at the firm's own expense;

(b) commensurate in scope with the firm's practice;

(c) performed at least once every three years; and

(d) administered by an accounting firm as the administering organization; and

(3)(a) The administering organization providing the peer review shall:

(i) assign the year of review for the licensee; and

(ii) as part of the peer review program:

(A) review the work product of the licensee; and

(B) monitor the licensee's compliance with professional standards.

(b) If the administering organization finds the licensee is non-compliant, then the administering organization shall:

(i) emphasize education; and

(iii) may include other remedial actions.

(4) This subsection describes the timing of the initial peer review process and role of regulatory bodies performing peer review.

(a) Within 18 months after the administering organization issues its initial report as defined in Subsection 58-26a-102(20), the administering organization shall assign a deadline to start the initial peer review.

(b) the role of regulatory bodies performing peer reviews shall be as follows:

(i) A regulatory body may perform a portion of the peer review if the Board approves the regulatory body as an administering organization.

(ii) The peer review performed by a regulatory authority under Subsection R156-26a-303(4)(b)(i) does not satisfy the peer review requirement unless the regulatory body fulfills the other standards in this rule.

(5) This subsection describes the assignment of peer reviewers or inspectors.

(a) A firm scheduled for peer review as defined in Subsection 58-26a-102(14) shall engage a reviewer qualified to conduct the peer review.

(b) A regulatory body shall assign the inspector.

(6) This subsection describes the qualifications of a peer reviewer.

(a) A peer reviewer shall provide evidence to the administering organization that the peer reviewer:

(i) has been accepted as a peer reviewer by the AICPA; or

(ii) meets the qualifications required by the AICPA to qualify as a peer reviewer.

(b) A peer reviewer shall be licensed or hold a permit to practice as a CPA in Utah or in another jurisdiction of the United States.

(c) The administering organization shall approve each reviewer for a peer review that is not administered by the AICPA.

(d) A regulatory body shall determine the qualifications of inspectors.

(7) This subsection describes the minimum standards for peer reviews.

(a)(i) A peer reviewer shall conduct each peer review according to the Standards for Performing and Reporting on Peer Reviews promulgated by the AICPA, effective June 1, 2023, which are incorporated by reference.

(ii) The requirement under Subsection R156-26a-303a(7)(a) does not require a firm or licensee to become a member of the AICPA or another administering organization.

(b) The Board may review the standards used by the regulatory body to determine if those standards are sufficient to satisfy all or part of the peer review requirements.

(8) If an administering organization finds that a peer review was not performed in accordance with this rule or the peer review results in a pass with deficiencies or fail report, the Peer Review Committee may require remedial action to assure that the review or performance of the CPA or CPA firm being reviewed meets the objectives of the peer review program.

(9) This subsection describes the peer review standards for multi-state CPA firms.

(a) For a multi-state firm, the Division may accept a peer review based solely upon work conducted by a peer reviewer outside of Utah as satisfying the requirement to undergo peer review under this rule, if:

(i) the peer review is conducted during the year scheduled or rescheduled under Subsection R156-26a-303a(12);

(ii) the peer review is performed in accordance with requirements equivalent to those of Utah;

(iii) the peer review:

(A) studies, evaluates, and reports on the quality control system of the firm as a whole in the case of system reviews;

or

(B) results in an evaluation and report on selected engagements in the case of engagement reviews;

(iv) the firm's internal inspection procedures require that the firm's personnel from another office outside the state perform the inspection of the office located in Utah not less than once in each three-year period; and

(v) at the conclusion of the peer review, the peer reviewer issues a report equivalent to that required by Subsection R156-26a-303a(7) or in the case of an approved regulatory body, a report is issued under their standards.

(b) A multi-state firm seeking approval under Subsection R156-26a-303a(9)(a) shall submit an application to the administering organization by February 1 of the year of review that establishes the peer review it proposes to undergo meets the requirements of Subsection R156-26a-303a(7).

(10) This subsection describes the requirements for a firm to be exempt from peer review.

(a) A firm that does not perform services encompassed in the scope of minimum standards as set out in Subsection R156-26a-303a(7)(a) or (b) is exempt from peer review and shall notify the Division of the exemption at the time of renewal of its registration.

(b) A firm exempt under Subsection R156-26a-303a(10)(a) that begins providing these services shall begin a peer review within 18 months of the date of the issuance of its initial report as defined in Subsection 58-26a-102(16).

(11) This subsection describes the peer review obligations of firms following consolidations, mergers, and divisions.

(a) If two or more firms are merged or sold and combined, the new firm shall retain the year of review of the largest of the firms that are merged or sold and combined.

(b) If a firm is divided, each new firm shall retain the year of review of the original firm, except if the year of review is less than 12 months after the original firm was divided, then a new year of review shall be assigned.

(c) Upon application to the administering organization and a showing of hardship caused solely by compliance with Subsection R156-26a-303a(12), the Division may authorize a change in a firm's year of review.

(12) This subsection describes the process for extending the time for a peer review.

(a) If a firm can demonstrate that the time established for the conduct of a peer review will create an unreasonable hardship upon the firm, the Division may approve an extension of up to 180 days from the date the peer review was originally scheduled.

(b) A firm's request for extension under Subsection R156-26a-303a(12)(a) shall:

(i) be in writing;

(ii) be submitted to the Division; and

(ii) include a copy to the administering organization responsible for administering the firm's peer review;

(c) The firm shall send the request under Subsection R156-26a-303a(12)(a) to the Division and to the administering organization at least 30 days before the date of scheduled review or the request will not be considered; and

(d) If the Division approves an extension, the Division shall notify the administering organization of the extension.

(13) This subsection describes the file retention requirements for the administering organization.

(a) Peer review documentation necessary to establish that each peer review was performed in conformity with peer review standards adopted by the Board including:

(i) the peer review working papers;

(ii) the peer review report;

(iii) comment letters and related correspondence indicating the firm's concurrence or nonconcurrence; and

(iv) any proposed remedial actions and related implementation; and

(b) Peer review documentation under Subsection (13)(a) for the longer of:

(i) 120 days; or

(ii) the administering organization's retention schedule.

(14) This subsection describes the allocation of costs associated with peer reviews.

(a) The costs associated with a firm-on-firm review shall be:

(i) negotiated between the firm and the reviewer; and

(ii) paid directly to the reviewer.

(b) The administering organization shall:

(i) set the costs associated with committee assigned review team (CART);

(ii) collect the fees associated with committee assigned review team (CART) reviews; and

(iii) pay the reviewer.

(c) The costs associated with the administration of the review process shall be:

- (i) paid from fees charged to the firms;
- (ii) collected by the administering organization; and
- (ii) based on a fee schedule included in the administering organization's proposal which:
 - (A) specifies how much shall be paid each year; and
 - (B) is based on firm size.

(15) If requested by the Peer Review Program Committee or the technical reviewer performing a peer review, a CPA or CPA firm shall allow access to confidential documents including financial statements, working papers, or other documents to verify that the peer review is performed according to professional standards.

R156-26a-303b. Continuing Professional Education (CPE).

This section describes the qualified CPE requirements under Section 58-26a-304.

(1) A CPA shall complete at least 80 hours of CPE during each two-year licensure cycle ending on December 31 of each even-numbered year, except that no CPE hours are required at the first renewal after initial licensure.

(2) As part of a CPA's 80 hours of CPE, a CPA shall complete:

(a) at least one hour that covers Title 58, Chapter 26a, the Certified Public Accountant Licensing Act, and Rule R156-26a, the Certified Public Accountant Licensing Act Rule; and

(b) at least three hours of ethics education that covers at least one of the following areas:

- (i) the AICPA Code of Professional Conduct;
- (ii) case-based instruction focusing on real-life situational learning;
- (iii) ethical dilemmas faced by accounting professionals; or
- (iv) business ethics.

(3) This subsection describes the duties of a CPA to maintain knowledge, skills, and abilities.

(a) A CPA shall maintain current knowledge, skills, and abilities in each area in which the CPA provides services to provide services in a competent manner.

(b) A CPA may be required to obtain more than the 80 hours of CPE credits required under Section 58-26a-304 to meet the requirements of Subsection (3)(a).

(4) A CPA licensed under this rule shall complete the 80 hours of CPE required under Subsection (2) through courses that meet the requirements of the Statement on Standards for Continuing Professional Education (CPE) Programs, revised January 2024, that is published by AICPA and NASBA, which is incorporated by reference.

(5) This subsection describes CPE reporting requirements to the Division.

(a) The license renewal deadline and the CPE hours reporting period deadline shall be December 31 of each even-numbered year.

(b) Except as otherwise authorized by the Division, a licensee shall enter each earned CPE hour into the CPE Audit Service for online reporting and auditing of CPE compliance.

(c) A licensee applying for license renewal shall provide evidence to the Division that the licensee has met the CPE hours requirements under Section 58-26a-304 and this section.

(d) At the time of application for reinstatement, an individual or firm applying for license reinstatement shall provide evidence to the Division that the individual or firm has met the CPE hour requirements under Section R156-26a-307.

(e) If a licensee provides evidence to the Division that the licensee has met the CPE hour requirements under Section 58-26a-304 and this section and renews the license before December 31 of an even-numbered year, then any additional CPE hour completed by that licensee through the remainder of the even-numbered year may be reported and carried forward toward the next succeeding CPE reporting period subject to Subsection (6).

(6) This subsection describes the carry forward provisions of the CPE program.

(a) A licensee who completes more than the required hours of CPE during the reporting period may carry forward up to 40 hours to the next succeeding reporting period.

(b) CPE hours obtained in the current reporting period and CPE hours carried forward from the previous reporting period shall qualify as general CPE hours only for the current reporting period.

(7) This subsection describes the impact of a CPA to failing to comply with CPE requirements.

(a) A licensee who fails to complete the required minimum CPE hours by the reporting deadline may not renew the license until the licensee completes the required CPE hours and reports the CPE hours to the Division.

(b)(i) Under Subsection 58-26a-304(4), a licensee may request that the Division in collaboration with the Board waive the CPE hours requirements or grant an extension for CPE hours on the basis that the licensee was not able to complete the continuing professional education due to medical condition or a related condition confirmed in writing by a qualified health care provider.

(ii) The qualified health care provider under Subsection (7)(b)(i) shall include the following in the written medical confirmation:

(A) the beginning and ending dates during which the licensee's medical condition would have prevented the licensee from completing the CPE hours;

(B) the extent of the licensee's medical condition; and

(C) the effect that the licensee's medical condition had upon the ability of the licensee to continue to engage in the practice of accountancy;

(iii) The Division in collaboration with the Board shall review the applicant's request for CPE waiver and shall consider whether the licensee continued to be engaged in the practice of accountancy on a full time or part time basis during the period specified by the medical confirmation under Subsections (7)(b)(i) and (ii).

(iv) If the Division waives the minimum CPE hours for a licensee, the licensee shall still be required to provide services:

- (A) in a competent manner; and
- (B) with current knowledge, skill, and ability.

(v) If a medical condition or another condition prevents a licensee from providing services that meet the requirements of Subsections (7)(b)(iv)(A) and (B), the CPA shall refrain from providing such services.

R156-26a-303c. Renewal Cycle.

(1) Under Subsection 58-1-308(1), the renewal date for the two-year renewal cycle for licensees under Title 58, Chapter 26a, Certified Public Accountant Licensing Act is established in Section R156-1-308a.

(2) Renewal procedures shall be in accordance with Sections R156-1-308a through R156-1-308l.

R156-26a-305. Exemptions from Licensure - Mobility.

(1) A CPA performing services in Utah through individual mobility shall hold a license in the home jurisdiction that is:

- (a) active;
- (b) unrestricted; and
- (b) in good standing.

(2) A CPA performing services through mobility shall only perform the same level of services, attest or non-attest, in the mobility jurisdiction as they are permitted to perform in their home jurisdiction.

(3) A CPA firm not licensed in Utah may perform services through mobility in Utah as a person exempt from licensure pursuant to Subsection 58-26a-305(1)(a), if:

- (a) the CPA firm's principal place of business is not in Utah;
- (b) the CPA firm holds an active, unrestricted CPA firm license in good standing in its home jurisdiction; and
- (c) the CPA firm meets the ownership and peer review requirements of the mobility jurisdiction pursuant to Subsection 58-26a-302(3)(a)(iii) and Section R156-26a-303a.

R156-26a-307. Reinstatement of Licenses.

(1) Under Subsection 58-1-308(1), an individual who held a Utah license that has expired for failure to renew for nonpayment of fees, or an individual applying for reinstatement from emeritus status, may be relicensed upon satisfactory completion of:

(a) submission of an application on Division-approved forms that shall contain information as to why the individual allowed their license to lapse; and

(b) 80 hours of qualified CPE completed within the 12 months preceding the submission of the application for reinstatement, which shall include:

- (i) at least 16 hours in accounting or auditing or both; and
- (ii) successful completion of the AICPA Professional Ethics for Certified Public Accountants Examination:
 - (A) with a score in each examination that meets the current minimum score for each examination that is required for initial licensure; and

(B) which shall count as eight hours of CPE toward the 80-hour CPE requirement.

(2) The Division may waive the requirements in Subsection R156-26-307(1)(b) if the applicant for reinstatement:

- (a) has not been practicing within Utah since the expiration of the license being reinstated;
- (b) has continuously since the expiration been licensed and practicing in another state; and
- (c) demonstrates that the applicant has met the CPE requirements that would have been applicable in Utah during the

time the license was expired in Utah.

(3) The Division may waive the requirements in Subsection R156-26a-307(1)(b) for an applicant if:

(a) the applicant failed to renew because of inadvertent failure to:

- (i) pay the renewal fees;
- (ii) sign application documents; or
- (iii) meet similar technical application requirements;

(b) the application for reinstatement is filed with the Division within 24 months after expiration date of the license; and

(c) at the time of application for reinstatement, the applicant provides evidence that the applicant:

- (i) attended acceptable CPE courses; and
- (ii) complied with the CPE requirements at all times.

(4) The number of hours required to reinstate a license may not satisfy any CPE hour that may be required for subsequent renewal of the license.

R156-26a-501. Unlawful Conduct.

Under Section 58-26a-501, the following citation fine schedule shall apply to a Division citation issued to an individual licensed under Title 58, Chapter 1, Division of Professional Licensing Act, and Title 58, Chapter 26b, Certified Public Accountant Licensing Act:

TABLE 1 Fine Schedule			
Subsection	Violation	First Offense	Second Offense
(1)	58-1-501(1)(a)	\$500 - \$1,000	\$1,000 - \$2,000
(2)	58-1-501(1)(b)	\$500 - \$1,000	\$1,000 - \$2,000
(3)	58-1-501(1)(c)	\$500 - \$1,000	\$1,000 - \$2,000
(4)	58-1-501(1)(d)	\$500 - \$1,000	\$1,000 - \$2,000
(5)	58-1-501(1)(e)	\$500 - \$1,000	\$1,000 - \$2,000
(6)	58-1-501(1)(g)	\$500 - \$1,000	\$1,000 - \$2,000
(7)	58-26a-501(1)(a)	\$500 - \$1,000	\$1,000 - \$2,000
(8)	58-26a-501(1)(b)	\$500 - \$1,000	\$1,000 - \$2,000
(9)	58-26a-501(1)(c)	\$500 - \$1,000	\$1,000 - \$2,000
(10)	58-26a-501(1)(d)(i)	\$500 - \$1,000	\$1,000 - \$2,000
(11)	58-26a-501(1)(d)(ii)(A)	\$500 - \$1,000	\$1,000 - \$2,000
(12)	58-26a-501(1)(d)(ii)(B)	\$500 - \$1,000	\$1,000 - \$2,000
(13)	Other unlawful conduct	\$500 - \$1,000	\$1,000 - \$2,000
(14)	Subsequent offense	Up to \$2,000 for each day of the continued offense	

R156-26a-502. Unprofessional Conduct.

Under Section 58-1-203 and Subsection 58-26a-102(24), "unprofessional conduct" includes:

- (1) willfully failing to comply with continuing professional education requirements;
- (2) fraudulently reporting CPE;
- (3) failing to conform to the accepted and recognized standards and ethics of the profession including those in the AICPA Code of Professional Conduct, effective December 15, 2014, updated through December 2025 which is incorporated by reference; or
- (4) a CPA firm using the name of an individual who is not a licensed certified public accountant as part of the CPA firm name, except that a CPA firm may continue to use the name of a former owner who was a CPA but who has retired or is no longer active in the CPA firm.

KEY: accountant, CPA, accounting firm, CPA firm, licensing, peer review, peer review program, continuing professional education

Date of Last Change: July 8, 2026

Notice of Continuation: September 27, 2021

Authorizing, and Implemented or Interpreted Law: 58-26a-101; 58-1-106(1)(a); 58-1-202(1)(a)



Utah Code Title 58, Chapter 1

Division of Professional Licensing Act

The general licensing statute applying to every DOPL-regulated profession.
Current through the 2026 General Session. Source: le.utah.gov

14 of the 35 exam questions (40%) come from this chapter and Tab D.

Chapter 1
Division of Professional Licensing Act

Part 1
Division Administration

58-1-102 Definitions.

As used in this title:

- (1)
 - (a) "Ablative procedure" means the same as that term is defined in Section 58-67-102.
 - (b) "Ablative procedure" does not include laser tattoo removal.
- (2) "Cosmetic medical procedure":
 - (a) means the same as that term is defined in Section 58-67-102; and
 - (b) except for Chapter 67, Utah Medical Practice Act, and Chapter 68, Utah Osteopathic Medical Practice Act, does not apply to the scope of practice of an individual licensed under this title if the individual's scope of practice includes the authority to operate or perform surgical procedures.
- (3) "Cryolipolysis" means a nonablative fat reduction procedure that uses cold temperature to reduce fat deposits in certain areas of the body.
- (4) "Department" means the Department of Commerce.
- (5) "Director" means the director of the Division of Professional Licensing.
- (6) "Division" means the Division of Professional Licensing created in Section 58-1-103.
- (7) "DOD civilian" means the same as that term is defined in Section 53H-11-202.
- (8) "Executive director" means the executive director of the Department of Commerce.
- (9) "License" includes any license, certificate, registration, or permit authorized in accordance with this title.
- (10) "Licensee" includes any holder of a license, certificate, registration, permit, student card, or apprentice card authorized in accordance with this title.
- (11)
 - (a)
 - (i) "Nonablative procedure" means a procedure that is expected or intended to alter living tissue, but not intended or expected to excise, vaporize, disintegrate, or remove living tissue.
 - (ii) Notwithstanding Subsection (11)(a)(i), nonablative procedure includes hair removal and cryolipolysis.
 - (b) "Nonablative procedure" does not include:
 - (i) a superficial procedure;
 - (ii) the application of permanent make-up;
 - (iii) laser tattoo removal; or
 - (iv) the use of photo therapy and lasers for neuromusculoskeletal treatments that are performed by an individual licensed under this title who is acting within their scope of practice.
- (12) "Pain clinic" means:
 - (a) a clinic that advertises its primary purpose is the treatment of chronic pain; or
 - (b) a clinic in which greater than 50% of the clinic's annual patient population receive treatment primarily for non-terminal chronic pain using Schedule II-III controlled substances.

- (13) "Superficial procedure" means a procedure that is expected or intended to temporarily alter living skin tissue and may excise or remove stratum corneum but have no appreciable risk of damage to any tissue below the stratum corneum.
- (14) "Telemedicine service" means the same as that term is defined in Section 26B-4-704.
- (15) "Unlawful conduct" means the same as that term is defined in Subsection 58-1-501(1).
- (16) "Unprofessional conduct" means the same as that term is defined in Subsection 58-1-501(2).

Amended by Chapter 64, 2026 General Session

58-1-103 Division created to administer licensing laws.

There is created within the Department of Commerce the Division of Professional Licensing. The division shall administer and enforce all licensing laws of Title 58, Occupations and Professions.

Amended by Chapter 415, 2022 General Session

58-1-104 Director of division -- Appointment -- Duties.

- (1) The division shall be under the supervision, direction, and control of a director. The director shall be appointed by the executive director with the approval of the governor. The director shall hold office at the pleasure of the governor.
- (2) The director shall perform all duties, functions, and responsibilities assigned to the division by law or rule and, where provided, with the collaboration and assistance of the boards established under this title.

Renumbered and Amended by Chapter 297, 1993 General Session

58-1-105 Employment of staff.

The director, with the approval of the executive director, may employ necessary staff, including specialists and professionals, to assist the director in performing the duties, functions, and responsibilities of the division.

Amended by Chapter 302, 2025 General Session

58-1-106 Division -- Duties, functions, and responsibilities.

- (1) The duties, functions, and responsibilities of the division include the following:
 - (a) prescribing, adopting, and enforcing rules to administer this title;
 - (b) investigating the activities of any person whose occupation or profession is regulated or governed by the laws and rules administered and enforced by the division;
 - (c) subpoenaing witnesses, taking evidence, and requiring by subpoena duces tecum the production of any books, papers, documents, records, contracts, recordings, tapes, correspondence, or information relevant to an investigation upon a finding of sufficient need by the director or by the director's designee;
 - (d) taking administrative and judicial action against persons in violation of the laws and rules administered and enforced by the division, including the issuance of cease and desist orders;
 - (e) seeking injunctions and temporary restraining orders to restrain unauthorized activity;
 - (f) complying with Title 52, Chapter 4, Open and Public Meetings Act;
 - (g) issuing, refusing to issue, revoking, suspending, renewing, refusing to renew, or otherwise acting upon any license;

- (h) preparing and submitting to the governor and the Legislature an annual report of the division's operations, activities, and goals;
 - (i) preparing and submitting to the executive director a budget of the expenses for the division;
 - (j) establishing the time and place for the administration of examinations;
 - (k) preparing lists of licensees and making these lists available to the public at cost upon request unless otherwise prohibited by state or federal law; and
 - (l) considering interstate portability and the preservation of licensing pathways that are specific to Utah when making recommendations regarding membership in interstate licensing compacts.
- (2) The division may not include home telephone numbers or home addresses of licensees on the lists prepared under Subsection (1)(k), except as otherwise provided by rules of the division made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (3)
- (a) The division may provide the home address or home telephone number of a licensee on a list prepared under Subsection (1) upon the request of an individual who provides proper identification and the reason for the request, in writing, to the division.
 - (b) A request under Subsection (3)(a) is limited to providing information on only one licensee per request.
 - (c) The division shall provide, by rule, what constitutes proper identification under Subsection (3)(a).
- (4)
- (a) Notwithstanding any contrary provisions in Title 63G, Chapter 2, Government Records Access and Management Act, the division may share licensee information with:
 - (i) the division's contracted agents when sharing the information in compliance with state or federal law; and
 - (ii) a person who is evaluating the progress or monitoring the compliance of an individual who has been disciplined by the division under this title.
 - (b) The division may make rules to implement the provisions of this Subsection (4).
- (5) All rules made by the division under this title shall be made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.

Amended by Chapter 420, 2024 General Session

58-1-107 Applicability -- Relationship to specific chapters under title.

The provisions of this chapter uniformly apply to the administration and enforcement of this title. However, unless expressly prohibited in this chapter, any provision of this chapter may be supplemented or altered by specific chapters of this title.

Enacted by Chapter 297, 1993 General Session

58-1-108 Adjudicative proceedings.

- (1) The division and boards created in accordance with this title, including the members of a board designated under Subsection 58-1-109(3), shall comply with the procedures and requirements of Title 13, Chapter 1, Department of Commerce, and Title 63G, Chapter 4, Administrative Procedures Act, in all of their adjudicative proceedings as defined by Subsection 63G-4-103(1).
- (2) Before proceeding under Section 63G-4-502, the division shall review the proposed action with a committee of at least three licensees appointed by the chairperson of the licensing board created under this title for the profession of the person against whom the action is proposed.

- (3) Notwithstanding Title 63G, Chapter 4, Administrative Procedures Act, a warning or final disposition letter that does not constitute disciplinary action against the addressee, issued in response to a complaint of unprofessional or unlawful conduct under this title, does not constitute an adjudicative proceeding.

Amended by Chapter 64, 2026 General Session

58-1-109 Presiding officers -- Content of orders -- Recommended orders -- Final orders -- Appeal of orders.

- (1)
- (a) Unless otherwise specified by statute or rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the presiding officer for adjudicative proceedings before the division is the director.
 - (b) Under Title 63G, Chapter 4, Administrative Procedures Act, the director may designate in writing an individual or body of individuals to act as presiding officer to conduct or assist the director in conducting any part or all of an adjudicative proceeding.
- (2) Unless otherwise specified by the director, an administrative law judge shall be designated as the presiding officer to conduct formal adjudicative proceedings in accordance with Subsection 63G-4-102(4), Sections 63G-4-204 through 63G-4-207, and 63G-4-209.
- (3)
- (a) Unless otherwise specified by the director, the licensing board of the profession that is the subject of the proceedings shall be designated as the presiding officer to serve as fact finder at the evidentiary hearing in a formal adjudicative proceeding.
 - (b)
 - (i) If the licensing board is composed of seven or more members, the director may designate any odd number of board members to represent the licensing board as the presiding officer under Subsection (3)(a).
 - (ii) Notwithstanding Subsection 58-1-201(3), the vote of the majority of the board members designated under Subsection (3)(b)(i) is sufficient authority for the licensing board to act as the presiding officer.
- (4)
- (a) At the close of an evidentiary hearing in an adjudicative proceeding, unless otherwise specified by the director, the presiding officer who served as the fact finder at the hearing shall issue a recommended order based on the record developed at the hearing determining all issues pending before the division.
 - (b) If the director designates certain licensing board members under Subsection (3)(b) to represent the licensing board described in Subsection (3)(a), the person who is aggrieved by the designated board members' recommended order may petition the licensing board to review the designated board members' recommended order.
 - (c) The licensing board shall issue a recommended order based on the review under Subsection (4)(b) that shall become the recommended order of the presiding officer.
- (5)
- (a)
 - (i) The director shall issue a final order affirming the recommended order or modifying or rejecting all or any part of the recommended order and entering new findings of fact, conclusions of law, statement of reasons, and order based on the director's personal attendance at the hearing or a review of the record developed at the hearing.

- (ii) Before modifying or rejecting a recommended order, the director shall consult with the presiding officer who issued the recommended order.
- (b)
 - (i) If the director issues a final order modifying or rejecting a recommended order, the licensing board of the profession that is the subject of the proceeding may, by a two-thirds majority vote of all board members, petition the executive director or designee within the department to review the director's final order.
 - (ii) The executive director's decision shall become the final order of the division.
- (c) This Subsection (5) does not limit the right of the parties to appeal the director's final order by filing a request for agency review under Subsection (8).
- (6) If the director is unable for any reason to rule on a recommended order of a presiding officer, the director may designate another person within the division to issue a final order.
- (7) If the director or the director's designee does not initiate additional fact finding or issue a final order within 20 calendar days after the day on which the recommended order of the presiding officer is issued, the recommended order becomes the final order of the director or the director's designee.
- (8) The final order of the director may be appealed by filing a request for agency review with the executive director or the executive director's designee within the department.
- (9) The content of all orders shall comply with the requirements of Subsection 63G-4-203(1)(i) and Sections 63G-4-208 and 63G-4-209.

Amended by Chapter 223, 2023 General Session

58-1-111 Tax credit certificate -- Psychiatrists and psychiatric mental health nurse practitioners -- Underserved populations.

- (1) As used in this section:
 - (a) "Average of 30 hours or more per week" means that the quotient calculated when dividing the claimant's total hours providing licensed services in the state during the taxable year by the number of weeks in which the claimant is licensed in the state during the taxable year is greater than or equal to 30.
 - (b) "Licensed services" means the provision of behavioral health treatment in the state and within the scope of practice of a psychiatrist, a psychiatric mental health nurse practitioner, or a volunteer health practitioner.
 - (c) "Psychiatric mental health nurse practitioner" means an individual who:
 - (i) is licensed under Chapter 31b, Nurse Practice Act, for the practice of advanced practice registered nursing as that term is defined in Section 58-31b-102; and
 - (ii) holds a certification recognized by the American Nurses Credentialing Center of the American Association of Colleges of Nursing as a psychiatric mental health nurse practitioner.
 - (d) "Psychiatrist" means an individual who:
 - (i) is licensed as a physician under:
 - (A) Chapter 67, Utah Medical Practice Act;
 - (B) Chapter 67b, Interstate Medical Licensure Compact; or
 - (C) Chapter 68, Utah Osteopathic Medical Practice Act; and
 - (ii) is board eligible for a psychiatry specialization recognized by the American Board of Medical Specialists or the American Osteopathic Association's Bureau of Osteopathic Specialists.
 - (e) "Underserved population" means:

- (i) an individual located in a county of the third, fourth, fifth, or sixth class, as designated in Section 17-60-104; or
 - (ii) a Native American Indian.
- (f) "Volunteer retired psychiatrist" means an individual:
 - (i) described in Subsection (1)(d) who, during the calendar year, did not receive payment for providing licensed services; or
 - (ii)
 - (A) licensed under Chapter 81, Retired Volunteer Health Care Practitioner Act; and
 - (B) previously or currently board certified in psychiatry.
- (2)
 - (a) An individual who seeks to obtain a state income tax credit under Subsections 59-10-1111(2) through (4) shall file an application with the division with respect to each taxable year in which the individual seeks a state income tax credit.
 - (b) An individual may qualify for a tax credit certificate under this section for no more than 10 taxable years for each tax credit.
- (3) The application for a tax credit certificate under Subsection 59-10-1111(2) shall require the individual to provide the following to the division:
 - (a) the date on which the individual obtained a license and the specialization described in Subsection (1)(c)(ii) or (d)(ii);
 - (b)
 - (i) an attestation that the individual was licensed on or after January 1, 2017, to provide licensed services; or
 - (ii) if the individual was licensed to provide licensed services prior to January 1, 2017, an attestation:
 - (A) that the individual did not provide licensed services for the two calendar years before the date the individual initially applied for the income tax credit under this subsection; and
 - (B) the date on which the individual resumed providing licensed services in the state; and
 - (c) other information as required by the division by administrative rule adopted in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (4) An application for a tax credit certificate under Subsection 59-10-1111(3) shall require the individual to attest to the division:
 - (a) that the individual averaged 30 or more hours per week during the taxable year providing licensed services;
 - (b) that the individual devoted 25% or more of the individual's total hours of licensed services in the taxable year to an underserved population;
 - (c) the type of underserved population for which the individual provided services during the taxable year; and
 - (d) other information as required by the division by administrative rule adopted in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (5) An application for a tax credit certificate under Subsection 59-10-1111(4) shall require the individual to attest to the division:
 - (a) whether the individual is licensed under Subsection (1)(f)(i) or (ii);
 - (b) that the individual did not receive payment during the calendar year for providing licensed services;
 - (c) that during the calendar year, the individual provided at least 300 hours of licensed services to an underserved population, the homeless population, or veterans without receiving payment for providing the licensed services;

- (d) a description of the type of population described in Subsection (5)(c) for which the individual provided licensed services; and
 - (e) other information as required by the division by administrative rule adopted in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (6)
- (a) The division shall issue a tax credit certificate in accordance with this subsection.
 - (b) The tax credit certificate may state that an individual is entitled to:
 - (i) a tax credit under Subsection 59-10-1111(2) if the individual meets the requirements of Subsection (3);
 - (ii) a tax credit under Subsection 59-10-1111(3) if the individual meets the requirements of Subsection (4);
 - (iii) a tax credit under Subsection 59-10-1111(4) if the individual meets the requirements of Subsection (5); or
 - (iv) a tax credit under Subsections 59-10-1111(2) and (3) if the individual meets the requirements of Subsections (3) and (4).
- (7)
- (a) The division may issue a tax credit certificate to an individual under Subsection 59-10-1111(2) for no more than 10 taxable years after the date on which the individual resumed services under Subsection (3)(b)(ii).
 - (b) The division may issue a tax credit certificate to an individual under Subsections 59-10-1111(3) and (4) for no more than 10 taxable years.
- (8) The division shall provide a copy of a tax credit certificate issued under this section to the individual and the State Tax Commission.

Amended by Chapter 17, 2025 Special Session 1

58-1-112 Data collection.

- (1) As used in this section:
- (a) "Council" means the Utah Health Workforce Advisory Council created in Section 26B-1-425.
 - (b) "Information center" means the Utah Health Workforce Information Center created in Section 26B-4-705.
- (2)
- (a) In accordance with Subsection 26B-4-705(3)(a), the department shall work with the information center to identify relevant data pertaining to a profession described in Subsection (3).
 - (b) The data should focus on:
 - (i) identifying workforce shortages;
 - (ii) identifying labor market indicators;
 - (iii) determining the educational background of a licensee; and
 - (iv) determining whether Utah is retaining a stable health workforce.
 - (c) After the council approves data to be collected, the department shall request the data from a licensee when a licensee applies for a license or renews the licensee's license.
 - (d) The department shall send the obtained data to the information center.
 - (e) A licensee may not be denied a license for failing to provide the data described in Subsection (2)(c) to the department.
- (3)
- (a) The department shall prioritize data collection for each profession licensed under:
 - (i) Chapter 31b, Nurse Practice Act;

- (ii) Chapter 60, Mental Health Professional Practice Act;
 - (iii) Chapter 61, Psychologist Licensing Act;
 - (iv) Chapter 67, Utah Medical Practice Act;
 - (v) Chapter 68, Utah Osteopathic Medical Practice Act;
 - (vi) Chapter 69, Dentist and Dental Hygienist Practice Act; or
 - (vii) Chapter 70a, Utah Physician Assistant Act.
- (b) After the department has collected data for each profession described in Subsection (3)(a), the department shall collect data for each profession licensed under:
- (i) Chapter 5a, Podiatric Physician Licensing Act;
 - (ii) Chapter 17b, Pharmacy Practice Act;
 - (iii) Chapter 24b, Physical Therapy Practice Act;
 - (iv) Chapter 40, Recreational Therapy Practice Act;
 - (v) Chapter 41, Speech-Language Pathology and Audiology Licensing Act;
 - (vi) Chapter 42a, Occupational Therapy Practice Act;
 - (vii) Chapter 44a, Nurse Midwife Practice Act;
 - (viii) Chapter 54, Radiologic Technologist, Radiologist Assistant, and Radiology Practical Technician Licensing Act; or
 - (ix) Chapter 57, Respiratory Care Practices Act.
- (c) The department shall collect data in accordance with this section for any health-related occupation or profession that is regulated by the department and is not described in Subsection (3)(a) or (b) if:
- (i) funding is available;
 - (ii) the council has identified a need for the data; and
 - (iii) data has been collected for each profession described in Subsections (3)(a) and (3)(b).

Amended by Chapter 328, 2023 General Session

58-1-113 Statewide behavioral health provider database study.

- (1) As used in this section:
- (a) "Accountable care organization" means a managed care organization, as defined in 42 C.F.R. Sec. 438, that contracts with the Department of Health and Human Services under the provisions of Section 26B-3-202.
 - (b) "Behavioral health provider" means a mental health provider that provides behavioral health services.
 - (c) "Behavioral health services" means:
 - (i) mental health treatment or services; or
 - (ii) substance use treatment or services.
 - (d) "Commissioner" means Utah's insurance commissioner.
 - (e) "Database" means the statewide behavioral health provider database described in Subsection (2).
 - (f) "Department of Health and Human Services" means the Department of Health and Human Services created in Section 26B-1-201.
 - (g) "Division of Integrated Healthcare" means the Division of Integrated Healthcare created in Section 26B-1-204.
 - (h) "Insurer" means:
 - (i) an insurer as that term is defined in Section 31A-22-634;
 - (ii) an accountable care organization;
 - (iii) a behavioral health plan as that term is defined in Section 26B-3-203; or

- (iv) for an adult who is covered through the traditional fee-for-service Medicaid model in counties without Medicaid accountable care organizations or the state's Medicaid accountable care organization delivery system, the Division of Integrated Healthcare.
- (i) "Mental health provider" means the same as that term is defined in Section 31A-22-658.
- (j) "PEHP" means the Public Employees' Benefit and Insurance Program created in Section 49-20-103.
- (k) "Provider directory" means a provider directory created in accordance with Section 31A-22-664.
- (l) "Telehealth services" means the same as that term is defined in Section 26B-4-704.
- (m) "Telemedicine services" means the same as that term is defined in Section 26B-4-704.
- (2) On or before June 30, 2026, the division shall convene a working group to study and develop recommendations regarding the feasibility and cost of creating and maintaining a database of behavioral health providers in the state, including:
 - (a) an analysis of the requirements for a statewide behavioral health provider database that:
 - (i) is accessible to the public;
 - (ii) allows a person accessing the database to search behavioral health providers by:
 - (A) license status;
 - (B) areas of specialty the behavioral health provider provides, including treatment of specific mental health diagnoses and disorders;
 - (C) insurers with which the behavioral health provider is under contract; and
 - (D) whether the behavioral health provider offers any or all of the following:
 - (I) in-person services;
 - (II) telehealth services; or
 - (III) telemedicine services;
 - (iii) indicates what methods of payment a behavioral health provider accepts, including whether the behavioral health provider accepts cash only;
 - (iv) indicates a behavioral health provider's availability for scheduling an appointment;
 - (v) for each insurer, codes by color or other method whether each behavioral health provider in the insurer's network:
 - (A) is accepting new patients;
 - (B) requires a prospective new patient to call for availability; or
 - (C) is not accepting new patients;
 - (vi) allows an insurer to access the database and update information about behavioral health providers in the insurer's network;
 - (vii) allows a behavioral health provider to access the database and update and verify the behavioral health provider's information;
 - (viii) allows the division to communicate with a behavioral health provider in the database to prompt the behavioral health provider to review and verify information in the database;
 - (ix) allows the division to import information from an insurer's provider directory into the database; and
 - (x) allows an insurer to import information about behavioral health providers in the insurer's network into the insurer's provider directory; and
 - (b) a determination of whether existing software or technology that PEHP owns or controls meets, or could be modified to meet, the requirements for the features described in Subsection (2)(a).
- (3) The division shall coordinate with the Department of Health and Human Services, PEHP, the Insurance Department, and accountable care organizations to determine the membership of the working group described in Subsection (2).

- (4) The division shall present to the Health and Human Services Interim Committee, on or before the date of the committee's November 2026 meeting, on the recommendations described in Subsection (2).

Enacted by Chapter 50, 2026 General Session

Part 2 Boards

58-1-201 Boards -- Appointment -- Membership -- Terms -- Vacancies -- Quorum -- Per diem and expenses -- Chair -- Financial interest or faculty position in professional school that teaches continuing education prohibited.

- (1)
- (a)
- (i) The executive director shall appoint the members of the boards established under this title.
 - (ii) In appointing the board members the executive director shall give consideration to recommendations by members of the respective professions and the professions' organizations.
- (b) Each board shall be composed of five members, four of whom are licensed or certified practitioners in good standing of the profession the board represents, and one of whom is a member of the general public, unless otherwise provided under the specific licensing chapter.
- (c)
- (i) The name of each individual appointed to a board shall be submitted to the governor for confirmation or rejection.
 - (ii) If an appointee is rejected by the governor, the executive director shall appoint another individual in the same manner as set forth in Subsection (1)(a).
- (2)
- (a)
- (i) Except as required by Subsection (2)(b), as terms of current board members expire, the executive director shall appoint each new board member or reappointed board member to a four-year term.
 - (ii) Upon the expiration of the term of a board member, the board member shall continue to serve until a successor is appointed, but for a period not to exceed six months from the expiration date of the board member's term.
- (b) Notwithstanding the requirements of Subsection (2)(a), the executive director shall, at the time of appointment or reappointment, adjust the length of terms to ensure that the terms of board members are staggered so that approximately half of the board is appointed every two years.
- (c) A board member may not serve more than two consecutive terms, and a board member who ceases to serve on a board may not serve again on that board until after the expiration of a two-year period beginning from that cessation of service.
- (d)
- (i) When a vacancy occurs in the board membership for any reason, the replacement shall be appointed for the unexpired term.
 - (ii) After filling that term, the replacement board member may be appointed for only one additional full term.

- (e) The director, with the approval of the executive director, may remove a board member and replace the board member in accordance with this section for the following reasons:
 - (i) the board member fails or refuses to fulfill the responsibilities and duties of a board member, including attendance at board meetings;
 - (ii) the board member engages in unlawful or unprofessional conduct; or
 - (iii) if appointed to the board position as a licensed member of the board, the board member fails to maintain a license that is active and in good standing.
- (3)
 - (a) A majority of the board members constitutes a quorum.
 - (b) Except as provided in Subsection 58-1-109(3), a quorum is sufficient authority for the board to act.
- (4) A board member may not receive compensation or benefits for the member's service, but may receive per diem and travel expenses in accordance with:
 - (a) Section 63A-3-106;
 - (b) Section 63A-3-107; and
 - (c) rules made by the Division of Finance under Sections 63A-3-106 and 63A-3-107.
- (5) Each board shall annually designate one of the board's members to serve as chair for a one-year period.
- (6) A board member may not be a member of the faculty of, or have a financial interest in, a vocational or professional college or school that provides continuing education to any licensee if that continuing education is required by statute or rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.

Amended by Chapter 420, 2024 General Session

58-1-202 Boards -- Duties, functions, and responsibilities.

- (1) Except as provided in Subsection (2), the duties, functions, and responsibilities of each board established under this title include the following:
 - (a) recommending to the director appropriate rules and statutory changes to improve the health, safety, and financial welfare of the public, including changes to remove regulations that are no longer necessary or effective in protecting the public and enhancing commerce;
 - (b) recommending to the director policy and budgetary matters;
 - (c) approving and establishing a passing score for applicant examinations;
 - (d) screening applicants and recommending licensing, renewal, reinstatement, and relicensure actions to the director in writing;
 - (e) assisting the director in establishing standards of supervision for students or persons in training to become qualified to obtain a license in the profession the board represents; and
 - (f) in accordance with Section 58-1-109, acting as presiding officer in conducting hearings associated with adjudicative proceedings and in issuing recommended orders when so designated by the director.
- (2) Subsection (1) does not apply to boards created in Title 58, Chapter 55, Utah Construction Trades Licensing Act.
- (3)
 - (a) Each board or commission established under this title may recommend to the appropriate legislative committee whether the board or commission supports a change to a licensing act.
 - (b) This Subsection (3) does not:
 - (i) require a board's approval to amend a practice act; or
 - (ii) apply to technical or clarifying amendments to a practice act.

Amended by Chapter 223, 2023 General Session

58-1-203 Duties, functions, and responsibilities of division in collaboration with board -- Construction Services Commission.

- (1) The division shall perform the following duties, functions, and responsibilities with the collaboration and assistance of the appropriate board:
 - (a) defining which schools, colleges, universities, departments of universities, military educational and training programs, or other institutions of learning are reputable and in good standing with the division;
 - (b) prescribing license qualifications;
 - (c) prescribing rules governing applications for licenses;
 - (d) providing for a fair and impartial method of examination of applicants;
 - (e) defining unprofessional conduct, by rule, to supplement the definitions under this chapter or other licensing chapters;
 - (f) establishing advisory peer committees to the board and prescribing their scope of authority; and
 - (g) establishing conditions for reinstatement and renewal of licenses.
- (2) Notwithstanding Subsection (1), the duties, functions, and responsibilities of the division outlined in Subsection (1) shall, instead, be performed by the Construction Services Commission for all purposes of Title 58, Chapter 55, Utah Construction Trades Licensing Act.
- (3) If no appropriate board is available to advise the division, the division may create temporary working groups with members of the relevant occupation and the public to assist the division in executing the duties, functions, and responsibilities described in Subsection (1).

Amended by Chapter 140, 2026 General Session

**Part 3
Licensing**

58-1-301 License application -- Licensing procedure.

- (1)
 - (a) Each license applicant shall apply to the division in writing upon forms available from the division.
 - (b) Each completed application shall:
 - (i) contain documentation of the particular qualifications required of the applicant under this title or rules made by the division in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (ii) include the applicant's:
 - (A) full legal name; and
 - (B) social security number, or other satisfactory evidence of the applicant's identity permitted under rules made by the division in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (iii) be verified by the applicant; and
 - (iv) be accompanied by the appropriate fees.
 - (c) An applicant's social security number is a private record under Subsection 63G-2-302(1)(i).

- (d) The division may designate an applicant's evidence of identity under Subsection (1)(b)(ii)(B) as a private record in accordance with Section 63G-2-302.
- (2)
 - (a) The division shall issue a license to an applicant who submits a complete application if the division determines that the applicant meets the qualifications of licensure.
 - (b) The division shall provide a written notice of additional proceedings to an applicant who submits a complete application, but who has been, is, or will be placed under investigation by the division for conduct directly bearing upon the applicant's qualifications for licensure, if the outcome of additional proceedings is required to determine the division's response to the application.
 - (c) The division shall provide a written notice of denial of licensure to an applicant who submits a complete application if the division determines that the applicant does not meet the qualifications of licensure.
 - (d) The division shall provide a written notice of incomplete application and conditional denial of licensure to an applicant who submits an incomplete application, which notice shall advise the applicant that the application is incomplete and that the application is denied, unless the applicant corrects the deficiencies within the time period specified in the notice and otherwise meets all qualifications for licensure.
- (3) The division may only issue a license to an applicant under this title if the applicant meets the requirements for that license as established under this title and by division rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (4) If an applicant meets all requirements for a specific license, the division shall issue the license to the applicant.
- (5)
 - (a) As used in this Subsection (5):
 - (i)
 - (A) "Competency-based licensing requirement" means a practical assessment of knowledge and skills that clearly demonstrate a person is prepared to engage in an occupation or profession regulated by this title, and which the director determines is at least as effective as a time-based licensing requirement at demonstrating proficiency and protecting the health and safety of the public.
 - (B) "Competency-based licensing requirement" may include any combination of training, experience, testing, or observation.
 - (ii)
 - (A) "Time-based licensing requirement" means a specific number of hours, weeks, months, or years of education, training, supervised training, or other experience that an applicant for licensure under this title is required to complete before receiving a license under this title.
 - (B) "Time-based licensing requirement" does not include an associate degree, a bachelor's degree, or a graduate degree from an accredited institution of higher education.
 - (b) Subject to Subsection (5)(c), for an occupation or profession regulated by this title that has a time-based licensing requirement, the director, after consultation with the appropriate board, may by division rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, allow an applicant to complete a competency-based licensing requirement as an alternative to completing the time-based licensing requirement.
 - (c) If a time-based licensing requirement involves a program that must be approved or accredited by a specific entity or board, the director may only allow an applicant to complete a competency-based licensing requirement as an alternative to completing the time-based licensing requirement under Subsection (5)(b) if the competency-based requirement is

approved or accredited by the specific entity or board as a replacement or alternative to the time-based licensing requirement.

Amended by Chapter 223, 2023 General Session

58-1-301.3 Waiver of licensing fees.

An individual applying for initial licensure or licensure renewal under this title may apply for initial licensure or licensure renewal without paying the fees described in Subsection 58-1-301(1) if the applicant provides evidence to the division in a form prescribed by the division that at the time of the application the applicant is:

- (1) on full-time active service with a branch of the armed forces of the United States, including an applicant who is on full-time active duty orders with the National Guard or reserve component of the armed forces; or
- (2) receiving public assistance through one of the following programs administered by the Department of Workforce Services:
 - (a) the Family Employment Program described in Section 35A-3-302; or
 - (b) General Assistance described in Section 35A-3-401.

Amended by Chapter 339, 2020 General Session

Superseded 9/1/2026

58-1-301.5 Division access to Bureau of Criminal Identification records -- Criminal background check requirement.

- (1) As used in this section, "applicant" means an individual applying for licensure or certification, or with respect to a license or certification, applying for renewal, reinstatement, or relicensure or recertification, as required in:
 - (a) Section 58-5a-302;
 - (b) Section 58-16a-302;
 - (c) Section 58-17b-303;
 - (d) Section 58-17b-304;
 - (e) Section 58-17b-305;
 - (f) Section 58-17b-306;
 - (g) Section 58-24b-302;
 - (h) Section 58-31b-302;
 - (i) Section 58-42a-302;
 - (j) Section 58-44a-302;
 - (k) Section 58-47b-302;
 - (l) Section 58-47b-302.2;
 - (m) Section 58-49-4;
 - (n) Section 58-55-302;
 - (o) Section 58-60-205;
 - (p) Section 58-60-305;
 - (q) Section 58-60-405;
 - (r) Section 58-60-506;
 - (s) Section 58-61-304;
 - (t) Section 58-63-302;
 - (u) Section 58-64-302;
 - (v) Section 58-67-302;

- (w) Section 58-68-302;
 - (x) Section 58-69-302;
 - (y) Section 58-70a-302;
 - (z) Section 58-70b-302;
 - (aa) Section 58-71-302;
 - (bb) Section 58-73-302;
 - (cc) Section 58-89-104; or
 - (dd) Section 58-91-103.
- (2) The division shall have direct access to local files the Bureau of Criminal Identification maintains under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification, for background screening of an applicant.
- (3) The division's access to criminal background information under this section:
- (a) shall meet the requirements of Section 53-10-108; and
 - (b) includes:
 - (i) convictions, pleas of nolo contendere, pleas of guilty or nolo contendere held in abeyance, dismissed charges, and charges without a known disposition; and
 - (ii) criminal background information maintained under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification.
- (4) The division may not disseminate outside of the division any criminal history record information that the division obtains from the Bureau of Criminal Identification or the Federal Bureau of Investigation under the criminal background check requirements of this section.
- (5) To fulfill an applicable criminal background check requirement, an applicant shall:
- (a) submit fingerprints in a form acceptable to the division at the time the applicant files a license application or a registration; and
 - (b) consent to a fingerprint background check the Bureau of Criminal Identification and the Federal Bureau of Investigation conduct regarding the application.
- (6)
- (a) Upon receiving fingerprints from an applicant in accordance with Subsection (5), the division shall:
 - (i) collect from each applicant submitting fingerprints in accordance with this section:
 - (A) the fee that the Bureau of Criminal Identification is authorized to collect for the services provided under Section 53-10-108; and
 - (B) the fee the Federal Bureau of Investigation charges for fingerprint processing for the purpose of obtaining federal criminal history record information;
 - (ii) submit from each applicant the fingerprints and the fees described in Subsection (6)(a)(i) to the Bureau of Criminal Identification; and
 - (iii) obtain and retain in division records a signed waiver the Bureau of Criminal Identification approves in accordance with Section 53-10-108 for each applicant.
 - (b) The fees described in Subsection (6)(a)(i) are in addition to other fees this chapter authorizes.
- (7) In accordance with the requirements of Section 53-10-108, the Bureau of Criminal Identification shall:
- (a) check the fingerprints submitted under Subsection (5)(a) against the applicable state and regional criminal records databases;
 - (b) forward the fingerprints to the Federal Bureau of Investigation for a national criminal history background check; and
 - (c) provide the results from the state, regional, and nationwide criminal history background checks to the division.
- (8)

- (a)
 - (i) Notwithstanding Title 63G, Chapter 4, Administrative Procedures Act, if the criminal background check required under this section demonstrates, after the applicant is licensed or registered, that the applicant failed to accurately disclose a criminal history, the division may provide notice to the applicant that the license or registration is immediately and automatically revoked.
 - (ii) If a massage establishment owner has a criminal conviction or pending criminal charges for any crime under Title 76, Chapter 5, Part 4, Sexual Offenses, or any crime the division determines by rule the division makes in collaboration with the board in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division shall deny an application for registration of a massage establishment.
- (b)
 - (i) An individual whose license has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
 - (ii) A registered massage establishment for which the registration has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
- (c) The division shall conduct the hearing described in this Subsection (8) in accordance with Title 63G, Chapter 4, Administrative Procedures Act.

Amended by Chapter 64, 2026 General Session

Effective 9/1/2026

Superseded 1/1/2027

58-1-301.5 Division access to Bureau of Criminal Identification records -- Criminal background check requirement.

- (1) As used in this section, "applicant" means an individual applying for licensure or certification, or with respect to a license or certification, applying for renewal, reinstatement, or relicensure or recertification, as required in:
 - (a) Section 58-5a-302;
 - (b) Section 58-16a-302;
 - (c) Section 58-17b-303;
 - (d) Section 58-17b-304;
 - (e) Section 58-17b-305;
 - (f) Section 58-17b-306;
 - (g) Section 58-24b-302;
 - (h) Section 58-31b-302;
 - (i) Section 58-42a-302;
 - (j) Section 58-44a-302;
 - (k) Section 58-47b-302;
 - (l) Section 58-47b-302.2;
 - (m) Section 58-49-4;
 - (n) Section 58-55-302;
 - (o) Section 58-60-205;
 - (p) Section 58-60-305;
 - (q) Section 58-60-405;
 - (r) Section 58-60-506;
 - (s) Section 58-61-304;
 - (t) Section 58-63-302;

- (u) Section 58-64-302;
 - (v) Section 58-67-302;
 - (w) Section 58-68-302;
 - (x) Section 58-69-302;
 - (y) Section 58-70a-302;
 - (z) Section 58-70b-302;
 - (aa) Section 58-71-302;
 - (bb) Section 58-73-302;
 - (cc) Section 58-89-104;
 - (dd) Section 58-91-103;
 - (ee) Section 58-92-302; or
 - (ff) Section 58-93-302.
- (2) The division shall have direct access to local files the Bureau of Criminal Identification maintains under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification, for background screening of an applicant.
- (3) The division's access to criminal background information under this section:
- (a) shall meet the requirements of Section 53-10-108; and
 - (b) includes:
 - (i) convictions, pleas of nolo contendere, pleas of guilty or nolo contendere held in abeyance, dismissed charges, and charges without a known disposition; and
 - (ii) criminal background information maintained under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification.
- (4) The division may not disseminate outside of the division any criminal history record information that the division obtains from the Bureau of Criminal Identification or the Federal Bureau of Investigation under the criminal background check requirements of this section.
- (5) To fulfill an applicable criminal background check requirement, an applicant shall:
- (a) submit fingerprints in a form acceptable to the division at the time the applicant files a license application or a registration; and
 - (b) consent to a fingerprint background check the Bureau of Criminal Identification and the Federal Bureau of Investigation conduct regarding the application.
- (6)
- (a) Upon receiving fingerprints from an applicant in accordance with Subsection (5), the division shall:
 - (i) collect from each applicant submitting fingerprints in accordance with this section:
 - (A) the fee that the Bureau of Criminal Identification is authorized to collect for the services provided under Section 53-10-108; and
 - (B) the fee the Federal Bureau of Investigation charges for fingerprint processing for the purpose of obtaining federal criminal history record information;
 - (ii) submit from each applicant the fingerprints and the fees described in Subsection (6)(a)(i) to the Bureau of Criminal Identification; and
 - (iii) obtain and retain in division records a signed waiver the Bureau of Criminal Identification approves in accordance with Section 53-10-108 for each applicant.
 - (b) The fees described in Subsection (6)(a)(i) are in addition to other fees this chapter authorizes.
- (7) In accordance with the requirements of Section 53-10-108, the Bureau of Criminal Identification shall:
- (a) check the fingerprints submitted under Subsection (5)(a) against the applicable state and regional criminal records databases;

- (b) forward the fingerprints to the Federal Bureau of Investigation for a national criminal history background check; and
 - (c) provide the results from the state, regional, and nationwide criminal history background checks to the division.
- (8)
- (a)
 - (i) Notwithstanding Title 63G, Chapter 4, Administrative Procedures Act, if the criminal background check required under this section demonstrates, after the applicant is licensed or registered, that the applicant failed to accurately disclose a criminal history, the division may provide notice to the applicant that the license or registration is immediately and automatically revoked.
 - (ii) If a massage establishment owner has a criminal conviction or pending criminal charges for any crime under Title 76, Chapter 5, Part 4, Sexual Offenses, or any crime the division determines by rule the division makes in collaboration with the board in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division shall deny an application for registration of a massage establishment.
 - (b)
 - (i) An individual whose license has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
 - (ii) A registered massage establishment for which the registration has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
 - (c) The division shall conduct the hearing described in this Subsection (8) in accordance with Title 63G, Chapter 4, Administrative Procedures Act.

Amended by Chapter 44, 2026 General Session

Effective 1/1/2027

58-1-301.5 Division access to Bureau of Criminal Identification records -- Criminal background check requirement.

- (1) As used in this section, "applicant" means an individual applying for licensure or certification, for renewal, reinstatement, or relicensure or recertification, as required in:
- (a) Section 58-5a-302;
 - (b) Section 58-16a-302;
 - (c) Section 58-17b-303;
 - (d) Section 58-17b-304;
 - (e) Section 58-17b-305;
 - (f) Section 58-17b-306;
 - (g) Section 58-24b-302;
 - (h) Section 58-31b-302;
 - (i) Section 58-42a-302;
 - (j) Section 58-44a-302;
 - (k) Section 58-47b-302;
 - (l) Section 58-47b-302.2;
 - (m) Section 58-49-4;
 - (n) Section 58-55-203;
 - (o) Section 58-60-205;
 - (p) Section 58-60-305;
 - (q) Section 58-60-405;

- (r) Section 58-60-506;
 - (s) Section 58-61-304;
 - (t) Section 58-63-302;
 - (u) Section 58-64-302;
 - (v) Section 58-67-302;
 - (w) Section 58-68-302;
 - (x) Section 58-69-302;
 - (y) Section 58-70a-302;
 - (z) Section 58-70b-302;
 - (aa) Section 58-71-302;
 - (bb) Section 58-73-302;
 - (cc) Section 58-89-104;
 - (dd) Section 58-91-103;
 - (ee) Section 58-92-302;
 - (ff) Section 58-93-302; or
 - (gg) Section 58-94-304.
- (2) The division shall have direct access to local files the Bureau of Criminal Identification maintains under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification, for background screening of an applicant.
- (3) The division's access to criminal background information under this section:
- (a) shall meet the requirements of Section 53-10-108; and
 - (b) includes:
 - (i) convictions, pleas of nolo contendere, pleas of guilty or nolo contendere held in abeyance, dismissed charges, and charges without a known disposition; and
 - (ii) criminal background information the Bureau of Criminal Identification maintains under Title 53, Chapter 10, Part 2, Bureau of Criminal Identification.
- (4) The division may not disseminate outside of the division any criminal history record information that the division obtains from the Bureau of Criminal Identification or the Federal Bureau of Investigation under the criminal background check requirements of this section.
- (5) To fulfill an applicable criminal background check requirement, an applicant shall:
- (a) submit fingerprints in a form acceptable to the division at the time the applicant files a license application or a registration; and
 - (b) consent to a fingerprint background check the Bureau of Criminal Identification and the Federal Bureau of Investigation conduct regarding the application.
- (6)
- (a) Upon receiving fingerprints from an applicant in accordance with Subsection (5), the division shall:
 - (i) collect from each applicant submitting fingerprints in accordance with this section:
 - (A) the fee that the Bureau of Criminal Identification is authorized to collect for the services provided under Section 53-10-108; and
 - (B) the fee the Federal Bureau of Investigation charges for fingerprint processing for the purpose of obtaining federal criminal history record information;
 - (ii) submit from each applicant the fingerprints and the fees described in Subsection (6)(a)(i) to the Bureau of Criminal Identification; and
 - (iii) obtain and retain in division records a signed waiver the Bureau of Criminal Identification approves in accordance with Section 53-10-108 for each applicant.
 - (b) The fees described in Subsection (6)(a)(i) are in addition to other fees this chapter authorizes.

- (7) In accordance with the requirements of Section 53-10-108, the Bureau of Criminal Identification shall:
- (a) check the fingerprints submitted under Subsection (5)(a) against the applicable state and regional criminal records databases;
 - (b) forward the fingerprints to the Federal Bureau of Investigation for a national criminal history background check; and
 - (c) provide the results from the state, regional, and nationwide criminal history background checks to the division.
- (8)
- (a)
 - (i) Notwithstanding Title 63G, Chapter 4, Administrative Procedures Act, if the criminal background check required under this section demonstrates, after the applicant is licensed or registered, that the applicant failed to accurately disclose a criminal history, the division may provide notice to the applicant that the license or registration is immediately and automatically revoked.
 - (ii) Notwithstanding Title 63G, Chapter 4, Administrative Procedures Act, if a massage establishment owner has a criminal conviction or pending criminal charges for any crime under Title 76, Chapter 5, Part 4, Sexual Offenses, or any crime the division determines by rule the division makes in collaboration with the board in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division shall deny an application for registration of a massage establishment.
 - (b)
 - (i) An individual whose license has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
 - (ii) A registered massage establishment for which the registration has been revoked in accordance with Subsection (8)(a) is entitled to a hearing to challenge the revocation.
 - (c) The division shall conduct the hearing described in this Subsection (8) in accordance with Title 63G, Chapter 4, Administrative Procedures Act.

Amended by Chapter 42, 2026 General Session

58-1-301.7 Change of information.

- (1)
- (a) An applicant, licensee, or certificate holder shall notify the division within 10 business days of a change in mailing address or email address.
 - (b) When providing a mailing address, the individual may provide a post office box or other mail drop location.
 - (c) In addition to providing a mailing address, an applicant, licensee, or certificate holder shall provide to the division, in a form approved by the division, an email address.
- (2) An applicant, licensee, or certificate holder is considered to have received a notification that has been sent to the most recent:
- (a) mailing address provided to the division by the applicant, licensee, or certificate holder; or
 - (b) email address furnished to the division by the applicant, licensee, or certificate holder.

Amended by Chapter 339, 2020 General Session

58-1-302 License by endorsement.

- (1) As used in this section:

- (a) "License" means an authorization that permits the holder to engage in the practice of a profession regulated under this title.
- (b) "Limited supervised training permit" means a temporary authorization to work in a limited professional capacity that would otherwise require licensure under this title.
- (2) Subject to Subsections (4) through (7), the division shall issue a license to an applicant who has been licensed in another state, district, or territory of the United States if:
 - (a) the division determines that the license issued in the other state, district, or territory encompasses a similar scope of practice as the license sought in this state;
 - (b) the applicant has at least one year of experience practicing under the license issued in the other state, district, or territory; and
 - (c) the applicant's license is in good standing in the other state, district, or territory where the license was issued.
- (3) Subject to the other provisions of this section, the division may issue a license to an applicant who:
 - (a) has been licensed in another state, district, or territory of the United States, or in a jurisdiction outside of the United States, if:
 - (i)
 - (A) the division determines that the applicant's education, credentialing examination, experience, and skills demonstrate competency in the profession for which the licensure is sought in this state; and
 - (B) the applicant has at least one year of experience practicing under the license issued in the other state, district, territory, or jurisdiction; or
 - (ii) the division determines that the licensure requirements of the other state, district, territory, or jurisdiction at the time the license was issued were substantially similar to the current requirements for the license sought in this state; or
 - (b) has never been licensed in a state, district, or territory of the United States, or in a jurisdiction outside of the United States, if:
 - (i) the applicant was educated in or obtained relevant experience in a state, district, or territory of the United States, or a jurisdiction outside of the United States; and
 - (ii) the division determines that the education, credentialing examination, and experience was substantially similar to the current education, credentialing examination, and experience requirements for the license sought in this state.
- (4) The division may refuse to issue a license to an applicant under this section if:
 - (a) the division determines that there is reasonable cause to believe that the applicant is not qualified to receive the license in this state; or
 - (b) the applicant has a previous or pending disciplinary action related to the applicant's license.
- (5) Before the division issues a license to an applicant under this section, the applicant shall:
 - (a) pay a fee the department determines in accordance with Section 63J-1-504; and
 - (b) produce satisfactory evidence of the applicant's identity, qualifications, and good standing in the profession for which licensure is sought in this state.
- (6)
 - (a) For an applicant who is or has been licensed in another jurisdiction, but does not satisfy the requirements of Subsection (2) or (3), the division may evaluate and determine whether:
 - (i) the applicant is eligible for a license under this title because the applicant's education, credentialing examination, or experience obtained in the other jurisdiction is substantially similar to the education, credentialing examination, or experience requirements for the license; or

- (ii) in light of the applicant's education or experience obtained in the other jurisdiction, the applicant's education or experience would be substantially similar to the education or experience requirements for a license under this title, if the applicant obtains additional education or experience.
- (b) After the division chooses to evaluate an applicant under Subsection (6)(a), the division may issue a limited supervised training permit to the applicant if:
 - (i) the applicant has an employment offer from an employer in the state;
 - (ii) the employer attests to the division that the applicant will work under the level of supervision the division requires by rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, of an individual who:
 - (A) holds a license in good standing of the same classification as the limited supervised training permit; and
 - (B) has held the license for a minimum period of time the division defines by rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act;
 - (iii)
 - (A) the division needs additional time to make a determination under Subsection (6)(a)(i); or
 - (B) the division determines under Subsection (6)(a)(ii) that additional education or experience would make the applicant's education or experience substantially similar to the education or experience requirements for a license under this title, the applicant wishes to pursue the education or experience, and the division makes a deadline for the applicant to complete the additional education or experience;
 - (iv) the applicant pays a fee the department determines in accordance with Section 63J-1-504;
 - (v) the applicant meets the minimum professional standards to work in a supervised environment that the division, in consultation with the applicable board, establishes for the applicable profession;
 - (vi) the applicant submits to a background check, if required for the license for which the applicant applied; and
 - (vii) the applicant meets with the applicable board, if requested, to evaluate the applicant's qualifications.
- (c)
 - (i) A limited supervised training permit issued under this Subsection (6) expires:
 - (A) on the deadline that the division makes for the applicant to complete the additional education or experience described in Subsection (6)(b)(iii)(B); or
 - (B) upon the division's grant or denial of the applicant's application for licensure by endorsement.
 - (ii) The division may not renew or otherwise extend a limited supervised training permit unless:
 - (A) a circumstance or hardship arose beyond the limited supervised training permit holder's control that prevented the limited supervised training permit holder from completing the licensure process;
 - (B) the limited supervised training permit holder presents satisfactory evidence to the division that the limited supervised training permit holder is making reasonable progress toward obtaining licensure in the state;
 - (C) the division grants the renewal or extension for a period proportionate to the circumstance or hardship; and
 - (D) the limited supervised training permit holder's employer consents in writing to the renewal or extension.

- (7) The division, in consultation with the applicable licensing board, may make rules in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, prescribing the administration and requirements of this section.
- (8)
 - (a) The provisions of this section control over any conflicting licensure by endorsement provision in another chapter of this title.
 - (b) The division, in consultation with the applicable licensing board and professional educators that help establish and monitor educational requirements for the profession of the applicant under review, shall ensure that the provisions of this section apply uniformly to the administration and enforcement of licensure by endorsement for each license type under this title.
- (9) The division shall compile and post on the division's website an annual report that includes:
 - (a) the number of licenses and limited supervised training permits issued under this section during the preceding year;
 - (b) each determination in which the division deems specified education, credentialing examination, experience, or skills substantially similar to the education, credentialing examination, experience, or skills required for a license sought under this section; and
 - (c) documentation of each instance in which the applicable board disagreed with the division's determination that an applicant's education, credentialing examination, experience, or skills from another jurisdiction were substantially similar to the education, credentialing examination, experience, or skills required for the license sought under this section.

Amended by Chapter 64, 2026 General Session

58-1-302.1 Temporary license for telemedicine.

- (1) As used in this section:
 - (a) "Nonresident health care license" means a health care license issued by another state, district, or territory of the United States.
 - (b) "Telemedicine service" means the same as that term is defined in Section 26B-4-704.
- (2) An individual with a temporary license issued under this section is authorized to provide a telemedicine service if:
 - (a) the telemedicine service is a service the individual is licensed to perform under the nonresident health care license of the state, district, or territory that issued the nonresident health care license;
 - (b) at the time the telemedicine service is performed, the patient is located in Utah; and
 - (c) performing the telemedicine service would not otherwise violate state law.
- (3) The division shall issue a temporary license described in Subsection (2) to an individual who has a nonresident health care license in good standing if:
 - (a) the individual has completed an application for a license by endorsement in accordance with Section 58-1-302; and
 - (b) the division determines that they will not be able to process the application within 15 days from the day on which the application is submitted.
- (4) The division may not charge a fee for a temporary license issued under this section beyond the fee required for a license issued under Section 58-1-302.

Amended by Chapter 486, 2024 General Session

58-1-303 Temporary license.

- (1)
 - (a) The division may issue a temporary license to a person who has met all license requirements except the passing of an examination. In this case:
 - (i) the licensee shall take the next available examination; and
 - (ii) the temporary license automatically expires upon release of official examination results if the applicant fails the examination.
 - (b) The division may issue a temporary license to a person licensed in another state or country who is in Utah temporarily to teach or assist a Utah resident licensed to practice an occupation or profession under this title.
 - (c) The division may issue a temporary license to a person licensed in another state who met the requirements for licensure in that state, which were equal to or greater than the requirements for licensure of this state at the time the license was obtained in the other state, upon a finding by the division, in collaboration with the appropriate board, that the issuance of a temporary license is necessary to or justified by:
 - (i) a local or national emergency or any governmental action causing an unusual circumstance that might be reasonably considered to materially jeopardize the public health, safety, or welfare if a temporary license is not issued;
 - (ii) a lack of necessary available services in any community or area of the state from an occupation or profession licensed under this title, if the lack of services might be reasonably considered to materially jeopardize the public health, safety, or welfare if a temporary license is not issued; or
 - (iii) a need to first observe an applicant for licensure in this state in a monitored or supervised practice of the applicant's occupation or profession before a decision is made by the division either to grant or deny the applicant a regular license.
- (2) The division may not issue a temporary license to a person who qualifies for one under Subsection (1)(a) more than three consecutive times within the three-year period immediately following the issuance of the first temporary license.
- (3) The division may not issue a temporary license to a person solely because there is a competitive advantage enjoyed or a competitive disadvantage suffered by any party caused by the absence of a licensed person, unless in addition there is or will be a material risk presented to the public health, safety, or welfare.

Renumbered and Amended by Chapter 297, 1993 General Session

58-1-304 Restricted license.

- (1) The division may issue a restricted or probationary license to an applicant for licensure, renewal, or reinstatement of licensure if:
 - (a) the applicant appears to meet the qualifications for licensure, but has engaged in unlawful, unprofessional, or other conduct bearing upon the applicant's qualifications; and
 - (b) the division determines the need to observe the applicant in a monitored or supervised practice of the applicant's occupation or profession or to attach other reasonable restrictions or conditions upon the applicant in order to accommodate licensure, while protecting the public health, safety, and welfare.
- (2) Issuance of a restricted or probationary license is considered a partial denial of licensure that is subject to agency review.

Amended by Chapter 262, 2013 General Session

58-1-305 Inactive license.

- (1)
 - (a) In accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division may adopt rules permitting inactive licensure.
 - (b) The rules shall specify the requirements and procedures for placing a license on inactive status, the length of time a license may remain on inactive status, and the requirements and procedures to activate an inactive license.
- (2) Except as otherwise specified by rule, an inactive licensee has no right or privilege to engage in the practice of the licensed occupation or profession.
- (3) The division shall waive the renewal fee for a person holding or applying for an inactive license, if at the time of the application for or renewal of the inactive license, the person is on full-time active service with a branch of the armed forces of the United States, including a person who is on full-time active duty orders with the National Guard or reserve component of the armed forces.

Amended by Chapter 90, 2018 General Session

58-1-306 Surrender of license.

- (1) The division may, by written agreement, accept the voluntary surrender of a license.
- (2) Unless otherwise stated in the written agreement, tender and acceptance of a voluntary surrender of a license does not foreclose the division from pursuing additional disciplinary or other action authorized under this title or in rules adopted under this title.
- (3) Unless otherwise stated in the written agreement, tender and acceptance of a voluntary surrender of a license terminates all rights and privileges associated with the license.
- (4) Unless otherwise stated in the written agreement, the surrendered rights and privileges of licensure may be reacquired only by reapplying for licensure and meeting the requirements for a new or reinstated license set forth under this title or in rules adopted under this title.
- (5) Unless otherwise stated in the written agreement, documentation of tender and acceptance of a voluntary surrender of a license is a public record.
- (6) Unless otherwise stated in the written agreement, when a tender and acceptance of a voluntary surrender of a license occurs while adjudicative proceedings are pending against the licensee for unprofessional or unlawful conduct, the division may report the surrender of license to appropriate state and federal agencies and licensing data banks.

Enacted by Chapter 297, 1993 General Session

58-1-307 Exemptions from licensure.

- (1) Except as otherwise provided by statute or rule, the following individuals may engage in the practice of their occupation or profession, subject to the stated circumstances and limitations, without being licensed under this title:
 - (a) an individual serving in the armed forces of the United States, the United States Public Health Service, the United States Department of Veterans Affairs, or other federal agencies while engaged in activities regulated under this chapter as a part of employment with that federal agency if the individual holds a valid license to practice a regulated occupation or profession issued by any other state or jurisdiction recognized by the division;
 - (b) a student engaged in activities constituting the practice of a regulated occupation or profession while in training in a recognized school approved by the division to the extent the

activities are supervised by qualified faculty, staff, or designee and the activities are a defined part of the training program;

- (c) an individual engaged in an internship, residency, preceptorship, postceptorship, fellowship, apprenticeship, or on-the-job training program approved by the division while under the supervision of qualified individuals;
 - (d) an individual residing in another state and licensed to practice a regulated occupation or profession in that state, who is called in for a consultation by an individual licensed in this state, and the services provided are limited to that consultation;
 - (e) an individual who is invited by a recognized school, association, society, or other body approved by the division to conduct a lecture, clinic, or demonstration of the practice of a regulated occupation or profession if the individual does not establish a place of business or regularly engage in the practice of the regulated occupation or profession in this state;
 - (f) an individual licensed under the laws of this state, other than under this title, to practice or engage in an occupation or profession, while engaged in the lawful, professional, and competent practice of that occupation or profession;
 - (g) an individual licensed in a health care profession in another state who performs that profession while attending to the immediate needs of a patient for a reasonable period during which the patient is being transported from outside of this state, into this state, or through this state;
 - (h) an individual licensed in another state or country who is in this state temporarily to attend to the needs of an athletic team or group, except that the practitioner may only attend to the needs of the athletic team or group, including all individuals who travel with the team or group in any capacity except as a spectator;
 - (i) an individual licensed and in good standing in another state, who is in this state:
 - (i) temporarily, under the invitation and control of a sponsoring entity;
 - (ii) for a reason associated with a special purpose event, based upon needs that may exceed the ability of this state to address through its licensees, as determined by the division; and
 - (iii) for a limited period of time not to exceed the duration of that event, together with any necessary preparatory and conclusionary periods; and
 - (j) the spouse of an individual serving in the armed forces of the United States or the spouse of a DOD civilian while the individual or DOD civilian is stationed within this state, provided:
 - (i) the spouse holds a valid license to practice a regulated occupation or profession issued by any other state or jurisdiction recognized by the division; and
 - (ii) the license is current and the spouse is in good standing in the state of licensure.
- (2)
- (a) A practitioner temporarily in this state who is exempted from licensure under Subsection (1) shall comply with each requirement of the licensing jurisdiction from which the practitioner derives authority to practice.
 - (b) Violation of a limitation imposed by this section constitutes grounds for removal of exempt status, denial of license, or other disciplinary proceedings.
- (3) An individual who is licensed under a specific chapter of this title to practice or engage in an occupation or profession may engage in the lawful, professional, and competent practice of that occupation or profession without additional licensure under other chapters of this title, except as otherwise provided by this title.
- (4) Upon the declaration of a national, state, or local emergency, a public health emergency as defined in Section 26B-7-301, or a declaration by the president of the United States or other federal official requesting public health-related activities, the division in collaboration with the relevant board may:

- (a) suspend the requirements for permanent or temporary licensure of individuals who are licensed in another state for the duration of the emergency while engaged in the scope of practice for which they are licensed in the other state;
 - (b) modify, under the circumstances described in this Subsection (4) and Subsection (5), the scope of practice restrictions under this title for individuals who are licensed under this title as:
 - (i) a physician under Chapter 67, Utah Medical Practice Act, or Chapter 68, Utah Osteopathic Medical Practice Act;
 - (ii) a nurse under Chapter 31b, Nurse Practice Act, or Chapter 31e, Nurse Licensure Compact - Revised;
 - (iii) a certified nurse midwife under Chapter 44a, Nurse Midwife Practice Act;
 - (iv) a pharmacist, pharmacy technician, or pharmacy intern under Chapter 17b, Pharmacy Practice Act;
 - (v) a respiratory therapist under Chapter 57, Respiratory Care Practices Act;
 - (vi) a dentist and dental hygienist under Chapter 69, Dentist and Dental Hygienist Practice Act; and
 - (vii) a physician assistant under Chapter 70a, Utah Physician Assistant Act;
 - (c) suspend the requirements for licensure under this title and modify the scope of practice in the circumstances described in this Subsection (4) and Subsection (5) for medical services personnel or paramedics required to be licensed under Section 53-2d-402;
 - (d) suspend requirements in Subsections 58-17b-620(3) through (6) which require certain prescriptive procedures;
 - (e) exempt or modify the requirement for licensure of an individual who is activated as a member of a medical reserve corps during a time of emergency as provided in Section 26A-1-126;
 - (f) exempt or modify the requirement for licensure of an individual who is registered as a volunteer health practitioner as provided in Title 26B, Chapter 4, Part 8, Uniform Emergency Volunteer Health Practitioners Act; and
 - (g) in accordance with rules made by the division in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, exempt or modify the requirements for licensure of an individual engaged in one or more of the construction trades described in Chapter 55, Utah Construction Trades Licensing Act.
- (5) Individuals exempt under Subsection (4)(c) and individuals operating under modified scope of practice provisions under Subsection (4)(b):
- (a) are exempt from licensure or subject to modified scope of practice for the duration of the emergency;
 - (b) must be engaged in the distribution of medicines or medical devices in response to the emergency or declaration; and
 - (c) must be employed by or volunteering for:
 - (i) a local or state department of health; or
 - (ii) a host entity as defined in Section 26B-4-801.
- (6) In accordance with the protocols established under Subsection (8), upon the declaration of a national, state, or local emergency, the Department of Health and Human Services or a local health department shall coordinate with public safety authorities as defined in Subsection 26B-7-323(1) and may:
- (a) use a vaccine, antiviral, antibiotic, or other prescription medication that is not a controlled substance to prevent or treat a disease or condition that gave rise to, or was a consequence of, the emergency; or
 - (b) distribute a vaccine, antiviral, antibiotic, or other prescription medication that is not a controlled substance:

- (i) if necessary, to replenish a commercial pharmacy in the event that the commercial pharmacy's normal source of the vaccine, antiviral, antibiotic, or other prescription medication is exhausted; or
 - (ii) for dispensing or direct administration to treat the disease or condition that gave rise to, or was a consequence of, the emergency by:
 - (A) a pharmacy;
 - (B) a prescribing practitioner;
 - (C) a licensed health care facility;
 - (D) a federally qualified community health clinic; or
 - (E) a governmental entity for use by a community more than 50 miles from a person described in Subsections (6)(b)(ii)(A) through (D).
- (7) In accordance with protocols established under Subsection (8), upon the declaration of a national, state, or local emergency, the Department of Health and Human Services shall coordinate the distribution of medications:
 - (a) received from the strategic national stockpile to local health departments; and
 - (b) from local health departments to emergency personnel within the local health departments' geographic region.
- (8) The Department of Health and Human Services shall establish by rule, made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, protocols for administering, dispensing, and distributing a vaccine, an antiviral, an antibiotic, or other prescription medication that is not a controlled substance in the event of a declaration of a national, state, or local emergency. The protocol shall establish procedures for the Department of Health and Human Services or a local health department to:
 - (a) coordinate the distribution of:
 - (i) a vaccine, an antiviral, an antibiotic, or other prescription medication that is not a controlled substance received by the Department of Health and Human Services from the strategic national stockpile to local health departments; and
 - (ii) a vaccine, an antiviral, an antibiotic, or other non-controlled prescription medication received by a local health department to emergency personnel within the local health department's geographic region;
 - (b) authorize the dispensing, administration, or distribution of a vaccine, an antiviral, an antibiotic, or other prescription medication that is not a controlled substance to the contact of a patient without a patient-practitioner relationship, if the contact's condition is the same as that of the physician's or physician assistant's patient; and
 - (c) authorize the administration, distribution, or dispensing of a vaccine, an antiviral, an antibiotic, or other non-controlled prescription medication to an individual who:
 - (i) is working in a triage situation;
 - (ii) is receiving preventative or medical treatment in a triage situation;
 - (iii) does not have coverage for the prescription in the individual's health insurance plan;
 - (iv) is involved in the delivery of medical or other emergency services in response to the declared national, state, or local emergency; or
 - (v) otherwise has a direct impact on public health.
- (9) The Department of Health and Human Services shall give notice to the division upon implementation of the protocol established under Subsection (8).

Amended by Chapter 438, 2025 General Session

58-1-307.1 Delegation of health care services -- Division duties.

The division, in consultation with the Department of Health, shall identify by rule made in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, a list of health care services that an unlicensed individual may perform without delegation by a health care provider, as defined in Section 78B-3-403, regardless of the setting or licensing of the facility in which the health care services are performed.

Enacted by Chapter 314, 2020 General Session

58-1-308 Term of license -- Expiration of license -- Renewal of license -- Reinstatement of license -- Application procedures.

- (1)
 - (a) Each license issued under this title shall be issued in accordance with a two-year renewal cycle established by rule.
 - (b) A renewal period may be extended or shortened by as much as one year to maintain established renewal cycles or to change an established renewal cycle.
- (2)
 - (a) The expiration date of a license shall be shown on the license.
 - (b) A license that is not renewed prior to the expiration date shown on the license automatically expires.
 - (c) A license automatically expires prior to the expiration date shown on the license upon the death of a licensee who is a natural person, or upon the dissolution of a licensee that is a partnership, corporation, or other business entity.
 - (d) If the existence of a dissolved partnership, corporation, or other business entity is reinstated prior to the expiration date shown upon the entity's expired license issued by the division, the division shall, upon written application, reinstate the applicant's license, unless it finds that the applicant no longer meets the qualifications for licensure.
 - (e) Expiration of licensure is not an adjudicative proceeding under Title 63G, Chapter 4, Administrative Procedures Act.
- (3)
 - (a) The division shall notify each licensee in accordance with procedures established by rule that the licensee's license is due for renewal and that unless an application for renewal is received by the division by the expiration date shown on the license, together with the appropriate renewal fee and documentation showing completion of or compliance with renewal qualifications, the license will not be renewed.
 - (b) Examples of renewal qualifications which by statute or rule the division may require the licensee to document completion of or compliance with include:
 - (i) continuing education;
 - (ii) continuing competency;
 - (iii) quality assurance;
 - (iv) utilization plan and protocol;
 - (v) financial responsibility;
 - (vi) certification renewal; and
 - (vii) calibration of equipment.
- (4)
 - (a)
 - (i) An application for renewal that complies with Subsection (3) is complete.

- (ii) A renewed license shall be issued to applicants who submit a complete application, unless it is apparent to the division that the applicant no longer meets the qualifications for continued licensure.
 - (b)
 - (i) The division may evaluate or verify documentation showing completion of or compliance with renewal requirements on an entire population or a random sample basis, and may be assisted by advisory peer committees.
 - (ii) If necessary, the division may complete its evaluation or verification subsequent to renewal and, if appropriate, pursue action to suspend or revoke the license of a licensee who no longer meets the qualifications for continued licensure.
 - (c) The application procedures specified in Subsection 58-1-301(2), apply to renewal applications to the extent they are not in conflict with this section.
- (5)
- (a) Any license that is not renewed may be reinstated:
 - (i) upon submission of an application for reinstatement, payment of the renewal fee together with a reinstatement fee determined by the department under Section 63J-1-504, and upon submission of documentation showing completion of or compliance with renewal qualifications; and
 - (ii)
 - (A) at any time within two years after nonrenewal; or
 - (B) between two years and five years after nonrenewal, if established by rule made by the division in consultation with the applicable licensing board in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
 - (b) The application procedures specified in Subsection 58-1-301(2) apply to the reinstatement applications to the extent they are not in conflict with this section.
 - (c) Except as otherwise provided by rule, a license that is reinstated no later than 120 days after it expires shall be retroactively reinstated to the date it expired.
- (6)
- (a) Except as provided in Subsection (5)(a), if not reinstated within two years, the holder may obtain a license only if the holder meets requirements provided by the division by rule or by statute for a new license.
 - (b) Each licensee under this title who has been active in the licensed occupation or profession while in the full-time employ of the United States government or under license to practice that occupation or profession in any other state or territory of the United States may reinstate the licensee's license without taking an examination by submitting an application for reinstatement, paying the current annual renewal fee and the reinstatement fee, and submitting documentation showing completion of or compliance with any renewal qualifications at any time within six months after reestablishing domicile within Utah or terminating full-time government service.
- (7) A service member may reactivate an expired professional or occupational license as described in 71A-8-103.

Amended by Chapter 185, 2024 General Session

58-1-309 Laws and rules examination.

In addition to qualifications for licensure or renewal of licensure enumerated in specific practice acts under this title, the division may by rule require an applicant to pass an examination of the

laws and rules relevant to the occupation or profession to ensure familiarity with these laws and rules.

Enacted by Chapter 297, 1993 General Session

58-1-310 Application for division determination regarding criminal conviction.

- (1) An individual with a criminal record may apply to the division at any time for a determination of whether the individual's criminal record would disqualify the individual from obtaining a license in an occupation or profession regulated by this title if the individual has completed or were to complete all other licensing requirements for the occupation or profession.
- (2) To receive a determination, the individual shall submit the application described in this section in a form the division approves and shall include information regarding:
 - (a) the individual's complete criminal conviction history;
 - (b) what occupational or professional license the individual is interested in seeking;
 - (c) what licensing requirements the individual meets;
 - (d) what licensing requirements the individual has not met; and
 - (e) any other information the division requires by rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (3) The division may charge the individual a fee, established in accordance with Section 63J-1-504, to submit an application under this section.
- (4) Within 90 days of the day on which the division receives a completed application from an individual for a determination under this section, based on the statutory authority and administrative rules governing the occupation or profession at the time of the application, the division shall provide a written determination to the individual of whether the individual's criminal record would disqualify the individual from obtaining a license in an occupation or profession this title regulates if the individual were to complete all other licensing requirements.
- (5) If the individual's criminal record would disqualify the individual from obtaining a license in an occupation or profession this title regulates, the written determination described in Subsection (4) may also include information regarding additional steps the individual could take to qualify for licensure.

Amended by Chapter 64, 2026 General Session

58-1-311 Required examinations in languages in addition to English.

In order to encourage economic development in the state, the department may offer any required examination under this title, which is prepared by a national testing organization, in languages in addition to English.

Amended by Chapter 409, 2021 General Session

58-1-312 Organ donation notification.

- (1) As used in this section:
 - (a) "Donor" means the same as that term is defined in Section 26B-8-301.
 - (b) "Donor registry" means the same as that term is defined in Section 26B-8-301.
- (2) At the same time the division issues a new license to a licensee in accordance with Subsection 58-1-301(4), and at the same time the division notifies a licensee that the licensee's license is due for renewal in accordance with Subsection 58-1-308(3)(a), the division shall distribute to the licensee, by email using the most recent email address furnished to the division by the

licensee, a message notifying the licensee of the option to register as a donor and providing the licensee an Internet link to a website for a donor registry established under Section 26B-8-319.

Amended by Chapter 328, 2023 General Session

58-1-313 Veteran licensing.

(1) As used in this section:

(a) "License" means an authorization that permits the holder to engage in the practice of a profession regulated under this title.

(b) "Service member" means the same as that term is defined in Section 71A-1-101.

(2) The division shall, in consultation with the Department of Veterans and Military Affairs:

(a) identify skills, experience, credentials, training, and education that an individual can obtain in the armed forces;

(b) determine to what level the skills, experience, credentials, training, and education described in Subsection (2)(a) are substantially equivalent to current requirements in statute or administrative rule for a license and can substitute for the requirements; and

(c) prepare and update as necessary a document, spreadsheet, or other resource accessible by the public on the division's website detailing the information described in Subsection (2)(a) and (b).

(3) If a veteran or service member applies for a license and does not meet the current required training or education requirements established in statute or administrative rule for the license, the division shall give credit to the veteran or service member for relevant skills, experience, credentials, training, or education obtained while in the armed forces based on the determination described in Subsection (2)(b).

(4) On or before November 1, 2028, the division shall provide a report the Business and Labor Interim Committee regarding:

(a) the number of applicants for a license who are veterans or service members that have successfully been granted a license under this section; and

(b) any legislative recommendations for changes to this section.

Enacted by Chapter 75, 2026 General Session

Part 4
License Denial

58-1-401 Grounds for denial of license -- Disciplinary proceedings -- Time limitations -- Sanctions.

(1) The division shall refuse to issue a license to an applicant and shall refuse to renew or shall revoke, suspend, restrict, place on probation, or otherwise act upon the license of a licensee who does not meet the qualifications for licensure under this title.

(2) The division may refuse to issue a license to an applicant and may refuse to renew or may revoke, suspend, restrict, place on probation, issue a public reprimand to, or otherwise act upon the license of a licensee for the following reasons:

(a) subject to the provisions of Subsection (7), the applicant or licensee engages in unprofessional conduct, as statute or rule under this title defines;

(b) the applicant or licensee engages in unlawful conduct as statute under this title defines;

- (c) a court with jurisdiction determines that the applicant is mentally incompetent; or
 - (d) subject to Subsections 58-31b-401(6), 58-60-108(2), 58-61-401(2), 58-67-401(2), 58-68-401(2), 58-70a-401(2), and Section 58-81-105, the applicant or licensee is unable to practice the occupation or profession with reasonable skill and safety because of a mental or physical illness or condition, or engagement in any of the behaviors listed in Subsection 58-1-501(2)(a)(v), when the condition demonstrates a threat or potential threat to the public health, safety, or welfare.
- (3) A licensee with a license that has been suspended, revoked, placed on probation, or restricted, may apply for reinstatement of the license at reasonable intervals when the licensee complies with the conditions that statute, rule, or the terms of the suspension, revocation, probation, or restriction impose.
- (4) The division may issue cease and desist orders to:
- (a) a licensee or applicant who may be disciplined under Subsection (1) or (2);
 - (b) a person that engages in or represents that the person is engaged in an occupation or profession regulated under this title; and
 - (c) a person that otherwise violates this title or a rule adopted under this title.
- (5) The division may impose an administrative penalty in accordance with Section 58-1-502.
- (6)
- (a) The division may not take disciplinary action against a person for unprofessional or unlawful conduct under this title, unless the division enters into a stipulated agreement or initiates an adjudicative proceeding regarding the conduct within four years after the conduct is reported to the division, except under Subsection (6)(b).
 - (b)
 - (i) The division may not take disciplinary action against a person for unprofessional or unlawful conduct more than 10 years after the occurrence of the conduct, unless the proceeding is in response to a civil or criminal judgment or settlement and the proceeding is initiated within one year following the judgment or settlement.
 - (ii) Notwithstanding Subsection (6)(b)(i), the division may refuse to issue a license due to unprofessional or unlawful conduct that occurred more than 10 years before a request or application for licensure is made.
- (7) When the division is determining whether to refuse to issue a license to an applicant, or to refuse to renew the license of a licensee, based solely on the criminal conviction of an applicant or licensee, the division shall:
- (a) provide individualized consideration to the applicant or licensee;
 - (b) determine whether the criminal conviction bears a substantial relationship to the applicant's or licensee's ability to safely or competently practice the occupation or profession; and
 - (c) consider the applicant's or licensee's current circumstances, which may include any of the following:
 - (i) the age of the applicant or licensee when the applicant or licensee committed the offense;
 - (ii) the time that has elapsed since the applicant or licensee committed the offense;
 - (iii) whether the applicant or licensee has completed the applicant's or licensee's criminal sentence;
 - (iv) whether the applicant has completed or is actively participating in rehabilitative drug or alcohol treatment;
 - (v) any testimonials or recommendations from other individuals that the applicant or licensee, including a progress report from the applicant's or licensee's probation or parole officer, provides;
 - (vi) other evidence of rehabilitation the applicant or licensee provides;

- (vii) the education and training of the applicant or licensee;
- (viii) the employment history of the applicant or licensee; and
- (ix) other relevant information the applicant or licensee provides.

Amended by Chapter 64, 2026 General Session

58-1-402 Administrative review -- Special appeals boards.

- (1)
 - (a) Any applicant who has been denied a license to practice on the basis of credentials, character, a criminal record, or failure to pass a required examination, or who has been refused renewal or reinstatement of a license to practice on the basis that the applicant does not meet qualifications for continued licensure in any occupation or profession under the jurisdiction of the division may submit a request for agency review to the executive director within 30 days following notification of the denial of a license or refusal to renew or reinstate a license.
 - (b) The executive director shall determine whether the circumstances for denying an application for an initial license or for renewal or reinstatement of a license would justify calling a special appeals board under Subsection (2). The executive director's decision is not subject to agency review.
- (2) A special appeals board shall consist of three members appointed by the executive director as follows:
 - (a) one member from the occupation or profession in question who is not on the board of that occupation or profession;
 - (b) one member from the general public who is neither an attorney nor a practitioner in an occupation or profession regulated by the division; and
 - (c) one member who is a resident lawyer currently licensed to practice law in this state who shall serve as chair of the special appeals board.
- (3) The special appeals board shall comply with the procedures and requirements of Title 63G, Chapter 4, Administrative Procedures Act, in its proceedings.
- (4)
 - (a) Within a reasonable amount of time following the conclusion of a hearing before a special appeals board, the board shall enter an order based upon the record developed at the hearing. The order shall state whether a legal basis exists for denying the application for an initial license or for renewal or reinstatement of a license that is the subject of the appeal. The order is not subject to further agency review.
 - (b) The division or the applicant may obtain judicial review of the decision of the special appeals board in accordance with Sections 63G-4-401 and 63G-4-403.
- (5) A member may not receive compensation or benefits for the member's service, but may receive per diem and travel expenses in accordance with:
 - (a) Section 63A-3-106;
 - (b) Section 63A-3-107; and
 - (c) rules made by the Division of Finance pursuant to Sections 63A-3-106 and 63A-3-107.
- (6) If an applicant under Subsection (1) is not given a special appeals board, the applicant shall be given agency review under the ordinary agency review procedures specified by rule.

Amended by Chapter 289, 2020 General Session

58-1-403 Minimum 90-day suspension.

A license may not be reinstated subsequent to action taken under Section 58-1-401 within 90 days after the action has been taken, unless the division in collaboration with the appropriate board imposes other conditions.

Renumbered and Amended by Chapter 297, 1993 General Session

58-1-405 Provisions of volunteer health or veterinary services -- Division authority.

In accordance with Section 26B-4-807, the division may pursue actions against a volunteer health practitioner operating under Title 26B, Chapter 4, Part 8, Uniform Emergency Volunteer Health Practitioners Act.

Amended by Chapter 328, 2023 General Session

Part 5
Unlawful and Unprofessional Conduct - Penalties

58-1-501 Unlawful and unprofessional conduct.

- (1) "Unlawful conduct" means conduct, by any person, that is defined as unlawful under this title and includes when the person:
- (a) practices or engages in, represents oneself to be practicing or engaging in, or attempts to practice or engage in any profession requiring licensure under this title, except the behavioral health technician under Chapter 60, Part 6, Behavioral Health Coach and Technician Licensing Act, if the person is:
 - (i) not licensed to do so or not exempted from licensure under this title; or
 - (ii) restricted from doing so by a suspended, revoked, restricted, temporary, probationary, or inactive license;
 - (b)
 - (i) impersonates another licensee or practicing a profession under a false or assumed name, except as permitted by law; or
 - (ii) for a licensee who has had a license under this title reinstated following disciplinary action, practicing the same profession using a different name than the name used before the disciplinary action, except as permitted by law and after notice to, and approval by, the division;
 - (c) knowingly employs any other person to practice or engage in or attempt to practice or engage in any profession licensed under this title if the employee is not licensed to do so under this title;
 - (d) knowingly permits the person's authority to practice or engage in any profession licensed under this title to be used by another, except as permitted by law;
 - (e) obtains a passing score on a licensure examination, applying for or obtaining a license, or otherwise dealing with the division or a licensing board through the use of fraud, forgery, or intentional deception, misrepresentation, misstatement, or omission;
 - (f)
 - (i) issues, or engages in aiding and abetting in the issuance of, an order or prescription for a drug or device to a person located in this state:
 - (A) without prescriptive authority conferred by a license issued under this title, or by an exemption to licensure under this title; or

- (B) with prescriptive authority conferred by an exception issued under this title or a multistate practice privilege recognized under this title, if the prescription was issued without first obtaining information, in the usual course of professional practice, that is sufficient to establish a diagnosis, to identify underlying conditions, and to identify contraindications to the proposed treatment; and
 - (ii) Subsection (1)(f)(i) does not apply to treatment rendered in an emergency, on-call or cross coverage situation, provided that the person that issues the prescription has prescriptive authority conferred by a license under this title, or is exempt from licensure under this title; or
 - (g) engages in aiding or abetting any other person to violate any statute, rule, or order regulating a profession under this title.
- (2)
- (a) "Unprofessional conduct" means conduct, by a licensee or applicant, that is defined as unprofessional conduct under this title or under any rule adopted under this title and includes when a licensee or applicant:
 - (i) violates any statute, rule, or order regulating a profession under this title;
 - (ii) violates or engages in aiding or abetting any other person to violate, any generally accepted professional or ethical standard applicable to an occupation or profession regulated under this title;
 - (iii) subject to the provisions of Subsection (4), engages in conduct that results in conviction, a plea of nolo contendere, or a plea of guilty or nolo contendere that is held in abeyance pending the successful completion of probation with respect to a crime that, when considered with the functions and duties of the profession for which the license was issued or is to be issued, bears a substantial relationship to the licensee's or applicant's ability to safely or competently practice the profession;
 - (iv) engages in conduct that results in disciplinary action, including reprimand, censure, diversion, probation, suspension, or revocation, by any other licensing or regulatory authority having jurisdiction over the licensee or applicant in any profession if the conduct would, in this state, constitute grounds for denial of licensure or disciplinary proceedings under Section 58-1-401;
 - (v) engages in conduct, including the use of intoxicants, drugs, narcotics, or similar chemicals, to the extent that the conduct does, or might reasonably be considered to, impair the ability of the licensee or applicant to perform licensed duties with reasonable skill and safety;
 - (vi) practices or attempts to practice a profession regulated under this title despite being physically or mentally unfit to do so;
 - (vii) practices or attempts to practice a profession regulated under this title through gross incompetence, gross negligence, or a pattern of incompetency or negligence;
 - (viii) practices or attempts to practice a profession requiring licensure under this title by any form of action or communication which is false, misleading, deceptive, or fraudulent;
 - (ix) practices or attempts to practice a profession regulated under this title beyond the scope of the licensee's competency, abilities, or education;
 - (x) practices or attempts to practice a profession regulated under this title beyond the scope of the licensee's license;
 - (xi) acts or attempts to act to prohibit or inhibit the ability of a licensee's customer, patient, or other consumer of the licensee's goods or services from making a complaint to a licensing or regulatory authority, including through the use of a contract provision;

- (xii) verbally, physically, mentally, or sexually abuses or exploits any person through conduct connected with the licensee's practice under this title or otherwise facilitated by the licensee's license;
- (xiii) acts as a supervisor without meeting the qualification requirements for that position that are defined by statute or rule;
- (xiv) issues, or engages in aiding and abetting in the issuance of, an order or prescription for a drug or device:
 - (A) without first obtaining information in the usual course of professional practice, that is sufficient to establish a diagnosis, to identify conditions, and to identify contraindications to the proposed treatment; or
 - (B) with prescriptive authority conferred by an exception issued under this title, or a multi-state practice privilege recognized under this title, if the prescription was issued without first obtaining information, in the usual course of professional practice, that is sufficient to establish a diagnosis, to identify underlying conditions, and to identify contraindications to the proposed treatment;
- (xv) violates a provision of Section 58-1-501.5;
- (xvi) violates the terms of an order governing a license;
- (xvii) violates Section 58-1-511; or
- (xviii) a violation of a provision of Title 63G, Chapter 33, Part 3, Free Exercise of Religious Beliefs or Conscience, by a health care provider, as defined in Section 63G-33-301.
- (b) "Unprofessional conduct" does not include:
 - (i) a health care provider, as defined in Section 78B-3-403 and who is licensed under this title, deviating from medical norms or established practices if the conditions described in Subsection (5) are met; and
 - (ii) notwithstanding Section 58-1-501.6, a health care provider advertising that the health care provider deviates from medical norms or established practices, including the maladies the health care provider treats, if the health care provider:
 - (A) does not guarantee any results regarding any health care service;
 - (B) fully discloses on the health care provider's website that the health care provider deviates from medical norms or established practices with a conspicuous statement; and
 - (C) includes the health care provider's contact information on the website.
- (3) Unless otherwise specified by statute or administrative rule, in a civil or administrative proceeding that the division commences under this title, a person subject to any of the unlawful and unprofessional conduct provisions of this title is strictly liable for each violation.
- (4) The following are not evidence of engaging in unprofessional conduct under Subsection (2)(a) (iii):
 - (a) an arrest not followed by a conviction; or
 - (b) a conviction for which an individual's incarceration has ended more than five years before the date of the division's consideration, unless:
 - (i) after the incarceration the individual has engaged in additional conduct that results in another conviction, a plea of nolo contendere, or a plea of guilty or nolo contendere that is held in abeyance pending the successful completion of probation; or
 - (ii) the conviction was for:
 - (A) a violent felony as defined in Section 76-3-203.5;
 - (B) a felony related to a criminal sexual act under Title 76, Chapter 5, Part 4, Sexual Offenses, or Title 76, Chapter 5b, Sexual Exploitation Act;
 - (C) a felony related to criminal fraud or embezzlement, including a felony under Title 76, Chapter 6, Part 5, Fraud, or Title 76, Chapter 6, Part 4, Theft; or

- (D) a crime or a pattern of crimes that demonstrates a substantial potential to harm Utah patients or consumers, as the director may determine in a process the division defines by rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act.
- (5) In accordance with Subsection (2)(b)(i), a health care provider may deviate from medical norms or established practices if:
- (a) the health care provider does not deviate outside of the health care provider's scope of practice and possesses the education, training, and experience to competently and safely administer the alternative health care service;
 - (b) the health care provider does not provide an alternative health care service that is otherwise contrary to any state or federal law;
 - (c) the alternative health care service has reasonable potential to be of benefit to the patient to whom the alternative health care service is to be given;
 - (d) the potential benefit of the alternative health care service outweighs the known harms or side effects of the alternative health care service;
 - (e) the alternative health care service is reasonably justified under the totality of the circumstances;
 - (f) after diagnosis but before providing the alternative health care service:
 - (i) the health care provider educates the patient on the health care services that are within the medical norms and established practices;
 - (ii) the health care provider discloses to the patient that the health care provider is recommending an alternative health care service that deviates from medical norms and established practices;
 - (iii) the health care provider discusses the rationale for deviating from medical norms and established practices with the patient;
 - (iv) the health care provider discloses any potential risks associated with deviation from medical norms and established practices; and
 - (v) the patient signs and acknowledges a notice of deviation; and
 - (g) before providing an alternative health care service, the health care provider discloses to the patient that the patient may enter into an agreement describing what would constitute the health care provider's negligence related to deviation.
- (6) As used in this section, "notice of deviation" means a written notice a health care provider provides to a patient that:
- (a) is specific to the patient;
 - (b) indicates that the health care provider is deviating from medical norms or established practices in the health care provider's recommendation for the patient's treatment;
 - (c) describes how the alternative health care service deviates from medical norms or established practices;
 - (d) describes the potential risks and benefits associated with the alternative health care service;
 - (e) describes the health care provider's reasonably justified rationale regarding the reason for the deviation; and
 - (f) provides clear and unequivocal notice to the patient that the patient is agreeing to receive the alternative health care service which is outside medical norms and established practices.

Amended by Chapter 64, 2026 General Session

58-1-501.3 Health professional prescribing exceptions for expedited partner therapy for sexually transmitted diseases.

- (1) For purposes of this section:
 - (a) "Drug to treat a sexually transmitted disease" means a drug:
 - (i) as defined in Section 58-17b-102; and
 - (ii) that is:
 - (A) an antibiotic; and
 - (B) prescribed in accordance with guidelines from the Centers for Disease Control and Prevention for patient delivered expedited partner therapy in the management of sexually transmitted disease.
 - (b) "Partner" means a person:
 - (i) with whom a practitioner does not have a bonafide practitioner-patient relationship; and
 - (ii) who is identified as, or claims to be a sexual partner of a patient.
 - (c) "Patient" means a person who:
 - (i) has a sexually transmitted disease; and
 - (ii) has a bonafide practitioner-patient relationship with a practitioner.
 - (d) "Sexually transmitted disease" means:
 - (i) gonorrhea; or
 - (ii) chlamydia.
- (2) This section does not require a practitioner or a licensee under this chapter to prescribe or dispense a drug to treat a sexually transmitted disease for patient delivered expedited partner therapy. A practitioner's or licensee's decision to use expedited partner therapy as allowed by this section is voluntary.
- (3) Notwithstanding Sections 58-1-501, 58-17b-501, and 58-17b-502, it is not unlawful conduct or unprofessional conduct, and it does not violate the provisions of this chapter if:
 - (a) a practitioner, in accordance with this Subsection (3):
 - (i) issues a prescription for a drug to treat a sexually transmitted disease to a partner by:
 - (A) writing "partner of (patient name)" on the prescription order; and
 - (B) giving the partner's prescription to the patient for subsequent use by the partner; or
 - (ii) notwithstanding Section 58-17b-610, dispenses a drug sample to treat a sexually transmitted disease to the patient for the subsequent use of the partner; or
 - (b) a pharmacist, in accordance with this Subsection (3), dispenses a prescription drug for the treatment of a sexually transmitted disease to:
 - (i) a person who:
 - (A) claims to be a partner; and
 - (B) presents a prescription for the drug to the pharmacist which is written for the unnamed partner of a named patient;
 - (ii) the patient for the subsequent use by the unnamed partner; or
 - (iii) an agent of the patient or partner.
- (4)
 - (a) For purposes of Subsection (3), and notwithstanding Section 58-17b-602:
 - (i) the partner does not have to be identified on the prescription order by information that would disclose the identity of the partner; and
 - (ii) when dispensing a drug to treat a sexually transmitted disease directly to the partner, the patient's identifying information may, but does not need to, be included on the partner's drug label.
 - (b) Information provided by a pharmacist to a patient or the patient's agent for subsequent use by a partner satisfies the requirements of patient counseling for both the patient and the partner under Section 58-17b-613.
- (5)

- (a) The Legislature finds that the prevention and treatment of sexually transmitted diseases in the state is a compelling public health issue.
- (b) A practitioner or licensee under this chapter is not liable for a medical malpractice action if the use of expedited partner therapy is in compliance with this section, except for those acts which are grossly negligent or willful and wanton.

Enacted by Chapter 151, 2009 General Session

58-1-501.5 Anatomic pathology services -- Billing violations.

(1) As used in this section, the following definitions apply:

- (a)
 - (i) "Anatomic pathology services" including "technical or professional component of anatomic pathology services" means:
 - (A) histopathology or surgical pathology, meaning the gross examination of, histologic processing of, or microscopic examination of human organ tissue performed by a physician or under the supervision of a physician;
 - (B) cytopathology, meaning the examination of human cells, from fluids, aspirates, washings, brushings, or smears, including the pap test examination performed by a physician or under the supervision of a physician;
 - (C) hematology, meaning the microscopic evaluation of human bone marrow aspirates and biopsies performed by a physician or under the supervision of a physician and peripheral human blood smears when the attending or treating physician or other practitioner of the healing arts or a technologist requests that a blood smear be reviewed by a pathologist;
 - (D) subcellular pathology and molecular pathology; and
 - (E) blood bank services performed by a pathologist.
 - (ii) "Anatomic pathology services" including "technical or professional component of anatomic pathology services" does not include the initial collection or packaging of a sample for transport.
- (b) "Clinical laboratory" or "laboratory" means a facility for the biological, microbiological, serological, chemical, immuno-hematological, hematological, biophysical, cytological, pathological, or other examination of materials derived from the human body for the purpose of providing information for the diagnosis, prevention, or treatment of any disease or impairment of human beings or the assessment of the health of human beings.
- (c) "Health care facility" has the meaning provided in Section 26B-2-201.
- (d) "Health care provider" includes:
 - (i) an advanced practice registered nurse licensed under Chapter 31b, Nurse Practice Act;
 - (ii) a chiropractic physician licensed under Chapter 73, Chiropractic Physician Practice Act;
 - (iii) a dentist licensed under Chapter 69, Dentist and Dental Hygienist Practice Act;
 - (iv) a nurse midwife licensed under Chapter 44a, Nurse Midwife Practice Act;
 - (v) an optometrist licensed under Chapter 16a, Utah Optometry Practice Act;
 - (vi) an osteopathic physician and surgeon licensed under Chapter 68, Utah Osteopathic Medical Practice Act;
 - (vii) a podiatric physician licensed under Chapter 5a, Podiatric Physician Licensing Act;
 - (viii) a physician and surgeon licensed under Chapter 67, Utah Medical Practice Act; and
 - (ix) a physician assistant licensed under Chapter 70a, Utah Physician Assistant Act.
- (e) "Insurer" includes:
 - (i) any entity offering accident and health insurance as defined in Section 31A-1-301;
 - (ii) workers' compensation benefits;

- (iii) a health maintenance organization; or
 - (iv) any self-insurance, as defined in Section 31A-1-301, that offers health care insurance or benefits.
- (2)
- (a) A health care provider who orders anatomic pathology services for a patient from an independent physician or laboratory may not directly or indirectly mark up, charge a commission, or make a profit on the anatomic pathology service provided by the independent physician or laboratory.
 - (b) Nothing in Subsection (2)(a):
 - (i) restricts the ability of a health care provider, who has not performed or supervised either the technical or professional component of the anatomic pathology service, to obtain payment for services related solely to the collection and packaging of a sample and administrative billing costs; or
 - (ii) restricts the ability of the lab function in the Department of Health and Human Services to bill for services.
- (3) A health care provider when billing a patient directly for anatomic pathology services provided by an independent physician or laboratory shall furnish an itemized bill which conforms with the billing practices of the American Medical Association that conspicuously discloses the charge for each anatomic pathology service, physician or laboratory name, and address for each anatomic pathology service rendered to the patient by the physician or laboratory that performed the anatomic pathology service.
- (4) The disclosure to be made under Subsection (3) shall not be required when the anatomic pathology service is being ordered by a hospital, a laboratory performing either the professional or technical component of the service, or a physician performing either the professional or technical component of the service, a public health clinic, or a state or federal agency.
- (5) Failure to comply with the requirements of this section shall be considered to be unprofessional conduct.

Amended by Chapter 328, 2023 General Session

58-1-501.6 Health care provider advertisements and disclosure -- Unprofessional conduct.

For purposes of this section:

- (1)
- (a) "Advertisement" includes:
 - (i) billboards;
 - (ii) written documents such as:
 - (A) brochures;
 - (B) pamphlets;
 - (C) direct mail solicitations;
 - (D) radio, television, and telephone solicitation scripts; and
 - (E) telephone directories;
 - (iii) media, including television, radio, and Internet websites; and
 - (iv) any other means of promotion intended to directly or indirectly induce a person to enter into an agreement for services with a health care provider.
 - (b) "Advertisement" does not include materials that provide information about health care provider networks established by health insurance carriers.
- (2) "Health care provider" means a natural person who is:
- (a) defined as a health care provider in Section 78B-3-403; and

- (b) licensed under this title.
- (3)
 - (a) This section does not provide authority for a health care provider to advertise the services offered by the health care provider.
 - (b) If a health care provider's licensing authority and professional ethics permit the health care provider to advertise, the provisions of this section apply to any advertisement for the health care provider's services, on or after July 1, 2011.
- (4) An advertisement for a health care provider's services that includes the health care provider's name shall identify the license type, as used by the division, under which the health care provider is practicing.
- (5)
 - (a) A physician licensed under Chapter 67, Utah Medical Practice Act, may comply with the requirements of this section by using any one of the designations in the definitions of "practice of medicine" in Section 58-67-102.
 - (b) A physician licensed under Chapter 68, Utah Osteopathic Medical Practice Act, may comply with this section by using any of the designations in the definition of "practice of osteopathic medicine" in Section 58-68-102.
- (6) It is unprofessional conduct if a health care provider violates this section.

Enacted by Chapter 139, 2011 General Session

58-1-501.7 Standards of conduct for prescription drug education -- Academic and commercial detailing.

- (1) For purposes of this section:
 - (a) "Academic detailing":
 - (i) means a health care provider who is licensed under this title to prescribe or dispense a prescription drug and employed by someone other than a pharmaceutical manufacturer:
 - (A) for the purpose of countering information provided in commercial detailing; and
 - (B) to disseminate educational information about prescription drugs to other health care providers in an effort to better align clinical practice with scientific research; and
 - (ii) does not include a health care provider who:
 - (A) is disseminating educational information about a prescription drug as part of teaching or supervising students or graduate medical education students at an institution of higher education or through a medical residency program;
 - (B) is disseminating educational information about a prescription drug to a patient or a patient's representative; or
 - (C) is acting within the scope of practice for the health care provider regarding the prescribing or dispensing of a prescription drug.
 - (b) "Commercial detailing" means an educational practice employed by a pharmaceutical manufacturer in which clinical information and evidence about a prescription drug is shared with health care professionals.
 - (c) "Manufacture" means the same as that term is defined in Section 58-37-101.
 - (d) "Pharmaceutical manufacturer" is a person who manufactures a prescription drug.
- (2)
 - (a) Except as provided in Subsection (3), the provisions of this section apply to an academic detailer beginning July 1, 2013.

- (b) An academic detailer and a commercial detailer who educate another health care provider about prescription drugs through written or oral educational material is subject to federal regulations regarding:
 - (i) false and misleading advertising in 21 C.F.R., Part 201 (2007);
 - (ii) prescription drug advertising in 21 C.F.R., Part 202 (2007); and
 - (iii) the federal Office of the Inspector General's Compliance Program Guidance for Pharmaceutical Manufacturers issued in April 2003, as amended.
- (c) A person who is injured by a violation of this section has a private right of action against a person engaged in academic detailing, if:
 - (i) the actions of the person engaged in academic detailing, that are a violation of this section, are:
 - (A) the result of gross negligence by the person; or
 - (B) willful and wanton behavior by the person; and
 - (ii) the damages to the person are reasonable, foreseeable, and proximately caused by the violations of this section.
- (3)
 - (a) For purposes of this Subsection, "accident and health insurance":
 - (i) means the same as that term is defined in Section 31A-1-301; and
 - (ii) includes a self-funded health benefit plan and an administrator for a self-funded health benefit plan.
 - (b) This section does not apply to a person who engages in academic detailing if that person is engaged in academic detailing on behalf of:
 - (i) a person who provides accident and health insurance, including when the person who provides accident and health insurance contracts with or offers:
 - (A) the state Medicaid program, including the Primary Care Network within the state's Medicaid program;
 - (B) the Children's Health Insurance Program created in Section 26B-3-902;
 - (C) a Medicare plan; or
 - (D) a Medicare supplement plan;
 - (ii) a hospital as defined in Section 26B-2-201;
 - (iii) any class of pharmacy as defined in Section 58-17b-102, including any affiliated pharmacies;
 - (iv) an integrated health system as defined in Section 13-5b-102; or
 - (v) a medical clinic.
 - (c) This section does not apply to communicating or disseminating information about a prescription drug for the purpose of conducting research using prescription drugs at a health care facility as defined in Section 26B-2-201, or a medical clinic.

Amended by Chapter 362, 2026 General Session

58-1-501.8 Occupational and professional identification of health care providers -- Unlawful and unprofessional conduct -- Penalties.

- (1) For purposes of this section:
 - (a) "Badge" means a tag or badge in plain view:
 - (i) attached to a health care provider's clothing; or
 - (ii) hanging from a lanyard around a health care provider's neck.
 - (b) "Clothing" means a health care provider's outermost article of clothing that is visible to others.

- (c) "Deceptive or misleading conduct" means any affirmative communication or representation that falsely states, describes, holds out, or details an individual's licensure, training, education, or profession.
- (d) "Health care provider" means a natural person who is:
 - (i) defined as a health care provider in Section 78B-3-403; and
 - (ii) licensed under this title.
- (e) "Identification" means a badge or stitching, or permanent writing in plain view on clothing that:
 - (i) includes the health care provider's name;
 - (ii) includes the license type held by the health care provider;
 - (iii) is worn in a manner that is visible and apparent to others; and
 - (iv) contains the information required by Subsections (1)(e)(i) and (ii):
 - (A) in a manner and of sufficient size that can be easily read; and
 - (B) on both sides of the badge, unless the badge or tag is attached to clothing in a way that prevents the badge from rotating.
- (f) "License type" means a designation of the license type that satisfies the requirements of Section 58-1-501.6.
- (g) "Patient encounter" means an interaction in a health care facility, health care clinic, or office in which a patient can see a health care provider delivering services directly to a patient.
- (2) Beginning January 1, 2015, except as provided in Subsections (3) and (4), a health care provider shall wear identification during any patient encounter.
- (3) A health care provider's identification may be covered if required under sterilization or isolation protocols.
- (4) A health care provider is not required to wear identification:
 - (a) if wearing identification would jeopardize the health care provider's safety; or
 - (b)
 - (i) in an office in which:
 - (A) the license type and names of all health care providers working in the office are displayed on the office door; or
 - (B) each health care provider working in the office has the health care provider's license posted prominently in the office and readily visible to a patient; and
 - (ii) if the office is an office:
 - (A) of a solo health care provider; or
 - (B) of a single type of health care provider.
- (5) An individual who is a student or is in training to obtain a license as a health care provider shall:
 - (a) wear identification during patient encounters that identifies the person as in training, or a student, for the particular license type; and
 - (b) otherwise comply with the provisions of this section.
- (6) It is unprofessional conduct if a health care provider violates this section.
- (7) It is unlawful conduct if an individual:
 - (a) wears identification in a patient encounter that suggests that the individual is practicing or engaging in an occupation or profession that the individual may not lawfully practice or engage in under this title; or
 - (b) engages in deceptive or misleading conduct.
- (8) An individual who violates this section is subject to Section 58-1-502.

Enacted by Chapter 99, 2014 General Session

58-1-502 Unlawful and unprofessional conduct -- Penalties.

- (1)
 - (a) Unless otherwise specified in this title, a person who violates the unlawful conduct provisions defined in this title is guilty of a class A misdemeanor.
 - (b) Unless a specific fine amount is specified elsewhere in this title, the director or the director's designee may assess an administrative fine of up to \$1,000 for each instance of unprofessional or unlawful conduct defined in this title.
- (2)
 - (a) In addition to any other statutory penalty for a violation related to a specific occupation or profession regulated by this title, if upon inspection or investigation, the division concludes that a person has violated Subsection 58-1-501(1)(a), (1)(c), (1)(g), or (2)(a)(xvi), or a rule or order issued with respect to those subsections, and that disciplinary action is appropriate, the director or the director's designee from within the division shall promptly:
 - (i) issue a citation to the person according to this section and any pertinent rules;
 - (ii) attempt to negotiate a stipulated settlement; or
 - (iii) notify the person to appear before an adjudicative proceeding conducted under Title 63G, Chapter 4, Administrative Procedures Act.
 - (b)
 - (i) The division may assess a fine under this Subsection (2) against a person who violates Subsection 58-1-501(1)(a), (1)(c), (1)(g), or (2)(a)(xvi), or a rule or order issued with respect to those subsections, as evidenced by:
 - (A) an uncontested citation;
 - (B) a stipulated settlement; or
 - (C) a finding of a violation in an adjudicative proceeding.
 - (ii) The division may, in addition to or in lieu of a fine under Subsection (2)(b)(i), order the person to cease and desist from violating Subsection 58-1-501(1)(a), (1)(c), (1)(g), or (2)(a)(xvi), or a rule or order issued with respect to those subsections.
 - (c) Except for a cease and desist order, the division may not assess the licensure sanctions cited in Section 58-1-401 through a citation.
 - (d) A citation shall:
 - (i) be in writing;
 - (ii) describe with particularity the nature of the violation, including a reference to the provision of the chapter, rule, or order alleged to have been violated;
 - (iii) clearly state that the recipient must notify the division in writing within 20 calendar days of service of the citation if the recipient wishes to contest the citation at a hearing conducted under Title 63G, Chapter 4, Administrative Procedures Act; and
 - (iv) clearly explain the consequences of failure to timely contest the citation or to make payment of a fine assessed by the citation within the time specified in the citation.
 - (e) The division may issue a notice in lieu of a citation.
 - (f)
 - (i) If within 20 calendar days from the service of the citation, the person to whom the citation was issued fails to request a hearing to contest the citation, the citation becomes the final order of the division and is not subject to further agency review.
 - (ii) The period to contest a citation may be extended by the division for cause.
 - (g) The division may refuse to issue or renew, suspend, revoke, or place on probation the license of a licensee who fails to comply with a citation after the citation becomes final.
 - (h) The failure of an applicant for licensure to comply with a citation after the citation becomes final is a ground for denial of license.

- (i) Subject to the time limitations described in Subsection 58-1-401(6), the division may not issue a citation under this section after the expiration of one year following the date on which the violation that is the subject of the citation is reported to the division.
- (j) The director or the director's designee shall assess fines according to the following:
 - (i) for the first offense handled in accordance with Subsection (2)(a), a fine of up to \$1,000;
 - (ii) for a second offense handled in accordance with Subsection (2)(a), a fine of up to \$2,000; and
 - (iii) for each subsequent offense handled in accordance with Subsection (2)(a), a fine of up to \$2,000 for each day of continued offense.
- (3)
 - (a) An action for a first or second offense that has not yet resulted in a final order of the division may not preclude initiation of a subsequent action for a second or subsequent offense during the pendency of a preceding action.
 - (b) The final order on a subsequent action is considered a second or subsequent offense, respectively, provided the preceding action resulted in a first or second offense, respectively.
- (4)
 - (a) The director may collect a penalty that is not paid by:
 - (i) referring the matter to a collection agency; or
 - (ii) bringing an action in the district court of the county where the person against whom the penalty is imposed resides or in the county where the office of the director is located.
 - (b) A county attorney or the attorney general of the state shall provide legal assistance and advice to the director in an action to collect a penalty.
 - (c) A court may award reasonable attorney fees and costs to the prevailing party in an action brought by the division to collect a penalty.

Amended by Chapter 64, 2026 General Session

58-1-503 Maximum civil penalty for violation of court order.

- (1) If any written order issued under this title or if an injunction or temporary restraining order issued by a court of competent jurisdiction relating to this title is violated, the court may impose a civil penalty of not more than \$2,000 for each day the written order, injunction, or temporary restraining order is violated, if the person in violation has received notice of the written order, injunction, or temporary restraining order.
- (2) All penalties ordered under this section shall be deposited into the General Fund.

Renumbered and Amended by Chapter 297, 1993 General Session

58-1-504 Court-ordered discipline.

The division shall promptly withhold, suspend, restrict, or reinstate the use of a license issued under this title if so ordered by a court.

Enacted by Chapter 232, 1997 General Session

58-1-505 Cosmetic medical procedure supervisor.

- (1) For purposes of this section and Section 58-1-506:
 - (a) "Cosmetic medical facility" means a physician's office or a facility that has a supervisor who performs the supervision required in Section 58-1-506.
 - (b) "Supervisor" means:

- (i) a physician with an unrestricted license under Chapter 67, Utah Medical Practice Act, or Chapter 68, Utah Osteopathic Medical Practice Act, who is acting within the scope of the practice of medicine, as defined in Section 58-67-102; and
 - (ii) an advanced practice registered nurse with an unrestricted license under Chapter 31b, Nurse Practice Act, who is acting within the scope of practice of advanced practice registered nursing, as defined in Section 58-31b-102.
- (2)
- (a) An individual authorized by this title to perform a cosmetic medical procedure shall be supervised by a supervisor when performing a medical procedure.
 - (b) Cosmetic medical procedures may only be performed in a cosmetic medical facility.
 - (c) A supervisor may delegate the supervisory role only to another individual who is qualified as a supervisor.

Enacted by Chapter 362, 2012 General Session

58-1-506 Supervision of cosmetic medical procedures.

- (1) For purposes of this section:
- (a) "Delegation group A" means the following who are licensed under this title, acting within their respective scopes of practice, and qualified under Subsections (2)(f)(i) and (iii):
 - (i) a physician assistant, if acting in accordance with Chapter 70a, Utah Physician Assistant Act;
 - (ii) a registered nurse;
 - (iii) a master esthetician; and
 - (iv) an electrologist, if evaluating for or performing laser hair removal.
 - (b) "Delegation group B" means:
 - (i) a practical nurse or an esthetician who is licensed under this title, acting within the nurse or esthetician's respective scopes of practice, and qualified under Subsections (2)(f)(i) and (iii); and
 - (ii) a medical assistant who is qualified under Subsections (2)(f)(i) and (iii).
 - (c) "Direct cosmetic medical procedure supervision" means the supervisor:
 - (i) has authorized the procedure to be done on the patient by the supervisee; and
 - (ii) is present and available for a face-to-face communication with the supervisee when and where a cosmetic medical procedure is performed.
 - (d) "General cosmetic medical procedure supervision" means the supervisor:
 - (i) has authorized the procedure to be done on the patient by the supervisee;
 - (ii) is available in a timely and appropriate manner in person to evaluate and initiate care for a patient with a suspected adverse reaction or complication; and
 - (iii) is located within 60 minutes or 60 miles of the cosmetic medical facility.
 - (e) "Hair removal review" means:
 - (i) conducting an in-person, face-to-face interview of a patient based on the responses provided by the patient to a detailed medical history assessment that was prepared by the supervisor;
 - (ii) evaluating for contraindications and conditions that are part of the treatment plan; and
 - (iii) if the patient history or patient presentation deviates in any way from the treatment plan, referring the patient to the supervisor and receiving clearance from the supervisor before starting the treatment.
 - (f) "Indirect cosmetic medical procedure supervision" means the supervisor:
 - (i) has authorized the procedure to be done on the patient by the supervisee;
 - (ii) has given written instructions to the person being supervised;

- (iii) is present within the cosmetic medical facility in which the person being supervised is providing services; and
 - (iv) is available to:
 - (A) provide immediate face-to-face communication with the person being supervised; and
 - (B) evaluate the patient, as necessary.
- (2) A supervisor supervising a nonablative cosmetic medical procedure for hair removal shall:
 - (a) have an unrestricted license to practice medicine or advanced practice registered nursing in the state;
 - (b) develop the medical treatment plan for the procedure;
 - (c) conduct a hair removal review, or delegate the hair removal review to a member of delegation group A, of the patient prior to initiating treatment or a series of treatments;
 - (d) personally perform the nonablative cosmetic medical procedure for hair removal, or authorize and delegate the procedure to a member of delegation group A or B;
 - (e) during the nonablative cosmetic medical procedure for hair removal provide general cosmetic medical procedure supervision to individuals in delegation group A performing the procedure, except physician assistants, who shall act in accordance with Chapter 70a, Utah Physician Assistant Act, and indirect cosmetic medical procedure supervision to individuals in delegation group B performing the procedure; and
 - (f) verify that a person to whom the supervisor delegates an evaluation under Subsection (2)(c) or delegates a procedure under Subsection (2)(d):
 - (i) has received appropriate training regarding the medical procedures developed under Subsection (2)(b);
 - (ii) has an unrestricted license under this title or is performing under the license of the supervising physician and surgeon; and
 - (iii) has maintained competence to perform the nonablative cosmetic medical procedure through documented education and experience of at least 80 hours, as further defined by rule, regarding:
 - (A) the appropriate standard of care for performing nonablative cosmetic medical procedures;
 - (B) physiology of the skin;
 - (C) skin typing and analysis;
 - (D) skin conditions, disorders, and diseases;
 - (E) pre- and post-procedure care;
 - (F) infection control;
 - (G) laser and light physics training;
 - (H) laser technologies and applications;
 - (I) safety and maintenance of lasers;
 - (J) cosmetic medical procedures an individual is permitted to perform under this title;
 - (K) recognition and appropriate management of complications from a procedure; and
 - (L) cardiopulmonary resuscitation (CPR).
- (3) For a nonablative cosmetic medical procedure other than hair removal under Subsection (2):
 - (a) a physician who has an unrestricted license to practice medicine, a nurse practitioner who has an unrestricted license for advanced practice registered nursing, or a physician assistant acting in accordance with Chapter 70a, Utah Physician Assistant Act, who has an unrestricted license to practice as a physician assistant, shall:
 - (i) develop a treatment plan for the nonablative cosmetic medical procedure; and
 - (ii) conduct an evaluation of the patient either in-person or utilizing a live telemedicine visit before the initiation of a treatment protocol or series of treatments; and
 - (b) the supervisor supervising the procedure shall:

- (i) have an unrestricted license to practice medicine or advanced practice registered nursing;
 - (ii) personally perform the nonablative cosmetic medical procedure or:
 - (A) authorize and provide general cosmetic medical procedure supervision for the nonablative cosmetic medical procedure that is performed by a registered nurse or a master esthetician; or
 - (B) authorize and provide supervision as provided in Chapter 70a, Utah Physician Assistant Act, for the nonablative cosmetic medical procedure that is performed by a physician assistant; and
 - (C) authorize and provide direct cosmetic medical procedure supervision for the nonablative cosmetic medical procedure that is performed by an esthetician or a practical nurse; and
 - (iii) verify that a person to whom the supervisor delegates a procedure under Subsection (3)(b):
 - (A) has received appropriate training regarding the medical procedures to be performed;
 - (B) has an unrestricted license and is acting within the person's scope of practice under this title; and
 - (C) is qualified under Subsection (2)(f)(iii).
- (4) A supervisor performing or supervising a cosmetic medical procedure under Subsection (2) or (3) shall ensure that:
- (a) the supervisor's name is prominently posted at the cosmetic medical facility identifying the supervisor;
 - (b) a copy of the supervisor's license is displayed on the wall of the cosmetic medical facility;
 - (c) the patient receives written information with the name and licensing information of the supervisor who is supervising the nonablative cosmetic medical procedure and the person who is performing the nonablative cosmetic medical procedure;
 - (d) the patient is provided with a telephone number that is answered within 24 hours for follow-up communication; and
 - (e) the cosmetic medical facility's contract with a master esthetician who performs a nonablative cosmetic medical procedure at the facility is kept on the premises of the facility.
- (5) Failure to comply with the provisions of this section is unprofessional conduct.
- (6) A chiropractic physician licensed under Chapter 73, Chiropractic Physician Practice Act, is not subject to the supervision requirements in this section for a nonablative cosmetic medical procedure for hair removal if the chiropractic physician is acting within the scope of practice of a chiropractic physician and with training specific to nonablative hair removal.

Amended by Chapter 491, 2025 General Session

58-1-507 Cosmetic medical procedure -- Truth in advertising.

Beginning July 1, 2013, a facility that performs a cosmetic medical procedure as defined in Section 58-67-102 may not advertise or hold itself out to the public as a "medical spa," "medical facility," or "medical clinic" unless the facility has an individual on the premises while a cosmetic medical procedure is performed who is licensed under:

- (1) Chapter 31b, Nurse Practice Act, as an advanced practice registered nurse, practicing as a nurse practitioner;
- (2) Chapter 67, Utah Medical Practice Act; or
- (3) Chapter 68, Utah Osteopathic Medical Practice Act.

Enacted by Chapter 362, 2012 General Session

58-1-508 Failure to follow certain health care claims practices -- Penalties.

- (1) As used in this section, "health care provider" means an individual who is licensed to provide health care services under this title.
- (2) The division may assess a fine of up to \$500 per violation against a health care provider that violates Section 31A-26-313.
- (3) The division shall waive the fine described in Subsection (2) if:
 - (a) the health care provider demonstrates to the division that the health care provider mitigated and reversed any damage to the insured caused by the health care provider or third party's violation; or
 - (b) the insured does not pay the full amount due on the bill that is the subject of the violation, including any interest, fees, costs, and expenses, within 120 days after the day on which the health care provider or third party makes a report to a credit bureau or takes an action in violation of Section 31A-26-313.

Amended by Chapter 353, 2021 General Session

58-1-509 Patient consent for certain medical examinations.

- (1) As used in this section:
 - (a) "Health care provider" means:
 - (i) an individual who is:
 - (A) a healthcare provider as defined in Section 78B-3-403; and
 - (B) licensed under this title;
 - (ii) emergency medical service personnel as defined in Section 53-2d-101; or
 - (iii) an individual described in Subsection 58-1-307(1)(b) or (c).
 - (b) "Patient examination" means a medical examination that requires contact with the patient's sexual organs.
- (2) A health care provider may not perform a patient examination on an anesthetized or unconscious patient unless:
 - (a) the health care provider obtains consent from the patient or the patient's representative in accordance with Subsection (3);
 - (b) a court orders performance of the patient examination for the collection of evidence;
 - (c) the performance of the patient examination is within the scope of care for a procedure or diagnostic examination scheduled to be performed on the patient; or
 - (d) the patient examination is immediately necessary for diagnosis or treatment of the patient.
- (3) To obtain consent to perform a patient examination on an anesthetized or unconscious patient, before performing the patient examination, the health care provider shall:
 - (a) provide the patient or the patient's representative with a written or electronic document that:
 - (i) is provided separately from any other notice or agreement;
 - (ii) contains the following heading at the top of the document in not smaller than 18-point bold face type: "CONSENT FOR EXAMINATION OF PELVIC REGION";
 - (iii) specifies the nature and purpose of the patient examination;
 - (iv) names one or more primary health care providers whom the patient or the patient's representative may authorize to perform the patient examination;
 - (v) states whether there may be a student or resident that the patient or the patient's representative authorizes to:
 - (A) perform an additional patient examination; or
 - (B) observe or otherwise be present at the patient examination, either in person or through electronic means; and

- (vi) provides the patient or the patient's representative with a series of check boxes that allow the patient or the patient's representative to:
 - (A) consent to the patient examination for diagnosis or treatment and an additional patient examination performed by a student or resident for an educational or training purpose;
 - (B) consent to the patient examination only for diagnosis or treatment; or
 - (C) refuse to consent to the patient examination;
- (b) obtain the signature of the patient or the patient's representative on the written or electronic document while witnessed by a third party; and
- (c) sign the written or electronic document.

Amended by Chapter 310, 2023 General Session

Amended by Chapter 328, 2023 General Session

58-1-510 Anesthesia and sedation requirements -- Unprofessional conduct -- Whistleblower protection.

(1) As used in this section:

- (a) "Anesthesia or sedation provider" means an individual who is licensed:
 - (i) under Chapter 5a, Podiatric Physician Licensing Act;
 - (ii) under Subsection 58-31b-301(2)(b);
 - (iii) under Chapter 67, Utah Medical Practice Act;
 - (iv) under Chapter 68, Utah Osteopathic Medical Practice Act; or
 - (v) as a dentist under Chapter 69, Dentist and Dental Hygienist Practice Act, and who has obtained the appropriate permit established by the division under Subsection 58-69-301(4).
- (b) "Deep sedation" means a drug-induced depression of consciousness where an individual:
 - (i) cannot be easily aroused;
 - (ii) responds purposefully following repeated or painful stimulation;
 - (iii) may not be able to independently maintain ventilatory function;
 - (iv) may require assistance in maintaining a patent airway; and
 - (v) usually maintains cardiovascular function.
- (c) "General anesthesia" means a drug-induced loss of consciousness where an individual:
 - (i) cannot be aroused, even by painful stimulation;
 - (ii) is often unable to maintain ventilatory function;
 - (iii) often requires assistance in maintaining a patent airway and positive pressure ventilation may be required because of depressed spontaneous ventilation or drug-induced depression of neuromuscular function; and
 - (iv) may not be able to maintain cardiovascular function.
- (d) "General anesthetic" means a drug identified as a general anesthetic by the federal Food and Drug Administration.
- (e) "Minimal sedation" means a drug-induced state where an individual:
 - (i) responds normally to verbal commands;
 - (ii) may have reduced cognitive function and physical coordination; and
 - (iii) maintains airway reflexes, ventilatory function, and cardiovascular function.
- (f) "Moderate sedation" means a drug-induced depression of consciousness where an individual:
 - (i) responds purposefully to verbal commands, either alone or accompanied by light tactile stimulation;
 - (ii) maintains a patent airway;
 - (iii) maintains spontaneous ventilation; and
 - (iv) usually maintains cardiovascular function.

- (2) An anesthesia or sedation provider may not cause a patient to undergo moderate sedation, deep sedation, or general anesthesia, in an outpatient setting that is not an emergency department without:
- (a) first providing the following information in writing and verbally:
 - (i) the level of anesthesia or sedation being administered;
 - (ii) the identity, type of license, and training of the provider who is performing the procedure for which the anesthesia or sedation will be administered;
 - (iii) the identity, type of license, and a description of the training described in Subsection (4) of the anesthesia or sedation provider who will be administering the anesthesia or sedation; and
 - (iv) a description of the monitoring that will occur during the sedation or anesthesia, including descriptions related to the monitoring of the patient's oxygenation, ventilation, and circulation;
 - (b) after complying with Subsection (2)(a), obtaining the patient's written and verbal consent regarding the procedure;
 - (c) having the training described in Subsection (4);
 - (d) directly supervising the patient;
 - (e) if the patient is a minor, having a current pediatric advanced life support certification;
 - (f) if the patient is an adult, having a current advanced cardiovascular life support certification or perioperative resuscitation and life support certification;
 - (g)
 - (i) having at least one individual in the procedure room who has advanced airway training and the knowledge and skills to recognize and treat airway complications and rescue a patient who entered a deeper than intended level of sedation; or
 - (ii) if the anesthesia or sedation provider is administering ketamine for a non-anesthetic purpose, having at least one individual on site and available who has advanced airway training and the knowledge and skills to recognize and treat airway complications and rescue a patient who entered a deeper than intended level of sedation;
 - (h) having access during the procedure to an advanced cardiac life support crash cart in the office with equipment that:
 - (i) is regularly maintained according to guidelines established by the American Heart Association; and
 - (ii) includes:
 - (A) a defibrillator;
 - (B) administrable oxygen;
 - (C) age appropriate airway equipment;
 - (D) positive pressure ventilation equipment; and
 - (E) unexpired emergency and reversal medications including naloxone for opioid sedation and flumazenil for benzodiazepine sedation;
 - (i) using monitors that meet basic standards set by the American Society of Anesthesiologists and continually monitoring ventilatory function with capnography unless precluded or invalidated by the nature of the patient, procedure, or equipment; and
 - (j) entering appropriate information into the patient's chart or medical record, which shall include:
 - (i) the patient's name;
 - (ii) the route and site the anesthesia or sedation was administered;
 - (iii) the time of anesthesia or sedation administration and the dosage;
 - (iv) the patient's periodic vital signs during the procedure; and
 - (v) the name of the individual who monitored the patient's oxygenation and ventilation.

- (3)
 - (a) An anesthesia or sedation provider who violates Subsection (2) or a rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, to implement this section commits unprofessional conduct.
 - (b) An individual commits unprofessional conduct if the individual administers anesthesia or sedation for which the individual is not appropriately trained.
- (4)
 - (a) In accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division shall make rules to create training and safety standards regarding the inducing of general anesthesia, deep sedation, and moderate sedation:
 - (i) for each license described in Subsection (1)(a);
 - (ii) that are based on standards created by nationally recognized organizations, such as the American Society of Anesthesiologists, the American Dental Association, or the American Association of Oral and Maxillofacial Surgeons; and
 - (iii) that include safety standards for general anesthetic use that are consistent with federal Food and Drug Administration guidance.
 - (b) For making rules described in Subsection (4)(a), the division shall consult with the applicable licensing boards and a board described in Sections 58-67-201, and 58-69-201.
- (5) The requirements of Subsection (2) do not apply to the practice of inducing minimal sedation.
- (6) An employer may not take an adverse employment action against an employee if:
 - (a) the employee notifies the division of:
 - (i) a violation of this section; or
 - (ii) a violation of a rule the division makes in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, to implement this section; and
 - (b) the employment action is based on the individual notifying the division of the violation.

Amended by Chapter 96, 2026 General Session

58-1-511 Prohibition on providing conversion therapy to a minor.

- (1) As used in this section:
 - (a) "Conversion therapy" means a practice or treatment by which a health care professional intends to change a minor client's sexual orientation or gender identity, or to impose a different sexual orientation or gender identity upon a minor client, including a practice or treatment that:
 - (i) subjects a minor client to physical discomfort through aversive treatment that causes nausea, vomiting, or other unpleasant physical sensation;
 - (ii) provides electric shock or other electrical therapy, including electroconvulsive therapy or transcranial magnetic stimulation;
 - (iii) subjects a minor client to touching themselves or another individual as part of the therapy; or
 - (iv) causes the minor client to engage in physical self-harm or physical self-inflicted pain.
 - (b) "Health care professional" means an individual who is licensed, or an individual who provides mental health therapy as part of the individual's training for a profession that is licensed, under:
 - (i) Chapter 31b, Nurse Practice Act;
 - (ii) Chapter 60, Mental Health Professional Practice Act;
 - (iii) Chapter 61, Psychologist Licensing Act;
 - (iv) Chapter 67, Utah Medical Practice Act;
 - (v) Chapter 68, Utah Osteopathic Medical Practice Act; or

- (vi) Chapter 70a, Utah Physician Assistant Act.
- (c) "Minor client" means an individual who is younger than 18 years old and who consults, is examined or interviewed by, or receives services, care, or treatment from a health care professional who is acting in their professional capacity.
- (d) "Religious advisor" means an individual who is designated by a religious organization or association as clergy, minister, pastor, priest, rabbi, imam, bishop, stake president, or other spiritual advisor.
- (e)
 - (i) "Sexual orientation" means the same as that term is defined in Section 34A-5-102.
 - (ii) "Sexual orientation" does not include an action that would constitute sexual abuse or sexual exploitation as those terms are defined in Section 80-1-102.
- (2) A health care professional who is acting in their professional capacity may not provide conversion therapy to a minor client.
- (3) A health care professional who is not intending to change a minor client's sexual orientation or gender identity, or to impose a different sexual orientation or gender identity upon a minor client, may engage in any professional and lawful conduct, including a practice or treatment by which the health care professional:
 - (a) is neutral with respect to sexual orientation and gender identity;
 - (b) provides a minor client with acceptance, support, and understanding;
 - (c) provides treatment to a minor client who is considering a gender transition in any direction, including exploration of the timing thereof;
 - (d) facilitates a minor client's social support, ability to cope, or the exploration and development of the minor client's identity, including sexual orientation or gender identity;
 - (e) addresses unlawful, unsafe, premarital, or extramarital sexual activities in a manner that is neutral with respect to sexual orientation and gender identity;
 - (f) discusses moral, philosophical, or religious beliefs or practices;
 - (g) addresses body-image issues, social pressure, or sex or gender stereotypes;
 - (h) addresses co-occurring mental health, neurological, developmental, trauma, or family issues;
 - (i) helps a minor client to understand and assess the stages and timing of identity development;
 - (j) consistent with other applicable laws, rules, orders, and ethical standards, discusses with a minor client's parent or guardian the mental health or development of a minor client; or
 - (k) assists the minor client to understand the medical, social, or other implications of decisions related to sexual orientation or gender identity.
- (4) Subsection (2) does not apply to:
 - (a) an individual who is both a health care professional and a religious advisor, when the individual is acting substantially in the capacity of a religious advisor and not in the capacity of a health care professional; or
 - (b) an individual who is both a health care professional and a parent or grandparent, when the individual is acting substantially in the capacity of a parent or grandparent and not in the capacity of a health care professional.
- (5) A violation of this section is unprofessional conduct.
- (6) A rule adopted under this title that defines "unprofessional conduct" shall be consistent with this section.
- (7) If any provision of this section or the application of any provision to any person or circumstance is held invalid by a final decision of a court of competent jurisdiction, the invalidity does not affect other provisions or applications of this section which can be given effect without the invalid provision or application, and to this end the provisions of this section are severable.

Enacted by Chapter 463, 2023 General Session

58-1-512 Stem cell disclosure.

- (1) As used in this section:
 - (a) "Health care provider" means the same as that term is defined in Section 78B-3-403.
 - (b) "Human cells, tissues, or cellular or tissue-based products" has the same meaning as in 21 C.F.R. Sec. 1271.3 as it exists on May 1, 2024.
 - (c)
 - (i) "Stem cell therapy" means a treatment involving the use of afterbirth placental perinatal stem cells or human cells, tissues, or cellular or tissue-based products.
 - (ii) "Stem cell therapy" does not include treatment or research using human cells or tissues that were derived from a fetus or embryo after an abortion.
- (2)
 - (a) A health care provider whose scope of practice includes the use of stem cell therapy may perform a stem cell therapy that is not approved by the United States Food and Drug Administration, if the health care provider provides the patient with the following written notice before performing the therapy:

"THIS NOTICE MUST BE PROVIDED TO YOU UNDER UTAH LAW. This health care practitioner performs one or more stem cell therapies that have not yet been approved by the United States Food and Drug Administration. You are encouraged to consult with your primary care provider before undergoing a stem cell therapy."
 - (b) A person may supply or provide human cells, tissues, or cellular or tissue-based products to a health care provider if:
 - (i) the health care provider's scope of practice includes the use of stem cell therapy; and
 - (ii) prior to supplying or providing the human cells, tissues, or cellular or tissue-based products to the health care provider, the health care provider provides to the person a written confirmation that the health care provider will provide the notice under Subsection (2)(a) to each of the health care provider's patients whose stem cell therapy will utilize the human cells, tissues, or cellular or tissue-based products.
- (3)
 - (a) The written notice described in Subsection (2) shall be:
 - (i) on paper that is at least eight and one-half inches by eleven inches; and
 - (ii) written in no less than forty point type.
 - (b) The health care provider shall prominently display the written notice in the entrance and in an area visible to patients in the health care provider's office.
- (4)
 - (a) A health care provider who is required to provide written notice under Subsection (2) shall obtain a signed consent form before performing the therapy.
 - (b) The consent form shall:
 - (i) be signed by the patient, or, if the patient is legally not competent, the patient's representative; and
 - (ii) state, in language the patient could reasonably be expected to understand:
 - (A) the nature and character of the proposed treatment, including the treatment's United States Food and Drug Administration approval status;
 - (B) the anticipated results of the proposed treatment;
 - (C) the recognized possible alternative forms of treatment; and

- (D) the recognized serious possible risks, complications, and anticipated benefits involved in the treatment and in the recognized possible alternative forms of treatment, including nontreatment.
- (5)
 - (a) A health care provider described in Subsection (2) shall include the notice described in Subsection (2) in any advertisement for the stem cell therapy.
 - (b) In a print advertisement, the notice shall be clearly legible, in a font size no smaller than the largest font size used in the advertisement.
 - (c) In any other advertisement, the notice shall be:
 - (i) clearly legible in a font size no smaller than the largest font size used in the advertisement; or
 - (ii) clearly spoken.
- (6) This section does not apply to:
 - (a) a health care provider who has obtained approval for an investigational new drug or device from the United States Food and Drug Administration for the use of human cells, tissues, or cellular or tissue-based products; or
 - (b) a health care provider who performs a stem cell therapy under an employment or other contract on behalf of an institution certified by any of the following:
 - (i) the Foundation for the Accreditation of Cellular Therapy;
 - (ii) the Blood and Marrow Transplant Clinical Trials Network;
 - (iii) the Association for the Advancement of Blood and Biotherapies; or
 - (iv) an entity with expertise regarding stem cell therapy as determined by the division.
- (7) A violation of this section is unprofessional conduct.

Amended by Chapter 87, 2026 General Session

58-1-513 Recommending medical provider cannabis advertisement -- Payment restriction -- Unprofessional conduct.

- (1) As used in this section:
 - (a) "Recommending medical provider" means the same as that term is defined in Section 26B-4-201.
 - (b) "Targeted marketing" means the same as that term is defined in Section 26B-4-201.
- (2)
 - (a) Except as provided in Subsections (2)(b) and (c), a person may not advertise that the person or the person's employee recommends a medical cannabis treatment.
 - (b) Notwithstanding Subsection (2)(a) and Section 4-41a-109, a recommending medical provider, medical clinic, or medical office that employs a recommending medical provider may advertise only the following:
 - (i) a green cross;
 - (ii) the provider's or clinic's name and logo;
 - (iii) a qualifying condition that the individual treats;
 - (iv) that the recommending medical provider, medical clinic, or medical office evaluates patients for medical cannabis recommendations;
 - (v) a scientific study regarding medical cannabis use; or
 - (vi) contact information.
 - (c) Notwithstanding Subsection (2)(a) and Section 4-41a-109, a recommending medical provider, medical clinic, or medical office that employs a recommending medical provider may engage

in targeted marketing, as determined by the Department of Health and Human Services through rule, for advertising medical cannabis recommendation services.

- (3)
 - (a) A recommending medical provider may not:
 - (i) receive any compensation or benefit for the recommending medical provider's medical cannabis treatment recommendation from:
 - (A) a cannabis production establishment or an owner, officer, director, board member, employee, or agent of a cannabis production establishment;
 - (B) a medical cannabis pharmacy or an owner, officer, director, board member, employee, or agent of a medical cannabis pharmacy; or
 - (C) a recommending medical provider or pharmacy medical provider; or
 - (ii) provide a medical cannabis recommendation at a medical clinic or medical office that is violating the advertising limitations described in Subsection (2).
 - (b) A violation of Subsection (3)(a) is unprofessional conduct.

Enacted by Chapter 392, 2025 General Session

Part 6

Unique Training and Certification for Health Care Providers

58-1-601 Suicide prevention video -- Primary care providers.

- (1) As used in this section:
 - (a) "Nurse practitioner" means an individual who is licensed to practice as an advanced practice registered nurse under Chapter 31b, Nurse Practice Act.
 - (b) "Physician" means an individual licensed to practice as a physician or osteopath under Chapter 67, Utah Medical Practice Act, or Chapter 68, Utah Osteopathic Medical Practice Act.
 - (c) "Physician assistant" means an individual who is licensed to practice as a physician assistant under Chapter 70a, Utah Physician Assistant Act.
 - (d) "Primary care provider" means a nurse practitioner, physician, or physician assistant.
- (2) The division, in conjunction with the Division of Integrated Healthcare created in Section 26B-1-204, shall:
 - (a) create a series of suicide prevention videos that:
 - (i) are web-accessible;
 - (ii) are each no longer than 20 minutes in length; and
 - (iii) include information about:
 - (A) individuals at-risk for suicide; and
 - (B) suicide prevention and intervention; and
 - (b) provide, on the division's website, educational materials or courses that relate to suicide prevention that a primary care provider may complete at no cost and apply toward continuing competency requirements required by division rule.
- (3) The division shall, in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, make rules that establish procedures for:
 - (a) producing the suicide prevention videos described in Subsection (2); and
 - (b) providing access to the videos to each primary care provider.

Amended by Chapter 255, 2022 General Session

58-1-602 Auricular detoxification certification.

- (1) As used in this section:
 - (a) "Health care provider" means an individual who is licensed under:
 - (i) Subsection 58-31b-301(2)(a), (2)(b), (2)(c), (2)(d), (2)(f), or (2)(g);
 - (ii) Chapter 60, Mental Health Professional Practice Act;
 - (iii) Chapter 61, Part 3, Licensing; or
 - (iv) Chapter 70a, Utah Physician Assistant Act.
 - (b)
 - (i) "NADA protocol" means:
 - (A) a protocol developed by the National Acupuncture Detoxification Association; and
 - (B) an adjunctive therapy using one to five invariant ear acupuncture or acupressure points for the adjunctive treatment and prevention of substance use disorders or to provide support for individuals who have experienced physical or emotional trauma.
 - (ii) "NADA protocol" does not include the stimulation of other auricular or distal acupuncture points.
- (2) A health care provider may perform the NADA protocol if the health care provider:
 - (a) obtains a certification from the National Acupuncture Detoxification Association to perform the NADA protocol; and
 - (b) provides the division proof of obtaining the certification.
- (3) A health care provider may perform a protocol substantially similar to the NADA protocol if:
 - (a) the division has determined the protocol is substantially similar to the NADA protocol; and
 - (b) the individual has met each requirement the division has created to perform the protocol.
- (4) In accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, the division may make rules for implementing Subsection (3).

Amended by Chapter 96, 2026 General Session

58-1-603 Hormonal transgender treatment on minors -- Requirements.

- (1) As used in this section:
 - (a) "Approved organization" means an organization with expertise regarding transgender health care for minors that is approved by the division.
 - (b) "Biological sex at birth" means an individual's sex, as being male or female, according to distinct reproductive roles as manifested by sex and reproductive organ anatomy, chromosomal makeup, and endogenous hormone profiles.
 - (c) "Disorder of sexual development" means a sexual development disorder where an individual:
 - (i) is born with external biological sex characteristics that are irresolvably ambiguous;
 - (ii) is born with 46, XX chromosomes with virilization;
 - (iii) is born with 46, XY chromosomes with undervirilization;
 - (iv) has both ovarian and testicular tissue; or
 - (v) has been diagnosed by a physician, based on genetic or biochemical testing, with abnormal:
 - (A) sex chromosome structure;
 - (B) sex steroid hormone production; or
 - (C) sex steroid hormone action for a male or female.
 - (d) "Health care provider" means:
 - (i) a physician;
 - (ii) a physician assistant licensed under Chapter 70a, Utah Physician Assistant Act; or

- (iii) an advanced practice registered nurse licensed under Subsections 58-31b-301(2)(a) through (c).
 - (e)
 - (i) "Hormonal transgender treatment" means administering, prescribing, or supplying for effectuating or facilitating an individual's attempted sex change:
 - (A) to an individual whose biological sex at birth is female, a dose of testosterone or other androgens at levels above those normally found in an individual whose biological sex at birth is female;
 - (B) to an individual whose biological sex at birth is male, a dose of estrogen or a synthetic compound with estrogenic activity or effect at levels above those normally found in an individual whose biological sex at birth is male; or
 - (C) a puberty inhibition drug.
 - (ii) "Hormonal transgender treatment" does not include administering, prescribing, or supplying a substance described in Subsection (1)(e)(i) to an individual if the treatment is medically necessary as a treatment for:
 - (A) precocious puberty;
 - (B) endometriosis;
 - (C) a menstrual, ovarian, or uterine disorder;
 - (D) a sex-hormone stimulated cancer; or
 - (E) a disorder of sexual development.
 - (f) "Mental health professional" means any of the following:
 - (i) a physician who is board certified for a psychiatry specialization recognized by the American Board of Medical Specialists or the American Osteopathic Association's Bureau of Osteopathic Specialists;
 - (ii) a psychologist licensed under Chapter 61, Psychologist Licensing Act;
 - (iii) a clinical social worker licensed under Chapter 60, Part 2, Social Worker Licensing Act;
 - (iv) a marriage and family therapist licensed under Chapter 60, Part 3, Marriage and Family Therapist Licensing Act; or
 - (v) a clinical mental health counselor licensed under Chapter 60, Part 4, Clinical Mental Health Counselor Licensing Act.
 - (g) "Minor" means an individual who is less than 18 years old.
 - (h) "Physician" means an individual licensed under:
 - (i) Chapter 67, Utah Medical Practice Act; or
 - (ii) Chapter 68, Utah Osteopathic Medical Practice Act.
 - (i) "Puberty inhibition drug" means any of the following alone or in combination with aromatase inhibitors:
 - (i) gonadotropin-releasing hormone agonists; or
 - (ii) androgen receptor inhibitors.
 - (j) "Transgender treatment certification" means a certification described in Subsection (2).
- (2)
- (a) The division shall create a transgender treatment certification on or before July 1, 2023.
 - (b) The division may issue the transgender treatment certification to an individual if the individual:
 - (i) is a health care provider or a mental health professional; and
 - (ii) has completed at least 40 hours of education related to transgender health care for minors from an approved organization.
 - (c) The division may renew a transgender treatment certification:
 - (i) at the time an individual renews the individual's license; and

- (ii) if the individual has completed at least 20 hours of continuing education related to transgender health care for minors from an approved organization during the individual's continuing education cycle.
- (d) Beginning January 1, 2024, providing a hormonal transgender treatment to a minor without a transgender treatment certification is unprofessional conduct.
- (3)
 - (a) A health care provider may provide a hormonal transgender treatment to a minor only if the health care provider has been treating the minor for gender dysphoria for at least six months.
 - (b) Beginning July 1, 2023, before providing a hormonal transgender treatment to a minor described in Subsection (3)(a), a health care provider shall:
 - (i) determine if the minor has other physical or mental health conditions, identify and document any condition, and consider whether treating those conditions before treating the gender dysphoria would provide the minor the best long-term outcome;
 - (ii) consider whether an alternative medical treatment or behavioral intervention to treat the minor's gender dysphoria would provide the minor the best long-term outcome;
 - (iii) document in the medical record that:
 - (A) the health care provider has complied with Subsections (3)(b)(i) and (ii); and
 - (B) providing the hormonal transgender treatment will likely result in the best long-term outcome for the minor;
 - (iv) obtain written consent from:
 - (A) the minor; and
 - (B) the minor's parent or guardian unless the minor is emancipated;
 - (v) discuss with the minor:
 - (A) the risks of the hormonal transgender treatment;
 - (B) the minor's short-term and long-term expectations regarding the effect that the hormonal transgender treatment will have on the minor; and
 - (C) the likelihood that the hormonal transgender treatment will meet the short-term and long-term expectations described in Subsection (3)(b)(v)(B);
 - (vi) unless the minor is emancipated, discuss with the minor's parent or guardian:
 - (A) the risks of the hormonal transgender treatment;
 - (B) the minor's short-term and long-term expectations regarding the effect that the hormonal transgender treatment will have on the minor;
 - (C) the parent or guardian's short-term and long-term expectations regarding the effect that the hormonal transgender treatment will have on the minor; and
 - (D) the likelihood that the hormonal transgender treatment will meet the short-term and long-term expectations described in Subsections (3)(b)(vi)(B) and (C);
 - (vii) document in the medical record that the health care provider has provided the information described in Subsections (3)(b)(viii) and (ix);
 - (viii) provide the minor the following information if providing the minor a puberty inhibition drug:
 - (A) puberty inhibition drugs are not approved by the FDA for the treatment of gender dysphoria;
 - (B) possible adverse outcomes of puberty blockers are known to include diminished bone density, pseudotumor cerebri and long term adult sexual dysfunction;
 - (C) research on the long-term risks to children of prolonged treatment with puberty blockers for the treatment of gender dysphoria has not yet occurred; and
 - (D) the full effects of puberty blockers on brain development and cognition are unknown;
 - (ix) provide the minor the following information if providing a cross-sex hormone as described in Subsection (1)(e)(i)(A) or (B):

- (A) the use of cross-sex hormones in males is associated with risks that include blood clots, gallstones, coronary artery disease, heart attacks, tumors of the pituitary gland, strokes, elevated levels of triglycerides in the blood, breast cancer, and irreversible infertility; and
 - (B) the use of cross-sex hormones in females is associated with risks of erythrocytosis, severe liver dysfunction, coronary artery disease, hypertension, and increased risk of breast and uterine cancers; and
 - (x) upon the completion of any relevant information privacy release, obtain a mental health evaluation of the minor as described in Subsection (4).
- (4) The mental health evaluation shall:
- (a) be performed by a mental health professional who:
 - (i) beginning January 1, 2024, has a current transgender treatment certification; and
 - (ii) is not the health care provider that is recommending or providing the hormonal transgender treatment;
 - (b) contain a determination regarding whether the minor suffers from gender dysphoria in accordance with the fifth edition of the Diagnostic and Statistical Manual of Mental Disorders;
 - (c) confirm that the minor and the mental health professional have had at least three therapy sessions; and
 - (d) document all of the minor's mental health diagnoses and any significant life events that may be contributing to the diagnoses.
- (5) A violation of Subsection (3) is unprofessional conduct.

Amended by Chapter 96, 2026 General Session

58-1-603.1 Hormonal transgender treatment prohibition for minors.

- (1) As used in this section:
- (a) "Cross-sex hormone treatment" means administering, prescribing, or supplying for effectuating or facilitating an individual's attempted sex change:
 - (i) to an individual whose biological sex at birth is female, a dose of testosterone or other androgens at levels above those normally found in an individual whose biological sex at birth is female; or
 - (ii) to an individual whose biological sex at birth is male, a dose of estrogen or a synthetic compound with estrogenic activity or effect at levels above those normally found in an individual whose biological sex at birth is male.
 - (b) "Health care provider" means the same as that term is defined in Section 58-1-603.
 - (c) "Hormonal transgender treatment" means the same as that term is defined in Section 58-1-603.
 - (d) "Minor" means the same as that term is defined in Section 58-1-603.
- (2) Subject to Subsection (3), a health care provider may not provide a hormonal transgender treatment to a patient who:
- (a) is a minor; and
 - (b) is not diagnosed with gender dysphoria before January 28, 2023.
- (3) Notwithstanding Subsection 58-1-603(3)(a), beginning on January 28, 2027, a health care provider may not provide a hormonal transgender treatment to a patient who is a minor if the patient:
- (a) would be younger than 16 years old as of the effective date of this bill; or
 - (b) has not received cross-sex hormones as of the effective date of this bill.

- (4) A health care provider who provides hormonal transgender treatment to a minor for the purpose of discontinuing treatment before January 28, 2027, may provide the treatment without obtaining a transgender treatment certification described in Section 58-1-603.
- (5) A violation of Subsection (2) or (3) is unprofessional conduct.

Amended by Chapter 109, 2026 General Session

58-1-604 Invisible condition alert program information -- Health care professionals.

- (1) As used in this section:
 - (a) "Health care professional" means the same as that term is defined in Section 53-3-207.
 - (b) "Invisible condition" means the same as that term is defined in Section 53-3-207.
 - (c) "Invisible condition alert program" means the same as that term is defined in Section 53-27-101.
- (2) The division, in conjunction with the Department of Health and Human Services created in Section 26B-1-201, shall provide information to each health care professional in the state regarding the invisible condition alert program, including:
 - (a) access to informational materials described in Section 26B-7-120 that health care professionals shall make available to patients; and
 - (b) access to educational materials for health care professionals regarding the invisible condition alert program.
- (3) A health care professional in this state shall make available to the health care professional's patients the informational materials described in Subsection (2)(a).
- (4) The division may, in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, make rules that establish procedures for implementing this section.

Enacted by Chapter 456, 2023 General Session

58-1-605 Required bereavement training.

- (1)
 - (a) The division, in collaboration with the Department of Health and Human Services, shall develop an optional training to educate health care providers on best practices for supporting patients and families experiencing pregnancy or infant loss.
 - (b) The training shall be for providers, but may incorporate rules and procedures relating to pregnancy and infant loss for health care facilities described in Section 26B-2-247.
- (2) The division shall establish rules, in accordance with Title 63G, Chapter 3, Utah Administrative Rulemaking Act, that allow licensed health care professionals that work in emergency care, obstetrics and gynecology, and labor and delivery settings to take the bereavement training and have the training apply to the health care professional's continuing medical education credit requirements.

Enacted by Chapter 162, 2026 General Session



Utah Administrative Code R156-1

General Rule of the Division of Professional Licensing

The general implementing rule. Effective December 24, 2024.

Source: Utah Office of Administrative Rules, adminrules.utah.gov

Profession-specific rules such as R156-26a may supplement or alter this rule.

R156. Commerce, Professional Licensing.

R156-1. General Rule of the Division of Professional Licensing.

R156-1-101. Title - Authority - Organization of Rules.

- (1) This rule is known as the "General Rule of the Division of Professional Licensing."
- (2) The Division adopts this rule under the authority of Subsection 58-1-106(1)(a) to enable the Division to administer Title 58, Occupations and Professions.
- (3)(a) The rules and sections in Title R156 shall, to the extent practicable, follow the numbering and organization of the chapters in Title 58, Occupations and Professions.
- (b) This Rule R156-1 has general provisions for the administration and enforcement of professions regulated in Title 58, Occupations and Professions.
- (c) Rule R156-46b is the Division's Utah Administrative Procedures Act Rule for Division adjudicative proceedings.
- (d) The other rules in Title R156 have specific or unique provisions for specific Division professions or programs, which may supplement or alter Rule R156-1 unless expressly provided otherwise in Rule R156-1.

R156-1-102. Definitions.

- Terms used in this rule are defined in Title 58, Chapter 1, Division of Professional Licensing Act. In addition:
- (1)(a) "Active and in good standing" means a licensure status that allows the licensee full privileges to engage in the practice of the profession subject to the scope of the licensee's license classification.
 - (b) A license that has been placed on probation subject to terms and conditions is not active and in good standing.
 - (2)(a) "Aggravating circumstances" means any consideration or factors that may justify an increase in the severity of an action to be imposed upon an applicant or licensee.
 - (b) "Aggravating circumstances" include the following:
 - (i) prior record of disciplinary action, unlawful conduct, or unprofessional conduct;
 - (ii) dishonest or selfish motive;
 - (iii) pattern of misconduct;
 - (iv) multiple offenses;
 - (v) obstruction of the disciplinary process by intentionally failing to comply with rules or orders of the Division;
 - (vi) submission of false evidence, false statements, or engaging in other deceptive practices, including creating, destroying, or altering records;
 - (vii) refusal to acknowledge the wrongful nature of the misconduct involved, either to the client or to the Division;
 - (viii) vulnerability of the victim;
 - (ix) lack of good faith to make restitution or to rectify the consequences of the misconduct;
 - (x) illegal conduct, including the use of controlled substances; or
 - (xi) intimidation or threats of withholding client records or other detrimental consequences if the client reports or testifies regarding the unprofessional or unlawful conduct.
 - (3) "Cancel" or "cancellation" means nondisciplinary action by the Division to rescind, repeal, annul, or void a license:
 - (a) issued to a licensee in error, such as where a license is issued to an applicant:
 - (i) whose payment of the required application fee is dishonored when presented for payment;
 - (ii) who has been issued a conditional license pending a criminal background check and the check cannot be completed due to the applicant's failure to resolve an outstanding warrant or to submit acceptable fingerprint cards; or
 - (iii) who has been issued the wrong classification of licensure; or
 - (b) not issued in error, but the licensee fails to maintain the ongoing qualifications for licensure and the failure is not defined as unprofessional conduct or unlawful conduct.
 - (4) "Charges" means the acts or omissions alleged to constitute either unprofessional or unlawful conduct or both by a licensee, that serve as the basis to consider a licensee for inclusion in the Utah Professionals Health Program authorized in Title 58, Chapter 4a, Utah Professionals Health Program.
 - (5)(a) "Cheating" means the use of any means or instrumentality by or for the benefit of a candidate to alter exam results to inaccurately represent the competency of a candidate with respect to the knowledge or skills about which the candidate is examined.
 - (b) "Cheating" includes:
 - (i) for a candidate during an exam:
 - (A) communication about the exam with another candidate inside the exam room or facility;
 - (B) communication about the exam with anyone outside of the exam room or facility;
 - (C) copying or looking at another candidate's answers;
 - (D) allowing another candidate to copy or look at the candidate's answers;
 - (E) use of any item, material, or device that is not specifically authorized for use in the exam; or
 - (F) unauthorized tampering with exam equipment or materials;
 - (ii) allowing access to exam questions or answers if not authorized by the Division;
 - (iii) taking or attempting to take an exam for another individual;
 - (iv) obtaining, using, disclosing, buying, selling, possessing, or having access to any part of a Division exam without written authorization from the Division or its contracted vendor;
 - (v) violating an exam confidentiality agreement; or

(vi) attesting that the candidate meets the qualifications to sit for an exam if the candidate knows or reasonable should know that the candidate does not meet the qualifications.

(c) "Cheating" is unlawful conduct under Subsection 58-1-501(1)(c) and unprofessional conduct under Subsection 58-1-501(2)(a)(viii).

(6) "Conditional licensure" means an interim non-adverse licensure action, in which a license is issued to an applicant for initial, renewal, or reinstatement of licensure on a conditional basis in accordance with Section R156-1-308f, while an investigation, inspection, or audit is pending.

(7) "Denial of licensure" means action by the Division refusing to issue a license to an applicant for initial licensure, renewal of licensure, reinstatement of licensure, or relicensure.

(8)(a) "Disciplinary action" means adverse licensure action by the Division under the authority of Subsection 58-1-401(2)(a) or (b).

(b) "Disciplinary action" as used in Subsection 58-1-401(6):

(i) means an adverse licensure action initiated by the Division; and

(ii) does not mean an adverse licensure action taken by the Division in response to an application for licensure.

(9) "Duplicate license" means a license reissued to replace a license that has been lost, stolen, or mutilated.

(10) "Emergency review committee" means an emergency adjudicative proceedings review committee created by the Division under the authority of Subsection 58-1-108(2).

(11) "Expire" or "expiration" means the automatic termination of a license that occurs:

(a) at the expiration date shown upon a license if the licensee fails to renew the license before the expiration date; or
(b) before the expiration date shown on the license:

(i) upon the death of a licensee who is a natural person;

(ii) upon the dissolution of a licensee that is a business structure such as a partnership, corporation, or other business entity; or

(iii) upon the issuance of a new license that supersedes an old license, including a license that:

(A) replaces a temporary license;

(B) replaces a student or other interim license that is limited to one or more renewals or other renewal limitation; or

(C) is issued to a licensee in an upgraded classification permitting the licensee to engage in a broader scope of practice in the licensed occupation or profession.

(12) "Home telephone number" in Section 58-1-106 or R156-1-106 includes a licensee's personal cell phone number.

(13) "Home address" in Section 58-1-106 or R156-1-106 may include a licensee's mailing address or email address.

(14) "Inactive" or "inactivation" means action by the Division to place a license on inactive status in accordance with Section 58-1-305 and Section R156-1-305.

(15) "Investigative subpoena authority" means the Division assistant director or legal analyst, or an alternate designated by the director in writing.

(16) "License" means a right or privilege to engage in the practice of a regulated profession as a licensee.

(17) "Limit" or "limitation" means nondisciplinary action placing either terms and conditions or restrictions, or both upon a license:

(a) issued to an applicant for initial licensure, renewal, or reinstatement of licensure, or relicensure; or

(b) issued to a licensee in place of the licensee's current license or disciplinary status.

(18) "Mitigating circumstances" means any consideration or factors that may justify a reduction in the severity of an action to be imposed upon an applicant or licensee.

(a) Mitigating circumstances include:

(i) absence of prior record of disciplinary action, unlawful conduct or unprofessional conduct;

(ii) personal, mental, or emotional problems if the problems have not posed a risk to the health, safety, or welfare of the public or clients served, such as drug or alcohol abuse while working or similar situations where the licensee or applicant should know that they should refrain from engaging in activities that may pose such a risk;

(iii) timely and good faith effort to make restitution or rectify the consequences of the misconduct involved;

(iv) full and free disclosure to the client or Division before the discovery of any misconduct;

(v) inexperience in the practice of the profession, that is not the result of failure to obtain appropriate education or consultation that the applicant or licensee should have known they should obtain before beginning work on a particular matter;

(vi) imposition of other penalties or sanctions if the other penalties and sanctions have alleviated threats to the public health, safety, and welfare; and

(vii) remorse.

(b) The following factors may not be considered as mitigating circumstances:

(i) forced or compelled restitution;

(ii) withdrawal of complaint by client or other affected persons;

(iii) resignation before disciplinary proceedings;

(iv) failure of injured client to complain;

(v) complainant's recommendation as to sanction; or

(vi) in an informal disciplinary proceeding brought pursuant to Subsection 58-1-501(2)(a)(iii), or 58-1-501(2)(a)(iv), or Section R156-1-501:

(A) argument that a prior proceeding was conducted unfairly, contrary to law, or in violation of due process or any other procedural safeguard;

(B) argument that a prior finding or sanction was contrary to the evidence or entered without due consideration of relevant evidence;

(C) argument that a respondent was not adequately represented by counsel in a prior proceeding; and

(D) argument or evidence that former statements of a respondent made in conjunction with a plea or settlement agreement are not true.

(19) "Nondisciplinary action" means adverse licensure action by the Division under the authority of Subsection 58-1-401(1) or 58-1-401(2)(c) or (d).

(20) "Peer committee" means an advisory peer committee to a board that is created by the Legislature in Title 58, Occupations and Professions, or created by the Division under the authority of Subsection 58-1-203(1)(f).

(21) "Probation" means disciplinary action placing terms and conditions upon a license:

(a) issued to an applicant for initial licensure, renewal or reinstatement of licensure, or relicensure; or

(b) issued to a licensee in place of the licensee's current license or disciplinary status.

(22) "Public reprimand" means disciplinary action to formally reprove or censure a licensee for unprofessional or unlawful conduct, with the documentation of the action being classified as a public record.

(23) "Regulatory authority" as used in Subsection 58-1-501(2)(a)(iv) and this rule means any governmental entity that licenses, certifies, registers, or otherwise regulates persons subject to its jurisdiction, or grants the right to practice before or otherwise do business with the governmental entity.

(24) "Reinstate" or "reinstatement" means to:

(a) activate an expired license; or

(b) restore a license that is restricted as defined in Subsection (26)(b), suspended, or on probation, to a less restrictive license or an active in good standing license.

(25) "Relicense" or "relicensure" means to license an applicant who has previously been revoked or has previously surrendered a license.

(26) "Restrict" or "restriction" means disciplinary action qualifying or limiting the scope of a license:

(a) issued to an applicant for initial licensure, renewal or reinstatement of licensure, or relicensure in accordance with Section 58-1-304; or

(b) issued to a licensee in place of the licensee's current license or disciplinary status.

(27) "Revoke" or "revocation" means disciplinary action by the Division extinguishing a license.

(28) "Suspend" or "suspension" means disciplinary action by the Division removing the right to use a license for a period or indefinitely as indicated in the disciplinary order, with the possibility of subsequent reinstatement of the right to use the license.

(29) "Surrender" means voluntary action by a licensee giving back or returning to the Division in accordance with Section 58-1-306, the rights and privileges associated with a license issued to the licensee.

(30) "Temporary license" or "temporary licensure" means a license issued by the Division on a temporary basis to an applicant for initial licensure, renewal or reinstatement of licensure, or relicensure in accordance with Section 58-1-303.

(31) "Unprofessional conduct" as defined in Title 58, Occupations and Professions is further defined, in accordance with Subsection 58-1-203(1)(e), in Section R156-1-501.

(32) A "warning or final disposition letter that does not constitute disciplinary action" as used in Subsection 58-1-108(3) means a letter that does not contain findings of fact or conclusions of law and does not constitute a reprimand, but that may address one or more of the following:

(a) Division concerns;

(b) allegations upon which those concerns are based;

(c) potential for administrative or judicial action; or

(d) disposition of Division concerns.

R156-1-102a. Global Definitions of Levels of Supervision.

(1) Under Subsection 58-1-106(1)(a), except as otherwise provided by statute or rule, the following global definitions of levels of supervision apply to supervision terminology in Title 58, Occupations and Professions and Title R156, and shall be referenced and used to the extent practicable in those statutes and rules to promote uniformity and consistency:

(a) "Direct supervision" and "immediate supervision" means the supervising licensee is present and available for face-to-face communication with the person being supervised when and where professional services are being provided;

(b) "Indirect supervision" means the supervising licensee:

(i) has given either written or oral instructions to the person being supervised;

(ii) is present in the facility or located on the same premises where the person being supervised is providing services; and

(iii) is available to provide immediate face-to-face communication with the person being supervised as necessary.

(c) "General supervision" means that the supervising licensee:

(i) has authorized the work to be performed by the person being supervised;

(ii) is available for consultation with the person being supervised by personal face-to-face contact, or direct voice contact by electronic or other means, without regard to whether the supervising licensee is present in the facility or located on the same premises where the person being supervised is providing services;

(iii) can provide any necessary consultation within a reasonable time; and

(iv) personal contact is routine.

(d) "Supervising licensee" means a licensee who under statute or rule has satisfied the requirements to act as a supervisor and has agreed to supervise an unlicensed individual or a licensee in a classification or licensure status that requires supervision.

(2) Except as otherwise provided by statute or rule:

(a) unlicensed personnel allowed to practice a regulated profession shall practice under an appropriate level of supervision as defined in this section, as specified by the profession's licensing act or rule; and

(b) a license classification required to practice under supervision shall practice under an appropriate level of supervision as defined in this section, as specified by the profession's licensing act or rule.

R156-1-102b. Definitions Include Words Formed by Derivation.

A word formed by derivation from a word defined in Title 58, Occupations and Professions, or Title R156 is subject to the same applicable requirements, conditions, and restrictions on use. For example, an unlicensed person may not use the word architecture in a business name to avoid the prohibition against the use of the title architect under Section 58-3a-501.

R156-1-106. Division - Licensee Lists.

(1) Each person requesting a licensee list pursuant to Section 58-1-106 and this section shall apply to the Division upon a form provided by the Division in which the requester:

(a) submits for Division approval a copy of the requester's proposed communications to the licensees, with a description of the proposed frequency and method of communication;

(b) acknowledges that the information received is a Division record under Title 63G, Chapter 2, Government Records Access and Management Act (GRAMA), and that a violation of Section 58-1-106 or this section may subject the requester to criminal penalties and other remedies under GRAMA; and

(c) agrees to:

(i) comply with the restrictions of this section;

(ii) use the information received only for the purposes for which the requester is authorized;

(iii) not disclose or disseminate the information received to another person who is not the requester's agent or employee;

(iv) not use the information received for advertising or solicitation except as allowed in this section;

(v) only distribute to the licensees the Division-approved communications and informational material at the approved frequency and method;

(vi)(A) include with each communication a clear and conspicuous explanation of how the licensee can opt out of receiving future communications; and

(B) honor opt-out requests within five business days; and

(vii) if notified by the Division:

(A) immediately stop use of the information received and stop communications and distribution of informational material to licensees; and

(B) within 15 days, destroy the information received, and certify in writing to the Division its destruction.

(2) Under Subsections 58-1-106(1)(k) and 58-1-106(2), the Division may provide the following requesters a list of multiple licensees, and include licensee home telephone numbers, home addresses, or email addresses:

(a) a governmental entity, including another state or territory or its regulatory agency;

(b) a government-managed corporation;

(c) a political subdivision;

(d) the federal government;

(e) a party to a prelitigation proceeding convened by the Division under Title 78B, Chapter 3, Part 4, Utah Health Care Malpractice Act;

(f) a medical reserve corps, public safety authority, host entity, unified command, or other person concurrently engaged with a person described in Subsections (2)(a) through (d), for preparing for, participating in, or responding to an emergency described in Section 58-1-307;

(g) a research university or regional university in the Utah System of Higher Education, for conducting research;

(h) a Utah nonprofit voluntary professional membership association of individuals licensed by the Division, for purposes that, notwithstanding Subsection (1)(c), may include advertising or soliciting association membership;

(i) a local health department created under Title 26A, Chapter 1, Local Health Departments or the Utah Association of Local Health Departments, for contacting health care providers who reside or work within a local health department boundary about a public health emergency or public health concern within that local health department boundary;

(j) a Division contracted vendor for accomplishing that contract, such as the Division's exams vendor for surveying licensees regarding a job analysis; or

(k) the following persons, for the sole purpose of providing licensees continuing education that meets the requirements of Title 58, Occupations and Professions, and Title R156:

- (i) a professional association not described in Subsection (2)(h);
- (ii) a nonprofit regulatory association in which the Division holds membership;
- (iii) a private continuing education organization;
- (iv) a trade union; or
- (v) a school of higher education and training such as a university, college, technical college, or career and technical school.

(3) As used in Subsection (2)(k), providing licensees continuing education does not mean providing general information, learning opportunities, marketing, or outreach, including the following:

- (a) volunteer opportunities, even if the volunteer would receive training and practical education;
- (b) involvement in advocating for legislation;
- (c) involvement in labor organizing issues;
- (d) solicitations or recruitment for membership; or
- (e) continuing education advertisements in a newsletter or other communication issued by the requester that also

contains non-continuing education advertisements or other information, unless:

- (i) the newsletter is issued by a Utah nonprofit professional association or trade union; and
- (ii) the Division determines the newsletter's primary focus is communicating educational articles and information about continuing education, and only incidentally contains advertisements and solicitations for membership.

(4) Under Subsection 58-1-106(3)(c), proper identification of an individual who requests the address or telephone number of a licensee under Subsection 58-1-106(3)(a) shall consist of the individual's:

- (a) full legal name;
- (b) mailing address;
- (c) email address;
- (d) daytime phone number; and
- (e)(i) one of the following current photo identifications issued by a foreign or domestic government:
 - (A) driver's license;
 - (B) non-driver identification card;
 - (C) passport;
 - (D) military identification; or
 - (E) concealed weapons permit; or

(ii) if the individual does not have government-issued identification, alternative evidence of the individual's identity as determined appropriate by the Division, if the Division documents on the requester's application how the individual was positively identified.

(5) The Division may deny a request under Section 58-1-106 for a licensee list or for a home address, email address, or home telephone number of a licensee if the Division determines:

- (a) the request is an unwarranted invasion of privacy or a threat to the public health, safety, and welfare; or
- (b) the requester, or any affiliate of the requester, failed to comply with the terms and conditions of a previous application or otherwise violated this section.

R156-1-109. Presiding Officers.

(1) This section establishes the presiding officers for the Division under Subsection 63G-4-103(1)(h) and Sections 58-1-104, 58-1-106, 58-1-109, 58-1-202, 58-1-203, 58-55-103, and 58-55-201, except as otherwise designated in writing by the Director, or by the Construction Services Commission under Title 58, Chapter 55, Utah Construction Trades Licensing Act.

(2) The Division or Department employee designated in writing by the Director is the presiding officer for issuance of:

- (a) notices of agency action; and
- (b) notices of hearing issued concurrently with a notice of agency action or issued in response to a request for agency action.

(3) Under Subsections 58-1-109(2) and 58-1-109(4) a Department administrative law judge is the presiding officer for entering an order of default against a party and conducting further proceedings to complete the adjudicative proceeding, including issuing a recommended order to the Director or Construction Services Commission determining the discipline to be imposed, licensure action to be taken, relief to be granted, or other appropriate matters.

(4) Except as provided in Subsection (9), the presiding officers for adjudicative proceedings before the Division are as follows:

(a) the Director is the presiding officer for the following adjudicative proceedings, however resolved, including stipulated settlements and hearings:

(i) formal adjudicative proceedings under:

- (A) Subsection R156-46b-201(1)(b), request for declaratory order conducted as a formal adjudicative proceeding;
- (B) Subsection R156-46b-201(2)(a), formal disciplinary proceeding for revocation, suspension, restricted licensure, probationary licensure, cease and desist order or administrative fine not through citation, or public reprimand;
- (C) Subsection R156-46b-201(2)(b), unilateral modification of disciplinary order; and

(D) Subsection R156-46b-201(2)(c), termination of diversion agreement or program contract under Section 58-4a-107;

and

(ii) informal adjudicative proceedings under:

(A) Subsection R156-46b-202(1)(d), payment of approved claim against the Residence Lien Recovery Fund;

(B) Subsection R156-46b-202(1)(e)(iii), approval or denial of request for modification of a disciplinary order;

(C) Subsection R156-46b-202(1)(e)(v), approval or denial of request for correction of other than procedural or clerical mistakes;

(D) Subsection R156-46b-202(1)(h), request for declaratory order conducted as an informal adjudicative proceeding;

(E) Subsection R156-46b-202(1)(i), disciplinary sanction imposed in a stipulation or memorandum of understanding with a licensure applicant;

(F) Subsection R156-46b-202(1)(j), other requests for agency action not designated as a formal adjudicative proceeding;

(G) Subsection R156-46b-202(2)(a), nondisciplinary proceeding that results in cancellation of licensure;

(H) Subsection R156-46b-202(2)(b)(ii), disciplinary proceeding against a controlled substance licensee;

(I) Subsection R156-46b-202(2)(c), disciplinary proceeding for violation of an order governing a license; and

(J) Subsection R156-46b-202(2)(d), disciplinary proceeding limited to Subsection 58-1-501(2)(a)(iii) or (iv) or Section R156-1-501.

(b) the bureau manager or program coordinator over the profession or program involved is the presiding officer for:

(i) formal adjudicative proceedings under Subsection R156-46b-201(1)(c), for determining if a request for a board of appeal is properly filed under Subsections R156-15A-210(1) through (4); and

(ii) informal adjudicative proceedings under:

(A) Subsection R156-46b-202(1)(a), approval or denial of an application for initial licensure, renewal, reinstatement, inactive or emeritus status, tax credit certificate, or criminal history determination;

(B) Subsection R156-46b-202(1)(b), favorable or unfavorable criminal history determination;

(C) Subsection R156-46b-202(1)(e)(i), approval or denial of request to surrender licensure;

(D) Subsection R156-46b-202(1)(e)(iv), approval or denial of request for correction of procedural or clerical mistakes;

(E) Subsection R156-46b-202(2)(b)(iii), disciplinary proceeding against a contract security company or armored car company for failure to replace a qualifier;

(F) Subsection R156-46b-202(2)(b)(iv), disciplinary proceeding against a hunting guide or outfitter for unprofessional conduct under Subsection R156-79-502(12) or R156-79-502(14); and

(G) Subsection R156-46b-202(2)(e), disciplinary proceeding regarding renewal requirements.

(5) A Department administrative law judge licensed in good standing with the Utah State Bar is the presiding officer for informal citation hearings under Subsection R156-46b-202(1)(g).

(6)(a) The Uniform Building Code Commission is the presiding officer for formal adjudicative proceedings under Subsection R156-46b-201(1)(c) for convening a board of appeal under Subsection 15A-1-207(3), serving as fact finder at the evidentiary hearing, and entering the final order.

(b) A Department administrative law judge shall conduct the hearing as specified in Subsection 58-1-109(2).

(7) The Residence Lien Recovery Fund manager, bureau manager, or program coordinator designated in writing by the Director is the presiding officer for informal adjudicative proceedings under Subsection R156-46b-202(1)(c), for approval or denial of claims against the Residence Lien Recovery Fund.

(8)(a) The Utah Professionals Health Program manager or an alternate Department employee designated in writing by the Director is the presiding officer for informal adjudicative proceedings under Title 58, Chapter 4a, Utah Professionals Health Program, including:

(i) Subsection R156-46b-202(1)(e)(ii), request for entry into and participation in the Utah Professionals Health Program; and

(ii) Subsection R156-46b-202(1)(f), matters relating to the Utah Professionals Health Program that do not involve termination under Section 58-4a-107.

(b) Each program contract for entry into and participation in the Utah Professionals Health Program shall require the written concurrence of the Division director.

(9)(a)(i)(A) The Construction Services Commission is the presiding officer for adjudicative proceedings under Title 58, Chapter 55, Utah Construction Trades Licensing Act, however resolved including stipulated settlements and hearings, except as otherwise specified in this rule.

(B) Orders adopted by the Commission as presiding officer require the concurrence of the Director.

(ii) The Construction Services Commission is the presiding officer:

(A) for informal adjudicative proceedings under:

(I) Subsection R156-46b-202(1)(e)(iii), approval or denial of request for modification of a disciplinary order;

(II) Subsection R156-46b-202(1)(e)(v), approval or denial of request for correction of other than procedural or clerical mistakes;

(III) Subsection R156-46b-202(1)(h), request for declaratory order conducted as an informal adjudicative proceeding;

(IV) Subsection R156-46b-202(1)(i), disciplinary sanctions imposed in a stipulation or memorandum of understanding with a licensure applicant;

(V) Subsection R156-46b-202(1)(j), other requests for agency action not designated as a formal adjudicative proceeding;

(VI) except for dismissals under Subsection (9)(d)(vi), Subsection R156-46b-202(2)(b)(i) disciplinary proceedings against a contractor, plumber, electrician, or alarm company;

(VII) Subsection R156-46b-202(2)(c), disciplinary proceedings concerning violations of an order governing a license; and

(VIII) Subsection R156-46b-202(2)(d), disciplinary proceeding limited to Subsection 58-1-501(2)(a)(iii) or (iv) or Section R156-1-501;

(B) to serve as fact finder and adopt orders in formal evidentiary hearings for adjudicative proceedings involving persons licensed or required to be licensed under Title 58, Chapter 55, Utah Construction Trades Licensing Act; and

(C)(I) to review recommended orders of a board, an administrative law judge, or other presiding officer who acted as the fact finder in an evidentiary hearing involving a person licensed or required to be licensed under Title 58, Chapter 55, Utah Construction Trades Licensing Act, and to adopt an order of its own; and

(II) in adopting its order, the Construction Services Commission may accept, modify, or reject the recommended order.

(iii)(A) Orders of the Construction Services Commission shall address the issues before the Construction Services Commission and shall be based upon the record developed in an adjudicative proceeding conducted by the Construction Services Commission.

(B) If the Commission has designated another presiding officer to conduct an adjudicative proceeding and submit a recommended order, the record to be reviewed by the Construction Services Commission shall consist of the findings of fact, conclusions of law, and recommended order submitted by the presiding officer based upon the evidence presented in the adjudicative proceeding before the presiding officer.

(iv)(A) The Construction Services Commission or its designee shall submit an adopted order to the Director for the Director's concurrence or rejection within 30 days after it receives a recommended order or adopts an order, whichever is earlier.

(B) An adopted order is issued and becomes a final order upon the concurrence of the Director.

(v)(A) Under Subsection 58-55-103(10), if the Director refuses to concur in an adopted order, the Director shall return the adopted order to the Construction Services Commission or its designee with the reasons in writing.

(B) The Construction Services Commission or its designee shall reconsider the returned adopted order and resubmit an adopted order to the Director, whether or not modified, within 30 days of the date of the initial or subsequent return.

(C) The Director shall consider the resubmitted adopted order and either concur rendering the order final, or refuse to concur and issue a final order, within 90 days of the date of the initial recommended order.

(D) If the time frames in this subsection are followed, this subsection may not preclude an informal resolution such as an executive session of the Construction Services Commission or its designee with the Director to resolve the reasons for the Director's refusal to concur in an adopted order.

(vi) The record of the adjudicative proceeding shall include recommended orders, adopted orders, refusals to concur in adopted orders, and final orders.

(vii) The final order issued by the Construction Services Commission and concurred in by the Director, or not concurred in by the Director and issued by the Director, may be appealed by filing a request for agency review with the Executive Director.

(viii) The content of orders shall comply with Subsection 63G-4-203(1) and Sections 63G-4-208 and 63G-4-209.

(b) The Director is the presiding officer for the concurrence role in disciplinary proceedings under Subsections R156-46b-202(2)(b)(i), R156-46b-202(2)(c), and R156-46b-202(2)(d) as required by Subsection 58-55-103(1)(b)(iv).

(c) A Department administrative law judge is the presiding officer to conduct formal adjudicative proceedings before the Construction Services Commission and its advisory boards, as specified in Subsection 58-1-109(2).

(d) The bureau manager is the presiding officer to conduct informal adjudicative proceedings under:

(i) Subsections R156-46b-202(1)(a)(i) through (1)(a)(iv), approval or denial of an application for initial licensure, renewal, reinstatement, inactive or emeritus status;

(ii) Subsection R156-46b-202(1)(a)(vi), approval or denial of an application for criminal history determination;

(iii) Subsection R156-46b-202(1)(b), favorable or unfavorable criminal history determination;

(iv) Subsection R156-46b-202(1)(e)(i), approval or denial of request to surrender licensure;

(v) Subsection R156-46b-202(1)(e)(iv), approval or denial of request for correction of procedural or clerical mistakes;

(vi) dismissal of a Subsection R156-46b-202(2)(b)(i) disciplinary proceeding based upon the respondent's documented compliance, such as by the respondent replacing a qualifier, providing a required bond, or obtaining necessary insurance; and

(vii) Subsection R156-46b-202(2)(e), disciplinary proceeding regarding renewal requirements.

(e) The Plumbers Licensing Board is the presiding officer to serve as the fact finder and to issue recommended orders to the Construction Services Commission in formal evidentiary hearings for adjudicative proceedings involving persons licensed as or required to be licensed as plumbers.

(f) The Electricians Licensing Board is the presiding officer to serve as the fact finder and to issue recommended orders to the Construction Services Commission in formal evidentiary hearings for adjudicative proceedings involving persons licensed as or required to be licensed as electricians.

(g) The Alarm System Security and Licensing Board is the presiding officer to serve as the fact finder and to issue recommended orders to the Construction Services Commission in formal evidentiary hearings for adjudicative proceedings involving persons licensed as or required to be licensed as alarm companies or agents.

(10) At the direction of a manager or program coordinator, a licensing technician or program technician may sign an informal order in the technician's name if:

- (a) the manager or program coordinator approves the wording in advance; and
- (b) the caption "FOR THE MANAGER" or "FOR THE PROGRAM COORDINATOR" immediately precedes the technician's signature.

R156-1-109a. Designation of Board Panel - Petition for Review of Panel Decision.

(1)(a) Under Subsection 58-1-109(3)(b) the Director may designate any odd number of board members on a case-by-case or period-of-time basis to represent a licensing board as the presiding officer.

(b) If the Director has not designated board members under Subsection (1)(a) or insufficient board members are able to serve, the bureau manager or licensing board chair may designate the board members to serve.

(2)(a) Under Subsection 58-1-109(4)(b) and Section R151-4-401, to petition the licensing board to review a recommended order issued by the designated board members, the aggrieved person shall file with the Division the petition form available from the Division within ten calendar days after the day on which the recommended order is issued.

(b) The petition shall:

- (i) be signed by the aggrieved person seeking review;
- (ii) state the grounds for review and the relief requested;
- (iii) state the date upon which the petition was filed with the Division; and
- (iv) be concurrently served on each party and any administrative law judge who is assigned to the case.

(3) If the aggrieved person does not file a petition in accordance with Subsection (2), the designated board members' recommended order becomes the final recommended order of the licensing board.

(4)(a) As determined by the Division, a licensing board may review a properly filed petition together with the designated board members' recommended order at the licensing board's next regularly scheduled board meeting, or at a specially noticed board meeting.

(b) Under Subsection 58-1-109(4)(c), after review a licensing board may issue its recommended order by affirming the designated board members' recommended order, or modifying or rejecting all or any part of that recommended order and entering new findings of fact, conclusions of law, statement of reasons, and order.

R156-1-110. Issuance of Investigative Subpoenas.

(1)(a) A request for a subpoena in a Division investigation pursuant to Subsection 58-1-106(1)(c) shall be made in writing to the investigative subpoena authority and accompanied by a draft of the proposed subpoena.

(b) Each request shall contain adequate information to enable the investigative subpoena authority to make a finding of sufficient need, including:

- (i) the factual basis for the request;
- (ii) the relevance and necessity of the particular person and evidence to the investigation; and
- (iii) an explanation of why the subpoena is directed to the person upon whom it is to be served.

(c) A request for a subpoena and each finding by the investigative subpoena authority is part of the investigative case file and is evidence obtained as a part of an investigation before that evidence is presented in an administrative action or criminal action.

(2) An approved subpoena shall be issued under the seal of the Division and the signature of the investigative subpoena authority.

(3) The person who requests an investigative subpoena is responsible for service of the subpoena.

(4)(a) Service may be made:

- (i) on a person upon whom a summons may be served pursuant to the Utah Rules of Civil Procedure; and
- (ii) personally or on the agent of the person being served.

(b) If a party is represented by an attorney, service shall be made on the attorney.

(5)(a) Service may be accomplished by hand delivery or by mail to the last known address of the intended recipient.

(b) Service by mail is complete upon mailing.

(c) Service may be accomplished by electronic means.

(d) Service by electronic means is complete on transmission if transmission is completed during normal business hours at the place receiving the service, 8 a.m. to 5 p.m. on days other than Saturdays, Sundays, and state and federal holidays; otherwise, service is complete on the next business day.

(6)(a) Each investigative subpoena shall have a certificate of service.

(b) The certificate of service may be a separate form or may be on the subpoena.

(c) The person serving the subpoena shall complete the certificate of service for both the served copy and the copy kept for the Division files.

(7) Each investigative subpoena shall have a form provided by the Division for the recipient's custodian of records to complete, sign, and return with the requested information to establish the authenticity of the information.

(8)(a) The investigative subpoena authority may quash or modify an investigative subpoena if the recipient shows the investigative subpoena is unreasonable or oppressive.

(b) A recipient shall file and serve a motion to quash or modify an investigative subpoena upon the investigative subpoena authority no later than ten days after service of the investigative subpoena.

(c) The Division shall file and serve its response to a motion to quash or modify an investigative subpoena upon the investigative subpoena authority and the recipient no later than five business days after receipt of the motion.

(d) The recipient may not file a reply to the Division's response.

R156-1-111. Qualifications for Tax Certificate - Definitions - Application Requirements.

(1)(a) "Psychiatrist" under Subsection 58-1-111(1)(d), includes a licensed physician who is board eligible or board certified for a psychiatry specialization recognized by the American Board of Medical Specialties (ABMS) or the American Osteopathic Association's Bureau of Osteopathic Specialists (BOS); and

(b) "previously or currently board certified in psychiatry" in Subsection 58-1-111(1)(f)(ii)(B) means board certified for a psychiatry specialization recognized by the American Board of Medical Specialties (ABMS) or the American Osteopathic Association's Bureau of Osteopathic Specialists (BOS).

(2) An applicant for a tax credit certificate under Section 58-1-111 shall provide to the Division:

(a) the original application made available on the Division's website, containing the signed attestation of compliance; and

(b) additional documentation that may be required by the Division to verify the applicant's representations made in the application.

R156-1-205. Peer or Advisory Committees - Executive Director to Appoint - Terms of Office - Vacancies in Office - Removal from Office - Quorum Requirements - Appointment of Chairman - Division to Provide Secretary - Compliance with Open and Public Meetings Act and Utah Administrative Procedures Act - No Per Diem and Expenses.

(1) The executive director shall appoint the members of peer or advisory committees established under Title 58, Occupations and Professions, or Title R156.

(2)(a) Except for ad hoc committees whose members shall be appointed on a case-by-case basis, the term of office of peer or advisory committee members is four years.

(b) The executive director shall, at the time of appointment or reappointment, adjust the length of terms to ensure that they are staggered so that about half of the peer or advisory committee is appointed on two-year cycles.

(3) A peer or advisory committee member may not serve more than two full consecutive terms, and a member who ceases to serve may not serve again until after the expiration of two years from the date of cessation of service.

(4)(a) If a vacancy on a peer or advisory committee occurs, the executive director shall appoint a replacement to fill the unexpired term.

(b) After filling the unexpired term, the replacement may be appointed for only one additional full term.

(5)(a) If a peer or advisory committee member fails or refuses to fulfill the responsibilities and duties of a peer or advisory committee member, including attendance at meetings, the executive director may remove the peer or advisory committee member and replace the member in accordance with this section.

(b) After filling the unexpired term, the replacement may be appointed for only one additional full term.

(6) Committee meetings may only be convened with the approval of the appropriate board and the concurrence of the Division.

(7) Unless otherwise approved by the Division, peer or advisory committee meetings shall be held in the building occupied by the Division.

(8) A majority of the peer or advisory committee members shall constitute a quorum and may act on behalf of the peer or advisory committee.

(9)(a) Peer or advisory committees shall annually designate one of their members to serve as chair.

(b) The Division shall provide a Division employee to act as committee secretary to take minutes of committee meetings and to prepare committee correspondence.

(10) Peer or advisory committees shall comply with Title 52, Chapter 4, Open and Public Meetings Act.

(11) Peer or advisory committees shall comply with Title 63G, Chapter 4, Administrative Procedures Act, in their adjudicative proceedings.

(12) Peer or advisory committee members shall perform their duties and responsibilities as public service and may not receive a per diem allowance, or traveling or accommodations expenses incurred in peer or advisory committees business, except as otherwise provided in Title 58, Occupations and Professions, or Title R156.

R156-1-206. Emergency Review Committees - Appointment - Terms - Vacancies - Removal - Quorum - Chair and Secretary - Open and Public Meetings Act and Utah Administrative Procedures Act - Per Diem and Expenses.

(1) The board chair for the profession of the person against whom an emergency adjudicative proceeding is proposed under Sections 63G-4-502 and 58-1-108 may appoint the members of the emergency review committee on a case-by-case or period-of-time basis.

(2) With the exception of the appointment and removal of members and filling of vacancies by the board chair, emergency review committees shall serve in accordance with Subsections R156-1-205(7), and (9) through (12).

R156-1-301. License Application - Filing Date - Applicable Requirements for Licensure - Issuance Date.

(1) The filing date for an application for licensure is the postmark date of the application or the date the application is received and date stamped by the Division, whichever is earlier.

(2) Except as otherwise provided by statute, rule, or order, the requirements for licensure are the requirements in effect on the filing date of the application.

(3) The issuance date for a license is the date the approval is input into the Division's electronic licensure database.

(4) Under Subsection 58-1-301(1)(b)(ii)(B), other satisfactory evidence of an applicant's identity is:

(a) an Individual Taxpayer Identification Number (ITIN);

(b) an Alien Registration Number (A-number); or

(c) for an applicant who has never been issued a social security number, Individual Taxpayer Identification Number (ITIN), or Alien Registration Number (A-number):

(i) an unexpired government-issued passport from the applicant's country of residence; and

(ii) an intent-to-hire letter from a Utah-based employer.

R156-1-301.7. Change of Information - Notification.

(1) Notification sent by email under Section 58-1-301.7 is complete on transmission if transmission is completed during normal business hours, 8 a.m. to 5 p.m. on days other than Saturdays, Sundays, and state and federal holidays, at the place receiving the notice; otherwise, notice is complete on the next business day.

(2) Notification by email may be accomplished by attachment to the email or in the body of the email, or both.

R156-1-302. Licensure by Endorsement.

(1) This section is adopted by the Division under the authority of Subsection 58-1-302(6) to enable the Division to administer Section 58-1-302.

(2) An applicant for licensure by endorsement who has the required experience practicing under a license issued in the other state, district, territory, or jurisdiction is not required to have the license currently active.

(3) Under Subsection 58-1-302(4), the Division may consider in its evaluation of an applicant for licensure by endorsement's experience or other qualifications the time that has elapsed since the applicant's licensed or lawful practice.

(4) The Division may require an applicant for licensure by endorsement to pass one or more of the exams required to obtain licensure in the profession, such as a business and law exam, jurisprudence exam, or professional exam, except if expressly provided otherwise in statute or rule.

R156-1-303. Temporary Licenses in Declared Disaster or Emergency.

(1) Under Section 53-2a-1203, a person who provides services under this exemption from licensure, shall within 30 days of entry file a notice with the Division under Subsection 53-2a-1205(1) using forms available from the Division.

(2) Under Section 53-2a-1205 and Subsection 58-1-303(1), a person who provides services under the exemption from licensure in Section 53-2a-1203 for a declared disaster or emergency shall, after the disaster period ends and before continuing to provide services, meet the normal requirements for licensure under Title 58, Occupations and Professions, unless:

(a) before practicing after the declared disaster the person is issued a temporary license under Subsection 58-1-303(1)(c); or

(b) the person qualifies under another exemption from licensure.

R156-1-305. Inactive Licensure.

(1) Under Section 58-1-305, the following licenses issued under Title 58, Occupations and Professions that are active in good standing may be placed on inactive licensure status:

(a) advanced practice registered nurse (APRN);

(b) anesthesiologist assistant;

(c) architect;

(d) audiologist;

(e) certified public accountant emeritus;

(f) certified prescribing psychologist;

(g) certified nurse midwife;

(h) state certified court reporter;

(i) certified social worker;

(j) chiropractic physician;

(k) clinical mental health counselor;

(l) clinical social worker;

(m) contractor;

(n) deception detection examiner;

(o) deception detection intern;

(p) dental hygienist;

(q) dentist;

(r) dispensing medical practitioner - advanced practice registered nurse;

(s) dispensing medical practitioner - physician and surgeon;

(t) dispensing medical practitioner - physician assistant;

(u) dispensing medical practitioner - osteopathic physician and surgeon;

- (v) dispensing medical practitioner - optometrist;
- (w) dispensing medical practitioner - clinic pharmacy;
- (x) genetic counselor;
- (y) health facility administrator;
- (z) hearing instrument specialist;
- (aa) landscape architect;
- (bb) licensed advanced substance use disorder counselor;
- (cc) licensed physical therapist;
- (dd) marriage and family therapist;
- (ee) master addiction counselor;
- (ff) naturopath-naturopathic physician;
- (gg) optometrist;
- (hh) osteopathic physician and surgeon;
- (ii) pharmacist;
- (jj) pharmacy technician;
- (kk) physician assistant;
- (ll) physician and surgeon;
- (mm) podiatric physician;
- (nn) private probation provider;
- (oo) professional engineer;
- (pp) professional land surveyor;
- (qq) professional structural engineer;
- (rr) psychologist;
- (ss) radiology practical technician;
- (tt) school psychological practitioner;
- (uu) radiologic technologist;
- (vv) security personnel;
- (ww) speech-language pathologist;
- (xx) substance use disorder counselor;
- (yy) veterinarian; and
- (zz) state certified veterinary technician.

(2)(a) A licensee requesting inactive licensure shall submit a verified application in a form prescribed by the Division together with:

- (i) documentation that the applicant meets the requirements for inactive licensure; and
 - (ii) the appropriate fee.
- (b) If the licensee meets the requirements for inactive licensure, the Division shall place the license on inactive status.
- (3) A license may remain on inactive status indefinitely except as otherwise provided in Title 58, Occupations or Professions or Title R156.

(4) An inactive licensee may activate their license by submitting a verified application for activation in a form prescribed by the Division together with:

- (a) the appropriate fee; and
- (b) except as otherwise provided in Title 58, Occupations and Professions or Title R156, documentation that the inactive licensee meets current renewal requirements.

(5) An inactive licensee whose license is activated during the last 12 months of a renewal cycle shall, upon payment of the appropriate fees, be licensed for a full renewal cycle plus the period remaining until the impending renewal date, rather than being required to immediately renew their activated license.

(6) A Controlled Substance license may be placed on inactive status if it is attached to a primary license placed on inactive status.

R156-1-308a. Renewal Dates.

(1) The following standard two-year renewal cycle renewal dates are established by license classification in accordance with Subsection 58-1-308(1):

TABLE 1 Renewal Dates	
Acupuncturist	May 1 even years
Advanced Practice Registered Nurse	January 31 even years
Advanced Practice Registered Nurse - CRNA	January 31 even years
Anesthesiologist Assistant	January 31 even years
Architect	May 31 even years
Associate Clinical Mental Health Counselor	September 30 even years
Associate Marriage and Family Therapist	September 30 even years

Associate Master Addiction Counselor	May 31 odd years
Athlete Agent	September 30 even years
Athletic Trainer	May 31 odd years
Audiologist	May 31 odd years
Barber	September 30 odd years
Barber Apprentice	September 30 odd years
Barber School	September 30 odd years
Behavior Analyst Assistant Behavior Analyst	September 30 even years
Behavior Specialist Assistant Behavior Specialist	September 30 even years
Building Inspector	November 30 odd years
Burglar Alarm Security	March 31 odd years
C.P.A. Firm	December 31 even years
Certified Dietitian	September 30 even years
Certified Nurse Midwife	January 31 even years
Certified Prescribing Psychologist	September 30 even years
Certified Public Accountant	December 31 even years
Certified Social Worker	September 30 even years
Chiropractic Physician	May 31 even years
Clinical Mental Health Counselor	September 30 even years
Clinical Social Worker	September 30 even years
Contractor	November 30 odd years
Controlled Substance License	primary license renewal
Controlled Substance Precursor	May 31 odd years
Controlled Substance Handler	September 30 odd years
Cosmetologist/Barber	September 30 odd years
Cosmetologist/Barber Apprentice	September 30 odd years
Cosmetology/Barber School	September 30 odd years
Deception Detection Examiner Deception Detection Examination Administrator Deception Detection Intern	November 30 even years
Dental Hygienist	May 31 even years
Dentist	May 31 even years
Direct-entry Midwife	September 30 odd years
Dispensing Medical Practitioner - Advanced Practice Registered Nurse Optometrist Osteopathic Physician and Surgeon Physician and Surgeon Physician Assistant	September 30 odd years
Dispensing Medical Practitioner Clinic Pharmacy	September 30 odd years
Dispensing Practitioner (LDP)	primary license renewal
Electrician - Apprentice Journeyman, Master Residential Journeyman, Residential Master	November 30 even years
Electrologist	September 30 odd years
Electrology School	September 30 odd years
Elevator Mechanic	November 30 even years
Environmental Health Scientist	May 31 odd years
Esthetician	September 30 odd years
Esthetician Apprentice	September 30 odd years
Esthetics School	September 30 odd years
Eyelash and Eyebrow Technician	September 30 odd years
Eyelash and Eyebrow Technology School	September 30 odd years
Factory Built Housing Dealer	September 30 even years
Funeral Service Director	May 31 even years

Funeral Service Establishment	May 31 even years
Genetic Counselor	September 30 even years
Hair Designer	September 30 odd years
Hair Designer School	September 30 odd years
Health Facility Administrator	May 31 odd years
Hearing Instrument Specialist	September 30 even years
Landscape Architect	May 31 even years
Licensed Advanced Substance Use Disorder Counselor	May 31 odd years
Licensed Behavioral Health Coach	September 30 even years
Licensed Practical Nurse	January 31 even years
Licensed School Psychological Practitioner	September 30 even years
Licensed Substance Use Disorder Counselor	May 31 odd years
Marriage and Family Therapist	September 30 even years
Massage Apprentice	May 31 odd years
Massage Therapist	May 31 odd years
Massage Assistant	May 31 odd years
Master Addiction Counselor	May 31 odd years
Master Esthetician	September 30 odd years
Master Esthetician Apprentice	September 30 odd years
Medication Aide Certified	March 31 odd years
Nail Technologist	September 30 odd years
Nail Technologist Apprentice	September 30 odd years
Nail Technology School	September 30 odd years
Naturopath - Naturopathic Physician	May 31 even years
Occupational Therapist	May 31 odd years
Occupational Therapy Assistant	May 31 odd years
Optometrist	September 30 even years
Osteopathic Physician and Surgeon Restricted Associate Osteopathic Physician	May 31 even years
Outfitter and Hunting Guide	May 31 even years
Pharmacy - Class A, B, C, D, E, or Online Contract Pharmacy	September 30 odd years
Pharmacist	September 30 odd years
Pharmacy Technician	September 30 odd years
Physical Therapist	May 31 odd years
Physical Therapist Assistant	May 31 odd years
Physician Assistant	May 31 even years
Physician and Surgeon, Restricted Associate Physician	January 31 even years
Plumber -- Apprentice, Journeyman, Master Residential Master, Residential Journeyman	November 30 even years
Podiatric Physician	September 30 even years
Preneed Funeral Arrangement Sales Agent	May 31 even years
Private Probation Provider	May 31 odd years
Professional Engineer	March 31 odd years
Professional Geologist	March 31 odd years
Professional Land Surveyor	March 31 odd years
Professional Structural Engineer	March 31 odd years
Provisional Prescribing Psychologist	September 30 even years
Psychologist	September 30 even years
Radiologic Technologist Radiology Practical Technician Radiologist Assistant	May 31 odd years
Recreational Therapy - Therapeutic Recreation Technician Therapeutic Recreation Specialist Master Therapeutic Recreation Specialist	May 31 odd years

Registered Nurse	January 31 odd years
Respiratory Care Practitioner	September 30 even years
Security Personnel	November 30 even years
Social Service Worker	September 30 even years
Speech-Language Pathologist	May 31 odd years
State Certified Behavioral Health Technician	September 30 even years
State Certified Commercial Interior Designer	March 31 odd years
State Certified Court Reporter	May 31 even years
State Certified Music Therapist	March 31 odd years
State Certified Veterinary Technician	September 30 even years
Veterinarian	September 30 even years
Vocational Rehabilitation Counselor	March 31 odd years

(2) The following non-standard license terms and renewal or extension cycles are established in accordance with Subsection 58-1-308(1) and specific requirements of the license:

TABLE 2 Non-Standard License Terms	
PROFESSION	TERM
Certified Medical Language Interpreter Tier 1 or 2 (Section 58-80a-304)	3-year term, renews March 31 - may renew.
Funeral Service Intern (Subsection 58-9-303(2))	2-year term, and one additional 2-year term* - then may extend only for hardship.**
Hearing Instrument Intern (Subsection 58-46a-303(2))	3-year term - may extend.*, **
Massage Assistant In-Training (Sections 58-47b-303, R156-47b-303)	6-month term - may extend only for hardship.*, **
Pharmacy technician trainee (Section 58-17b-305.1, Subsection R156-17b-303a(4))	2-year term - may extend for exceptional circumstances.*
Psychology Resident (Subsection 58-61-304(3)(b))	2-year term - may extend for a period not to exceed two years past the date of completion of the minimum supervised experience requirement.*
Type I Foreign Trained Physician-Educator (Section 58-67-302.7)	Initial 1-year term - may renew on 2-year cycles if satisfies Subsection 58-67-302.7(2) requirements, and completes Section 58-37-303 CE.
Type II Foreign Trained Physician-Educator (Section 58-67-302.7)	Initial 1-year term -- may renew annually up to four times if satisfies Subsection 58-67-302.7(3) requirements, and completes Section 58-67-303 CE.
*Extension allowed only if the licensee presents evidence satisfactory to the Division and board that the licensee is on a course reasonably expected to lead to licensure, such as making reasonable progress toward passing any qualifying examinations or completing required supervision hours.	
**Extension allowed only if a circumstance of hardship arose beyond the licensee's control to prevent the completion of the licensure process, and extension is for a period proportionate to hardship.	

R156-1-308b. Renewal Periods - Adjustment of Renewal Fees for an Extended or Shortened Renewal Period.

(1) Except as otherwise provided by statute or as required to establish or reestablish a renewal period, each renewal period shall be two years.

(2) The renewal fee for a renewal period that is extended or shortened by more than one month to establish or reestablish a renewal period may be increased or decreased proportionately.

R156-1-308c. Renewal of Licensure Procedures.

(1) Under Subsection 58-1-308(3) this section establishes the procedures for renewal of licensure.

(2) The Division shall send a renewal notice to each licensee at least 60 days before the expiration date of the licensee's license.

(3)(a) The Division shall send each renewal notice by email to the most recent email address provided to the Division by the licensee.

(b) The Division may send a renewal notice by mail deposited in the post office postage prepaid, addressed to the most recent mailing provided to the Division by the licensee.

(4) Under Subsection 58-1-301.7(2), a notification sent to the most recent mailing address or email address provided to the Division by the licensee constitutes legal notice.

(5) Each renewal notice shall:

(a) include directions for the licensee to renew the license on the Division's website;

(b) notify the licensee that the renewal requirements are outlined in the online renewal process, and that each licensee shall document or certify that the licensee meets the renewal requirements before renewal; and

(c) notify the licensee that:

(i) a license that is not renewed before the license expiration date automatically expires; and

(ii) continued practice without a license is a criminal offense under Subsection 58-1-501(1)(a).

(6) A licensee who is licensed during the last 12 months of a renewal cycle shall be licensed for a full renewal cycle plus the time remaining until the impending renewal date, and is not required to immediately renew the license.

R156-1-308d. Waiver of Continuing Education Requirements - Credit for Volunteer Service.

(1)(a) Under Subsection 58-1-203(1)(g), a licensee may request a waiver of a continuing education requirement under this title, or an extension of time to complete a requirement, if the licensee will be unable or was unable to complete the requirement due to a medical or related condition, humanitarian or ecclesiastical services, extended presence in a geographical area where continuing education is not available, or other reasonable cause.

(b) A licensee shall submit the request no later than the deadline for completing the continuing education requirement, except as allowed by the Division for good cause shown.

(c) A licensee submitting a request has the burden of proof and shall document the reason for the request to the satisfaction of the Division.

(d) A request shall include the beginning and ending dates during which the licensee is unable, or was unable, to complete the continuing education requirement and a detailed explanation of the reason that includes:

(i) the extent and duration of the impediment;

(ii) the extent to which the licensee will continue to be, or continued to be, engaged in practice of the licensee's profession;

(iii) the nature of the medical condition;

(iv) the location and nature of the humanitarian services;

(v) the geographical area where continuing education is not available; and

(vi) other relevant information.

(e) The Division may require a licensee to obtain a specified number of continuing education hours, courses, or both, before reentering the practice of the profession or within a specified period after reentering the practice of the profession, as recommended by the appropriate board, to assure competent practice.

(f)(i) A licensee who receives a waiver from meeting the minimum continuing education requirements is not exempt from Subsection 58-1-501(2)(a)(ix), which requires that the licensee provide services within the competency, abilities, and education of the licensee.

(ii) If a licensee cannot competently provide services, the waiver of meeting the continuing education requirements may be conditioned upon the licensee limiting practice to areas in which the licensee has the required competency, abilities, and education.

(2)(a) Under Subsections 58-1-203(1)(g) and 58-55-302.5(2)(e)(i), the Division may grant continuing education credit to a licensee for volunteering as a subject-matter expert in the review and development of licensing exams for the licensee's profession.

(b) Subject to specific limitations established by rule by the Division in collaboration with a licensing board or the Construction Services Commission, this volunteer continuing education credit shall:

(i) apply to the license period or periods during which the volunteer service was provided;

(ii) be granted on a 1:1 ratio, meaning that for each hour of attendance, the licensee may receive one hour of credit;

(iii) be core, classroom, or live credit, regardless of whether the licensee attended meetings in person or electronically; and

(iv) at the licensee's discretion, the whole or part of the credit hours may be counted toward law or ethics continuing education requirements.

(c) The licensee shall maintain information with respect to the licensee's volunteer services to demonstrate the services meet the requirements of this subsection.

(3) Under Section 58-13-3, a health care professional licensee may fulfill up to 15% of the licensee's continuing education requirements by providing volunteer services at a qualified location within the scope of the licensee's license, earning one hour of continuing education credit for every four documented hours of volunteer health care treatment.

R156-1-308e. Automatic Expiration of Licensure Upon Dissolution of Licensee.

Under Subsection 58-1-308(2), if a dissolved entity's existence has been reinstated before the expiration date shown upon the entity's expired license, and the entity meets the qualifications for licensure:

(1) if the entity submits its application for reinstatement before the expiration date shown on the license, the license shall be retroactively reinstated to the date of expiration of licensure; and

(2) if the entity submits its application for reinstatement after the expiration date shown on the license, the license shall be reinstated on the effective date of the approval of the application for reinstatement.

R156-1-308f. Denial of Renewal of Licensure - Classification of Proceedings - Conditional Renewal of Licensure During Adjudicative Proceedings - Conditional Initial, Renewal, or Reinstatement Licensure During Audit or Investigation.

(1) If an initial, renewal, or reinstatement applicant under Section 58-1-301 or 58-1-308 is selected for audit, under investigation, or pending inspection, the Division may conditionally issue the initial license or conditionally renew or reinstate the license pending the completion of the audit, investigation, or inspection.

(2) The undetermined completion of a referenced audit, investigation, or inspection, rather than the established expiration date, shall be indicated as the expiration date of a conditionally issued, renewed, or reinstated license.

(3) A conditional issuance, renewal, or reinstatement is not an adverse licensure action.

(4) Upon completion of the audit, investigation, or inspection, the Division shall notify the applicant if the applicant's license is unconditionally issued, renewed, reinstated, denied, or partially denied or reinstated.

(5) A notice of unconditional denial or partial denial of licensure shall include:

(a) the basis for action;

(b) the Division's file or other reference number of the audit or investigation; and

(c) notice that the action is subject to agency review, and how and when the applicant may request agency review.

R156-1-308g. Reinstatement of Licensure that was Active and in Good Standing at the Time of Expiration of Licensure - Requirements.

The following requirements apply to reinstatement of licensure that was active and in good standing at the time of expiration of licensure:

(1) under Subsection 58-1-308(5), if the filing date of an application for reinstatement is between the date of the expiration of the license and 30 days after the date of the expiration of the license, the applicant shall:

(a) submit a completed renewal form furnished by the Division demonstrating compliance with requirements and conditions of license renewal; and

(b) pay the license renewal fee and a late fee.

(2) under Subsection 58-1-308(5), if the filing date of an application for reinstatement is between 31 days after the expiration of the license and two years after the date of the expiration of the license, the applicant shall:

(a) submit a completed renewal form provided by the Division demonstrating compliance with requirements and conditions of license renewal; and

(b) pay the license renewal fee and reinstatement fee.

(3) under Subsection 58-1-308(6), if the filing date of an application for reinstatement is more than two years after the date the license expired:

(a) if the applicant has not been active in the licensed profession as described in Subsection 58-1-308(6)(b), the applicant shall:

(i) submit an application for licensure complete with supporting documents as is required of an individual making an initial application for license demonstrating the applicant meets current qualifications for licensure; and

(ii) pay the license fee for a new applicant for licensure; or

(b) if the applicant has been active in the licensed profession as described in Subsection 58-1-308(6)(b), the applicant shall:

(i) provide documentation that the applicant has continuously, since the expiration of the applicant's license in Utah, been active in the licensed profession while in the full-time employ of the United States government or under license to practice that profession in any other state or territory of the United States;

(ii) provide documentation that the applicant has completed or is in compliance with any renewal qualifications;

(iii) provide documentation that the applicant's application was submitted within six months after reestablishing domicile within Utah or terminating full-time government service; and

(iv) pay the license renewal fee and the reinstatement fee.

R156-1-308h. Reinstatement of Restricted, Suspended, or Probationary Licensure During Term of Restriction, Suspension, or Probation - Requirements.

(1) Reinstatement of restricted, suspended, or probationary licensure during the term of limitation, suspension, or probation shall be in accordance with the disciplinary order that imposed the discipline.

(2) Unless otherwise specified in a disciplinary order imposing restriction, suspension, or probation of licensure, the disciplined licensee may, at reasonable intervals during the term of the disciplinary order, petition for reinstatement of licensure.

(3) A petition for reinstatement of licensure during the term of a disciplinary order imposing restriction, suspension, or probation, shall be treated as a request to modify the terms of the disciplinary order, not as an application for licensure.

R156-1-308i. Reinstatement of Restricted, Suspended, or Probationary Licensure After the Specified Term of Suspension of the License or After the Expiration of Licensure in a Restricted, Suspended or Probationary Status - Requirements.

Unless otherwise provided by a disciplinary order, an applicant who applies for reinstatement of a license after the specified term of suspension of the license or after the expiration of the license in a restricted, suspended, or probationary status shall:

(1) submit an application for licensure complete with supporting documents as is required of an individual making an initial application for license demonstrating the applicant meets current qualifications for licensure and compliance with requirements and conditions of license reinstatement;

(2) pay the license renewal fee and the reinstatement fee;

- (3) provide information requested by the Division and board to clearly demonstrate the applicant is currently competent to be reinstated to engage in the profession; and
- (4) pay any fines or citations owed to the Division.

R156-1-308j. Relicensure Following Revocation of Licensure - Requirements.

An applicant for relicensure following revocation of licensure shall:

- (1) submit an application for licensure complete with supporting documents as is required of an individual making an initial application for license demonstrating the applicant meets current qualifications for licensure and compliance with requirements and conditions of license reinstatement;
- (2) pay the license fee for a new applicant for licensure; and
- (3) provide information requested by the Division and board to clearly demonstrate the applicant is currently competent to be relicensed to engage in the profession.

R156-1-308k. Relicensure Following Surrender of Licensure - Requirements.

(1) An applicant who surrendered a license that was active and in good standing when it was surrendered shall meet the requirements for licensure in Sections R156-1-308a through R156-1-308l.

(2) An applicant who surrendered a license while the license was active but not in good standing as evidenced by the written agreement supporting the surrender of license shall:

- (a) submit an application for licensure complete with supporting documents as is required of an individual making an initial application for license demonstrating the applicant meets the current qualifications for licensure and compliance with requirements and conditions of license reinstatement;
- (b) pay the license fee for a new applicant for licensure;
- (c) provide information requested by the Division and board to clearly demonstrate the applicant is currently competent to be relicensed to engage in the profession; and
- (d) pay any fines or citations owed to the Division.

R156-1-308l. Reinstatement of Licensure and Relicensure - Term of Licensure.

Except as otherwise governed by the terms of an order issued by the Division, a license issued to an applicant for reinstatement or relicensure during the last 12 months of a renewal cycle shall, upon payment of the appropriate fees, be issued for the rest of the current renewal cycle plus the next full renewal cycle.

R156-1-309. Division Exams.

(1) This section establishes standards for the administration of Division exams in accordance with Sections 58-1-106, 58-1-203, and 58-1-309.

(2) Upon evidence that a person has engaged in cheating:

(a) the exam administrator shall notify the Division of the circumstances in detail and the identity of each person involved; and

(b) the Division shall make an appropriate inquiry and may open an investigation to determine the facts concerning the alleged cheating.

(3) If evidence of cheating by a candidate is detected before an exam, the Division may:

(a) deny the candidate the privilege of taking the exam; or

(b)(i) before the candidate takes the exam, notify the candidate of the evidence of cheating and that the Division may determine the candidate to have failed the exam if it finds the candidate has cheated.

(4) If evidence of cheating by a candidate is detected during an exam, the exam administrator may:

(a) end the exam, request the candidate to leave the exam facility, and notify the candidate of the evidence of cheating and that the Division may determine the candidate to have failed the exam if it finds that the candidate has cheated; or

(b)(i) determine that the alleged cheating has not yet compromised the integrity of the exam, take any necessary steps to prevent cheating, and permit the candidate to continue taking the exam; and

(ii) after the exam, notify the candidate of the evidence of cheating, and that the Division may determine the candidate to have failed the exam if the Division finds that the candidate has cheated.

(5) If the Division determines that an individual has engaged in cheating or has otherwise engaged in unprofessional conduct regarding an exam, the Division may take appropriate action including one or more of the following:

(a) if the individual is an exam candidate, deny the individual the privilege of taking or retaking the exam for a period;

(b) refuse to issue the individual a license or otherwise act upon a license issued to the individual pursuant to Section 58-1-401; or

(c) establish the conditions that the individual shall meet to qualify for a license, such as meeting with the board.

(6) An exam administrator may end a candidate's exam session, or the Division may invalidate a candidate's exam results if the candidate:

- (a) is engaging or appears to be engaging in cheating;
- (b) reports late to the candidate's appointed exam session;
- (c) fails to present required identification at the time of the exam session;
- (d) creates a disturbance of any kind, including for example:

- (i) engaging in behavior that the exam administrator determines is disruptive to another candidate taking the exam;
- (ii) using language that might generally be considered inappropriate or offensive; or
- (iii) engaging in oral or physical altercations with the exam administrator or another individual;
- (e) fails to comply with the directions of the exam administrator; or
- (f) reports to the exam under the influence of alcohol, drugs, or other intoxicant, to the extent that the exam administrator determines that it does, or might reasonably be considered to, impair the ability of the candidate to safely engage in the exam.

- (7) Each exam subject-matter expert and each exam administrator:
 - (a) shall be a Utah resident;
 - (b) shall be 18 years of age or older;
 - (c) if the exam requires specific knowledge of the profession to grade or administer the exam, shall hold an active license in good standing in that profession or have satisfactory experience or an active license in good standing in a related industry as approved by the Division;

- (d) shall adhere to professional ethics and codes of conduct for the profession, including this section and Subsection R156-1-501(9);

- (e) shall agree in writing to not participate in any exam coaching or preparation activities for the exam for five years following their review or administration of the exam; and

- (f) may not be affiliated with a person that may profit from or materially benefit from knowledge of exam content, such as an educational institution or training program.

- (8)(a) The Division may invalidate exam results if it determines that there is a basis to question the validity of the exam results for any reason, notwithstanding the absence of any evidence of a candidate's personal involvement in cheating or other unprofessional conduct.

- (b) Evidence of invalid results may include, for example, unusual answer patterns or score increases, or equipment failure.

R156-1-310. Application for Division Determination Regarding Criminal Conviction.

- (1) This section establishes the application procedures for a Division determination under Section 58-1-310.
- (2) An individual applying for a determination shall:
 - (a) submit the Application for Criminal History Determination form available on the Division's website, containing a signed attestation and release;
 - (b) submit a separate application with processing fee for each license that the individual is interested in seeking; and
 - (c) under Subsection 58-1-310(2)(e), provide any additional documentation that may be required by the Division to verify or evaluate the individual's representations made in the application.
- (3) Under Subsection 58-1-310(2), the individual's complete criminal conviction history shall include:
 - (a) criminal convictions, pleas of nolo contendere, and pleas of guilty or nolo contendere that are held in abeyance pending the successful completion of probation; and
 - (b) current restrictions from possession, purchase, transfer, or ownership of a firearm or ammunition.
- (4) The Division shall make a determination based solely on the information in the individual's application and supporting documents.
- (5) Agency review is not available for a Division order or determination under Section 58-1-310.

R156-1-401. Consideration of Unlawful Conduct, Unprofessional Conduct, or Other Mental or Physical Condition.

- (1) Under Section 58-1-401, this section applies in circumstances where an applicant or licensee:
 - (a) is not automatically disqualified from licensure pursuant to statute or rule; and
 - (b)(i) has past unlawful or unprofessional conduct; or
 - (ii) as described in Subsection 58-1-401(2)(d), may be unable to practice the profession with reasonable skill and safety because of illness, drunkenness, excessive use of drugs, narcotics, chemicals, or other type of material, substance use disorder, or a mental or physical condition that, when considered with the duties and responsibilities of the license held or to be held, demonstrates a threat or potential threat to the public health, safety, or welfare.
- (2) In a circumstance described in Subsection (1), the following factors are relevant to a licensing decision:
 - (a) aggravating circumstances, as defined in Subsection R156-1-102(2);
 - (b) mitigating circumstances, as defined in Subsection R156-1-102(17);
 - (c) the degree of risk to the public health, safety, or welfare;
 - (d) the degree of risk that a conduct will be repeated;
 - (e) the degree of risk that a condition will continue;
 - (f) the magnitude of the conduct or condition as it relates to the harm or potential harm;
 - (g) the length of time since the last conduct or condition has occurred;
 - (h) the current criminal probationary or parole status of the applicant or licensee;
 - (i) the current administrative status of the applicant or licensee, for any regulated profession;
 - (j) results of previously submitted applications, for any regulated profession;
 - (k) results from any action, taken by any professional licensing agency, criminal, or administrative agency, employer, practice monitoring group, entity, or association, for any regulated profession;

- (l) evidence presented indicating that restricting or monitoring the individual's practice, conditions, or conduct can protect the public health, safety, or welfare;
- (m) psychological evaluations; or
- (n) any other information the Division and the applicable board reasonably believe may assist in evaluating the degree of threat or potential threat to the public health, safety, or welfare.

R156-1-501. Unprofessional Conduct.

"Unprofessional conduct" includes:

- (1) surrendering licensure to any other licensing or regulatory authority having jurisdiction over the licensee or applicant in any regulated profession while an investigation or inquiry into allegations of unprofessional conduct or unlawful conduct is in progress, or after a charging document has been filed against the applicant or licensee alleging unprofessional conduct or unlawful conduct;
- (2) practicing a regulated profession in, through, or with a business structure or name that:
 - (a) has not been properly registered with the Division of Corporations and Commercial Code; or
 - (b) has not been properly licensed with the Division;
- (3) engaging in conduct that results in disciplinary action, including reprimand, censure, diversion, probation, suspension, or revocation, by any other licensing or regulatory authority having jurisdiction over the licensee or applicant in any profession, if the conduct:
 - (a) when considered with the functions and duties of the profession for which the license was issued or is to be issued, bears a substantial relationship to the licensee's or applicant's ability to safely to competently practice the profession; or
 - (b) would, in this state, constitute grounds for denial of licensure or disciplinary proceedings under Section 58-1-401;
- (4) prohibiting or inhibiting the ability of a licensee's customer, patient, or other consumer of the licensee's goods or services from making a complaint to a licensing or regulatory authority, including through the use of a contract provision;
- (5) engaging in cheating or otherwise violating Section R156-1-309 regarding Division exams;
- (6) failing, as a prescribing practitioner, to follow the Guidelines for the Chronic Use of Opioid Analgesics, adopted as policy April 2017 by the Federation of State Medical Boards, which is incorporated by reference;
- (7) failing to comply with an investigative subpoena or an order regarding an investigative subpoena;
- (8) failing, as a health care provider, to follow the health care claims practices of Section 31A-26-313, in violation of Subsection 58-1-508(2); or
- (9) as an exam candidate or as an exam proctor, grader, or administrator, failing to comply with the Division of Professional Licensing Exam Policies and Procedures, dated December 29, 2023, which is incorporated by reference.

R156-1-502. Administrative Penalties.

- (1) Under Subsection 58-1-401(5) and Section 58-1-502, except as otherwise provided by a specific chapter under Title 58, Occupations and Professions or Title R156, the Division shall issue a notice of agency action instead of a citation for a third or subsequent offense, except in extraordinary circumstances approved by the bureau manager or chief investigator.
- (2) Multiple offenses may be cited on the same citation, if the citation clearly indicates each offense and the fine allocated to each offense.
- (3) The bureau manager, investigative team leader, or chief investigator may authorize a deviation from the fine in a citation based upon the aggravating or mitigating circumstances.
- (4) The presiding officer for a contested citation shall have the discretion, after a review of the evidence and any aggravating and mitigating circumstances, to increase or decrease the fine amount imposed by an investigator.

R156-1-503. Reporting Disciplinary Action.

The Division may report disciplinary action to other state or federal governmental entities, state and federal data banks, the media, or other person who is entitled to the information under the Government Records Access and Management Act.

R156-1-506. Supervision of Cosmetic Medical Procedures.

The 80 hours of documented education and experience required under Subsection 58-1-506(2)(f)(iii) to maintain competence to perform nonablative cosmetic medical procedures includes the following:

- (1) the appropriate standards of care for performing nonablative cosmetic medical procedures;
- (2) physiology of the skin;
- (3) skin typing and analysis;
- (4) skin conditions, disorders, and diseases;
- (5) pre and post procedure care;
- (6) infection control;
- (7) laser and light physics training;
- (8) laser technologies and applications;
- (9) safety and maintenance of lasers;
- (10) cosmetic medical procedures an individual is permitted to perform under this title;
- (11) recognition and appropriate management of complications from a procedure; and

(12) current cardio-pulmonary resuscitation (CPR) certification for health care providers from one of the following organizations:

- (a) American Heart Association;
- (b) American Red Cross or its affiliates; or
- (c) American Safety and Health Institute.

R156-1-601. Suicide Prevention Video - Primary Care Providers.

(1)(a) Under Subsection 58-1-601(3), the Division shall produce the suicide prevention videos described in Subsection 58-1-601(2) by meeting at least annually with the Division of Integrated Healthcare to review information on existing videos and plan new videos, including:

(i) establishing goals, specifications, and standards for the videos;

(ii) identifying approved vendors from Utah's Best Value Cooperative Contracts list or otherwise planning requests for proposals;

- (iii) awarding contracts for creation of the videos; and
- (iv) producing the videos and providing them in effective formats.

(b) The Division shall collaborate with the Department of Government Operations to allow primary care providers access to view the suicide prevention videos described in Subsection 58-1-601(2) on the Division's website, at no cost to the providers.

(c) A primary care provider may fulfill up to ten of their CPE hours by viewing the Division-created suicide prevention videos, as follows:

- (i) for a video 25 minutes or less in length, a provider may recognize one-half CPE credit hour; and
- (ii) for a video 26 minutes or longer, a provider may recognize CPE credit in 50-minute hour blocks of time.

(d) The Division's production of the suicide prevention videos may include posting Division-approved substitutes for the videos on its website, such as Counseling on Access to Lethal Means (CALM) training, or more robust in-person training CME hours from a Suicide Prevention Summit provided by the Department of Health and Human Services.

(2)(a) Under Subsection 58-1-601(2)(b), the Division-approved educational materials or courses related to suicide prevention shall include those identified on the Division's website.

(b) The number and type of CPE credit hours allowed for completion of each educational material or course shall be stated on the Division's website or in the educational materials or course.

(3)(a) The Division or other provider of suicide prevention educational materials, courses, or videos may track or confirm a primary care provider's completion of the educational materials, course, or video.

(b) A primary care provider shall maintain documentation sufficient to prove compliance with Section 58-1-601 and this section, for two years after the end of the licensure cycle for which the CPE is due, including:

- (i) title of the educational materials, course, or video;
- (ii) date completed;
- (iii) number of CE hours claimed; and
- (iv) type of CE.

R156-1-602. Telehealth.

(1) Terms used in this rule are defined in Section 26B-4-704. In addition:

(a) "Patient Encounter" means any encounter where medical treatment and evaluation and management services are provided. The entire course of an inpatient stay in a healthcare facility or treatment in an emergency department is a single patient encounter.

(b) "Provider" means the same as defined in Subsection 26-60-102(6)(b), an individual licensed under Title 58, Occupations and Professions to provide health care services, and:

(i) shall include an individual exempt from licensure as defined in Section 58-1-307 who provides health care services within the individual's scope of practice under Title 58, Occupations and Professions; and

(ii) may include multiple providers obtaining informed consent and providing care as a team, consistent with the standards of practice applicable to a broader practice model found in traditional health care settings.

(2) Under Subsection 26B-4-704(2)(b), a provider offering telehealth services shall, before each patient encounter:

(i) verify the patient's identity and originating site;

(ii) allow the patient an opportunity to select their provider rather than being assigned a provider at random, to the extent possible; and

(iii) ensure that the online site does not restrict the patient's choice to select a specific pharmacy for pharmacy services; and

(b) before each initial patient encounter, obtain informed consent to the use of telehealth services by clear disclosure of:

(i) additional fees for telehealth services, if any, and how payment is to be made for those additional fees if they are charged separately;

(ii) to whom patient health information may be disclosed and for what purpose, including clear reference to any patient consent governing release of patient-identifiable information to a third-party;

(iii) the rights of the patient with respect to patient health information;

- (iv) appropriate uses and limitations of the site, including emergency health situations;
 - (v) information affirming that the telehealth services meet industry security and privacy standards in Subsection 26B-4-704(1)(i)(ii), and warning of potential risks to privacy regardless of the security measures;
 - (vi) a warning that information may be lost due to technical failures, and clearly referencing any patient consent to hold the provider harmless for such loss; and
 - (vii) information disclosing the website owner-operator, location, and contact information.
- (3) Under Subsection 26B-4-704(2)(d), a provider offering telehealth services shall be available to the patient for subsequent care related to the initial telemedicine services as follows:
- (a) providing the patient with a clear mechanism to:
 - (i) access, supplement, and amend patient-provided personal health information;
 - (ii) contact the provider for subsequent care;
 - (iii) obtain upon request the patient's medical record or other report containing an explanation of the treatment provided to the patient and the provider's evaluation, analysis, or diagnosis of the patient's condition, including the informed consent provided; and
 - (iv) request a transfer to another provider of the patient's medical record documenting the telemedicine services; and
 - (b) if the provider recommends that the patient be seen in person, such as if diagnosis requires a physical examination, lab work, or imaging studies:
 - (i) arranging to see the patient in person, or referring the patient to the patient's designated health care provider, or if none, to an appropriate health care provider; and
 - (ii) documenting the referral in the patient's medical record; and
 - (c) if the patient does not have a designated health care provider, consult with the patient and send a medical record or other report to the referred health care provider in the manner provided under Subsection 26B-4-704(2)(g), except the medical record or report shall be provided within a reasonable time frame allowing for timely care of the patient by that provider.
- (4) Nothing in this section shall prohibit electronic communications consistent with standards of practice applicable in traditional health care settings, including the following:
- (a) between a provider and a patient with a preexisting provider-patient relationship;
 - (b) between a provider and another provider concerning a patient with whom the other provider has a provider-patient relationship;
 - (c) in on-call or cross coverage situations when the provider has access to patient records;
 - (d) in broader practice models when multiple providers provide care as a team, including, for example:
 - (i) within an existing organization; or
 - (ii) within an emergency department; or
 - (e) in an emergency, which as used in this section means a situation when there is an occurrence posing an imminent threat of a life-threatening condition or severe bodily harm.

KEY: licensing, supervision, evidentiary restrictions

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Authorizing, and Implemented or Interpreted Law: 58-1-106(1)(a); 58-1-308; 58-1-501(2)